COLOMBIA SUPPLEMENTAL FIELD OFFICE MANUAL FOR PERSONNEL AND OPERATIONS

PARTNERS of the AMERICAS
Connect • Serve • Change Lives

September 2021

Table of Contents

1. Introduction

1.1 Welcome to Partners

Welcome to Partners of the Americas!

The field office manual has been prepared specifically for Partners of the Americas (Partners) employees in Colombia. It will introduce the organization and information on the rights and obligations the employee has towards Partners Colombia and, at the same time, about the rights and obligations that Partners Colombia has towards the employee. This Manual is therefore a basic information tool for employees working at Partners Colombia.

In this book we try to explain the important topics related to financial, personnel and operational management. Partners Colombia expects that all employees understand and implement all the policies and procedures found within this manual. It is the responsibility of each employee to know the policies and procedures, or when necessary, request clarification. All employees will be required to sign a certification form confirming that they have reviewed all the policies and that they will adhered to the standards set forth within this document.

When Partners Colombia deems it appropriate to modify the policies and procedures, it will update the necessary parameters which will subsequently be disbursed to each employee in a timely manner. We ask you to contact your immediate superior or the Administrative and Financial Management if you have any doubt about your position or your working relationship with Partners Colombia, as many times as necessary.

You are the lifeblood of Partners of the Americas and, as such, we want you to find an interesting and rewarding experience in your work environment. With all due respect, I wish you every success.

Signature

John McPhail, President & CEO

1.2 Objective and Scope

The purpose of this manual is to help its users to work in accordance with the rules and philosophy of Partners, adapted to the Labor Code in Colombia, thus becoming a consultation tool with unified criteria and provide a general framework and standardized set of policies and procedures for financial and personnel management in Partners of the Americas' Colombia Field Office, herein after referred to as "Partners Colombia". The supplemental manual addresses country specific laws, regulations, and policies in accordance with Colombian law.

The information presented here contains the main standards of conduct Partners Colombia and the most common legal regulations in the workplace.

Partners Colombia is expected to comply with all the policies and procedures set forth in this manual and are encouraged to seek clarifications if questions arise. Partners Colombia, (including sub-offices), must maintain a printed copy of the manual for reference.

1.3 Management Control – Roles and Responsibilities in Headquarters

The Chief Financial Officer (CFO) is the authority on the Partners Colombia supplemental manual, or in absence of the CFO, an individual designated by the President and CEO. Partners Colombia is encouraged to provide input, suggestions, and corrections, but may not alter or change any part of this manual.

This manual will be reviewed and updated annually (if applicable) to reflect current circumstances as well as new policies and procedures. Partners Colombia will be notified of updates by e-mail.

1.4 Implementation Control – Roles and Responsibilities in Colombia

This manual is for the use and knowledge of all employees without exception. The contents of this manual as well as its updates will be notified to each employee for its understanding and its application. It is the responsibility of all employees to know, understand and apply the contents of this manual in its entirety.

It is not permitted to reproduce the manual for reasons as its consultation is exclusively reserved for the employees of Partners Colombia. In the event that the employee has suggestions and recommendations related to the manual, these remarks must be communicated in writing to the immediate superior so that they can forward it to the management.

Enforcement of this supplemental field office manual will be the responsibility of the positions below.

- Project Director (PD) (Field Office Director or Chief of Party, etc.) – This individual is the lead field office operations director in country. They are responsible for overall project/program management and the operations of the field on a day-to-day basis. This individual is also responsible for approval of all the finance operations including payment authorizations and internal controls for the in-country field office.
- Field Office (FO) Finance Manager (Admin Manager, Admin & Finance Assistant/Manager, Finance & Admin Director) – This individual is the person responsible for all the finance operations and internal controls for the in-country field office. This individual is responsible for data entry, overseeing and reconciling accounts.

2. Internal Controls

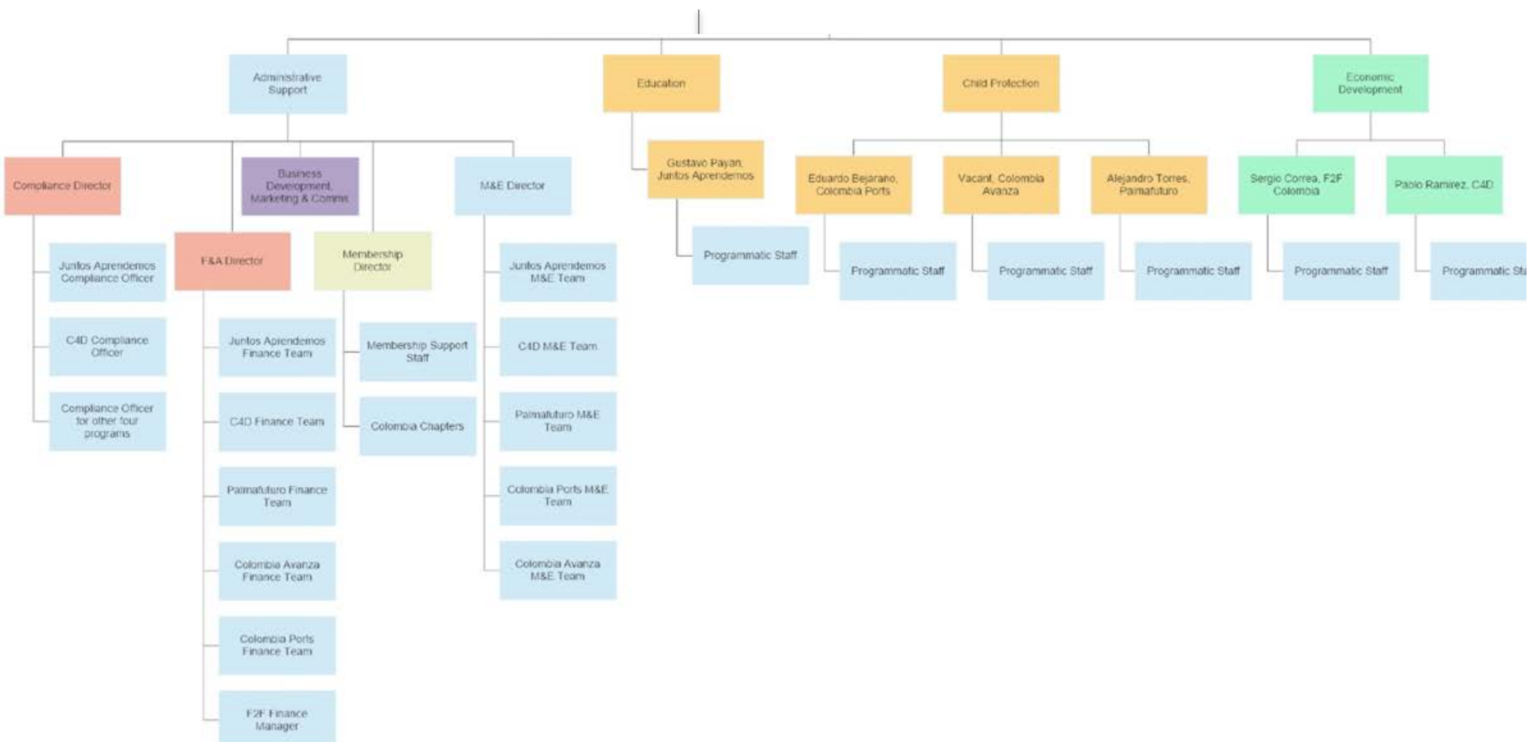
2.1 Purpose and Scope

The purpose of Internal Controls is to provide reasonable assurance that the following objectives are being accomplished:

- Reliability and integrity of information
- Compliance with policies, plans, procedures, laws, and regulations
- Safeguarding of assets in Partners Colombia
- Economical and efficient use of resources
- Accomplishment of established objectives and goals for operations and programs

2.2 Approval Authority

The flowchart below outlines the approval authority matrix at Partners Colombia.* The FO Finance Manager, supported by the PD, has responsibility for enforcing approval authority. Partners HQ has approval over the PD and must approve his/her payments, etc. In accordance with the procurement policy, all transactions and contracts valued at USD $10,000 (or the local COP equivalent) or more will automatically need to be approved by Partners HQ. If there is a Deputy Chief of Party or Deputy Project Director, they are authorized to approval all transactions and contract valued up to $5,000 USD or the local COP equivalent. One exception to the limit is that the PD is authorized to sign all consultant contracts, all employment contracts and approve all payroll transactions, regardless of the amount.



*Please note the organizational chart is subject to change based upon current positions.

2.2.1 Responsibilities of Approval and Review Authorities

It's critical that approval authority holders not only understand what their authority levels are, but also what their responsibilities are in using their authority. The responsibilities for both approval authority holders and financial review are outlined below.

By approving an expenditure, commitment or payment, the signer is confirming that:

1. The expenditure is necessary, reasonable, and appropriate;
2. The item is not currently in stock or available;
3. The technical specifications are correct and adequately detailed;
4. The required forms are complete;
5. Funds are available within the budget;
6. The expenditure is in compliance with Partners HQ's policies and procedures.

Financial review is a compliance check and not an approval authority. The primary purpose of financial review is to ensure that all financial and compliance aspects of the commitment are considered. The FO Finance Manager, when signing off, is confirming that:

1. The expense has been authorized by the appropriate authorizer;
2. The expenditure is within budget guidelines;
3. The expenditure is in compliance with Partners HQ and donor policies;
4. The expense has been coded correctly;
5. The calculations are correct;
6. The required supporting documentation is in order and adequately explains the transaction; and
7. All payments, whether by check, wire transfer, etc. are being paid to the party which appears on the procurement records and/or other approval documentation. Checks or transfers may not be made out to third parties or any Partners' employees (either Partners HQ or Partners Colombia) to be cashed on behalf of the vendor. Any

exceptions must be approved in writing by the Chief Financial Officer (CFO) or President & CEO.

8. All expenses are recorded at full cost and not net of taxes, etc.

An original signature on an original document is the required method of documenting an approval or review, this does include original electronic signatures. Upward approval is required for all transactions. Under no circumstances may an originator approve their own expenses, including the PD.

When the authority holder is not located in at Partners Colombia or where an approval is required due to a temporary absence (travel, vacation, sick, etc.), the next level of authority in that office should be sought for approvals that the absent party would have normally made.

When the authority holder is permanently located outside of the office where an approval is required or is the only one authorized for a particular approval and they are out of office, the document to be signed should be printed, signed, and scanned or submitted via an approved electronic signature platform for approval. The scanned or electronic copy should be sent back to the office requiring the approval.

3. Monthly Reconciliation of Accounts

3.1 Reconciliation of Assets, Liabilities & Cash Accounts

All assets and liabilities accounts (i.e. cash, accounts receivable, accounts payable and other balance sheet accounts) must be properly reconciled on a monthly basis. Evidence of the reconciliation should be maintained in Partners Colombia and be sent monthly to Partners HQ. This evidence should include all supporting schedules prepared by the FO Finance Manager and approved by the PD prior to the submission of the reports to Partners HQ, or presentation to the auditors during the audit process.

All financial reports for both Partners Colombia and all sub-awardees must be submitted to Partners HQ by the 7th of the following month. If the 7th of the month falls on a holiday or weekend, the submission deadline is the last business day prior to the 7th. Compliance with this timeline is critical to ensure expenditures are recorded in the correct month. If there are any delays or issues with meeting the deadline, field staff must immediately notify Partners HQ of the delay and provide an explanation for the nature of the delay. Partners will provide a template for monthly financial reporting. A financial report must be received each month for all bank accounts held by Partners Colombia which includes all of the following:

A) Signed bank reconciliation (template provided by Partners HQ, see Annex C)

B) Copy of the bank statement(s) (PDF)

C) Expense report indicating all expenditures in the month (on the template provided by Partners, see Annex C)

D) Copies of all documentation to support the expenditures listed on the expense report

E) If reporting is done in local currency, then a copy of the monthly average exchange rates must be submitted.

Partners may withhold a cash flow advance request if Partners Colombia fails to provide timely reporting of expenditures in accordance with the above guidelines.

3.2 System of Award Management (SAM) Check Via Visual Compliance

The U.S. Government requires the following compliance checks prior to the expenditure of funds: SAM.gov, the UN's Specially Designated Nationals And Blocked Persons List (SDN), and Office of Foreign Assets Control (OFAC) Sanctions Lists. To satisfy this requirement, Partners HQ, in accordance with Federal Regulation, requires that Partners Colombia run a Visual Compliance check on all recipients (individuals and entities) who are receiving any funds. The website for Visual Compliance is: https://www.visualcompliance.com/ and the necessary login information will be provided by Partners HQ. Proof that the Visual Compliance check was done must be retained and kept along with proof of the payment,

prior to disbursing funds to the recipient. The Visual Compliance check must be run at a minimum, once per calendar year (January – December) prior to the first payment of the year in order to be compliant.

Each month, Partners HQ will request copies of selected Visual Compliance checks for inspection and to ensure compliance. The transactions will be selected at random.

4. Financial Records, Audits & Record Retention

4.1 Record Retention and Accounting

Partners Colombia must maintain financial records, supporting documents, statistical records, and all other records, to support performance of, and charges to, the project. Such records must comply with accounting principles generally accepted in the U.S. and Colombia.

Partners Colombia records and any subrecipient records that pertain to the project must be retained in country for a minimum period of three years from the submission date of the final expenditure report. Partners Colombia will need to work with Partners HQ to ensure documentation and records are safeguarded for the period of three years and or make necessary arrangements to transport the necessary documents to the international office, upon closeout of project office.

4.2 Filing & Records

The PD is responsible for establishing guidelines and procedures for filing and tracking. In addition, they are responsible for maintaining the general filing system or appointing another member of the management team to assist in this process. At a minimum all financial records, supporting documents, statistical records, and all other records, to support performance of, and charges to, the project must be stored in a fire-proof filing cabinet with a lock. Access to the files should be restricted to the PD and FO Finance Manager.

4.3 Audits

Partners Colombia must have an annual audit conducted in accordance with the "Guidelines for Financial Audits Contracted by Foreign Recipients" https://www.usaid.gov/sites/default/files/documents/1868/591maa_new.pdf, for any fiscal year (January – December) in which Partners Colombia expends a combined total of USD $750,000 or more in all Federal awards. Any donor can make a request and has the right to conduct an audit any time during the life of a project/program that the donor funds. Any annual audit must be conducted in coordination with Partners HQ. The terms of reference and the selection of the audit firm must be approved by the Program Manager and CFO at Partners HQ.

Partners HQ retains the right to conduct a financial review, require an audit, or otherwise ensure adequate accountability of organizations expending federal funds, regardless of the audit requirements above.

4.4 Financial Reporting

The FO Finance Manager will provide the PD with the following reports monthly:

1. Balance Sheet
2. Income Statement
3. Report on Budget versus Actuals

The PD is responsible for review and approval of the above the financial statements. Copies of the approved financial statements must be submitted to Partners HQ quarterly.

5. Inventory Control

5.1 Equipment vs. Supplies

- **Equipment** means tangible personal property (including information technology systems) having a useful life of more than one year and a per-unit acquisition cost which equals or exceeds USD $5,000.
- **Supplies** means all tangible personal property other than those described in equipment (above). A computing device (e.g. computers) is a supply if the acquisition cost is less than USD $5,000, regardless of the length of its useful life.

5.2 Inventory Control Requirements

A physical inventory of Partners Colombia must be taken, and the results reconciled with Partners Colombia's records at least once every year in January. The monetary value threshold for accounting of inventory items (e.g. furniture, equipment, and fixtures) in Colombia is USD $50 per item. For tax purposes inventory items (e.g. furniture, equipment, and fixtures) must be reflected at their cost of acquisitions, plus improvements, repairs, plus any cost directly attributable to their use in accordance with Article 69 of the Colombia Tax Code. If any differences exist between the tax value and the accounting value of these inventory items, a reconciliation must be prepared and submitted to DIAN (Article 772-1, Colombia Tax Code, Article 1.7.1., Unified Decree No. 1998 of 2017).

The document "Master Equipment & Supply Listing", found in Annex A must be submitted to Partners HQ annually no later than January 31st. The FO Finance Manager must certify and reconcile to the books the "Master Equipment & Supply Listing" and the PD must review and approve.

5.3 Use of Equipment

Partners Colombia strives to ensure that its employees have modern and adequate equipment to make their work easier and more efficient.

Responsibilities for the proper use of equipment:

- Handle the assigned equipment with care
- Monitor the optimal operation of assigned equipment
- If for any reason equipment from another source is to be used, the employee must ensure that it contains no viruses in order to preserve information on the organization's computer network.
- Report any fault or loss of equipment immediately
- Facilitate equipment access to technical and maintenance services.
- Use of recommended security settings on all work devices, as outlined under Section 5.4 IT Controls.

Partners Colombia does not authorize the following activities:

- Installation of programs that do not have their corresponding license
- Use of copied programs that are not for the exclusive use of Partners Colombia
- Installation and use of games, movies, etc.
- Use of programs that may affect the operation of Partners Colombia network
- Introduction of elements that damage the equipment
- Block operating systems without notice
- Create passwords without sharing them with the PD and/or the FO Finance Manager, preventing access to working documents.
- Delete, without warning the information necessary for the execution of programs
- Any conduct with bad faith or destructive intent that interferes with the good work of other employees.

Use of Printing and Copying Equipment

The use of printers and photocopying machines (including equipment the belong to the office space) is exclusively reserved for work related to Partners Colombia projects.

Use of the Internet and Chat Software

Use of the internet should be for work purposes only. Software programs for chatting within the organization such as Teams, Skype, WhatsApp, etc. are permitted for office use.

It is strictly forbidden to use chat software such as Facebook, Instagram, or other social media sites, unless for explicit Partners Colombia work. Access to adult and similar web sites is strictly prohibited. Note that Partners Colombia reserves the right to monitor all company equipment, emails, etc. to ensure its proper use.

Use of Audio Equipment

The use of radio, tape recorder or CDs is not prohibited. However, employees must refrain from doing so in places where their use may interfere with the normal development of their employees' work. In any case, we ask that all employees use headphones.

USB Drives

USB drives present one of the most well-known, but least mitigated security threats in the everyday digital landscape. USB can be infected with malware which can be uploaded on computers directly and they can be vehicles of data theft. USB drives also tend to get lost easily, potentially letting sensitive information out.

Partners Colombia staff should **never** use USBs or external drives that were not purchased by Partners to save work related files or on devices used for work purposes. USBs can be infected with malware which could grant external actors' access to internal computer hardware and files. This includes borrowed, gifted, or found USBs.

For Partners Colombia staff, usage of an encrypted USB drive is a requirement. Using encrypted USBs largely mitigates the risk of data loss through theft of misplacement of the drive. Encrypted drives will be password protected to prevent forced entry. Whenever possible, American-made USBs should be used. Partners Colombia staff should avoid using the same USBs for work and personal reasons and avoid using it across work and personal devices.

5.4 IT Controls

Password protocols

To ensure accounts are secure and protected against hackers and breaches, a strong password creation protocol must be followed.

- Never use sequential numbers or letters or include any personal information such as names or dates of birth.
- Passwords should not be shorter than 14 characters.
- Use a combination of upper-case and lower-case letters, numbers, and symbols.
- Avoid common substitutions of numbers or symbols for letters. For example, avoiding using D00R8377 in place for DOORBELL with no additional words, symbols, or numbers, makes these combinations easy to hack.

- Random character placement (P*g6Hdk@28cD&q!) and random word combinations (Carmine*Flor9Jupiter&6) are effective. Use proper nouns, names of local businesses, historical figures, any words you know in another language, etc. Adding capitalization, numbers, and symbols can strengthen password security.
- Don't use predictable combinations of sequential letters (abcde), numbers (56789), or keyboard paths (qwerty).
- Never reuse passwords.

The best practice for storing secure passwords is using password management applications like LastPass. It creates strong passwords that are difficult to hack and keeps track of those passwords, so you don't have to remember them. The easiest way to use LastPass is to just use the internet as you normally do and save your passwords as you log onto each new site.

When a site is visited with a login page, a LastPass icon will appear after the username and password is entered. Click the LastPass icon inside the password field, then click "Save credentials for this site." The LastPass account will gradually fill with all the saved passwords and login information. When the sites are revisited, LastPass can automatically enter the username and password for you.

Under the LastPass Security Dashboard, LastPass can score the security level of your passwords and suggest new passwords for you using the password generator. LastPass can give you an overall security rating and alert you if your email accounts have been breached through their Dark Web Monitoring option.

<u>DuckDuckGo</u>

DuckDuckGo is known as a "private" search engine because it doesn't track or record any personal Internet-related data about its users. This means that DuckDuckGo doesn't collect information on a computer's IP address, web browser specifications, or search history. DuckDuckGo also has features that block websites from knowing how you found them, so they can't use this information to profile you and show you privacy-invasive targeted advertising. DuckDuckGo also will automatically pull up the encrypted (HTTPS) version of a site rather than the unencrypted version.

DuckDuckGo can be used directly as a search engine like Google or added as an extension into web browsers. The extension adds additional features including blocking hidden trackers detected on visited sites and take you to encrypted versions of sites when possible. These private browsing features require extra permissions, though work solely on your local device. DuckDuckGo does not collect or share any personal browsing information as per our privacy policy.

You can use a secure version of the website that makes your activities difficult to track and interpret. You can also redirect your search request so that other websites can't see your search terms, or even modify your search request so that your search terms aren't visible to any websites at all.

Disk Encryption

Full disk encryption is a data protection method, which transforms information stored on disk drives into encrypted files that can be only opened by people or systems who have the necessary access keys. Full disk encryption protects the entire computer hardware and all files on the drive against unauthorized access, in contrast to file-level encryption which protects individual archives.

If a laptop is ever lost, stolen, or decommissioned inappropriately, the odds are that the data will remain safe even then, because encrypted drives are extremely difficult to access without knowing the decryption key. This is not the case with unprotected drives, to which the attacker may gain access, simply by attaching them to another computer.

Windows 10 has a built-in disk encryption application called Bitlocker. All data on the protected drives is stored in an encrypted form while the computer is locked or turned off, but when the user unlocks the system with their Windows login credentials, everything works like in an unencrypted system. Any new files will be encrypted automatically.

General Phone Settings

Proper cellphone security will ensure documents are as protected as possible.

The following security preferences will help secure phone data. These preferences are not required, but strongly recommended.

- Don't automatically join wi-fi networks, you risk joining an unsecure network through which hackers can access your phone.
- Enable a complex PIN (see password protocol section for guidance) or fingerprint password on lock screen. Enabling FaceID is not recommended, due to concerns with tracking facial recognition data. If staff member prefers to use FaceID and enables it on the device, be advised that in security situations where a person tries to enter a phone by force, the phone will not unlock if the user avoids looking directly into the camera. FaceID will only unlock if the face is in a neutral expression and looking directly ahead.
- Disable GPS location tracking from photos and avoid enabling it on as many application as possible. This will ensure that if an application is compromised, there is less likelihood your sensitive information will be leaked.
- Enable “Find my Phone” on iPhone or Android. Find my Phone includes a remote phone wipe setting that will allow users to clear the contents of their phones if the phone is lost or stolen. This will return the phone to factory mode, clearing all the data or contents of the phone.
- Keep phone software and applications regularly updated to ensure devices have the latest security patches installed.
- Disable load remote images on emails. Hackers can hide malware within photos in emails, which are downloaded automatically if this setting is not disabled.
- Enable USB restriction mode to ensure malware cannot be installed through USB ports.
- Download LastPass application to manage passwords.
- Enable multi-factor authentication on as many applications as possible.

6. Cash Management

6.1 Petty Cash

This is an imprest system of cash control which is used for day-to-day expenditure of items less than USD $25.00 or its local Colombian peso equivalent. The fixed float amount of petty cash is at maximum USD $300.00 or its local Colombian peso equivalent. Unless otherwise delegated, the FO Finance Manager is responsible for the petty cash system, including disbursement and reconciliation.

A petty cash log is to be maintained by the FO Finance Manager. The date and amount of petty cash taken must be recorded on the petty cash log. The FO Finance Manager will complete the details of the expenditure and track all receipts associated with petty cash. At the end of each month, a petty cash count should be completed to confirm the balance; a template is provided in Annex B.

When the balance of the petty cash reaches USD $50.00, the FO Finance Manager will reconcile the petty cash, ensuring that all receipts and vouchers are accounted for, and replace funds by drawing the required amount made out to petty cash. When petty cash is reimbursed by a withdrawal, the transaction is recorded in the accounting records allocating each item to the appropriate line item. The PD is responsible for review and approval of the petty cash reconciliation, unless otherwise delegated in writing. The PD is also responsible for surprise cash count to be done no less than quarterly and at the end of fiscal year closure, unless otherwise delegated in writing.

6.2 Exchange Rates

To report all revenues and expenditures, Partners Colombia uses a monthly average exchange rate. Proof of exchange rate must be submitted monthly to Partners HQ with the monthly field expenditure reports in accordance with section 3.1 Reconciliation of Assets, Liabilities & Cash Accounts. Evidence of the exchange rate during the period can be provided from OANDA. The OANDA website provides global currency exchange rates by date: http://www.oanda.com/. Utilizing the above website OANDA, the average exchange rate from the 1st of the month to the end of the month is calculated. This rate is then applied to every expense in the month regardless of the exact day.

Note that the monthly average exchange rate method must be applied consistently throughout the lifetime of the award.

6.3 Bank Accounts

Partners Colombia is authorized to set one bank account for each project, and a shared account between all projects for payroll and tax purposes. If any additional bank accounts are required, the PD must request permission and approval in writing form to the CFO. The goal is to keep Partners Colombia's bank accounts to the minimum number needed.
The bank accounts should only be used for the purpose of the project and in the name of the Partners Colombia. Transactions related to other projects will not be permitted. The bank account should have a minimum of two signatories, the FO Finance Manager, and the PD. The PD will approve all the payments and sign all checks, unless otherwise delegated in writing. The FO Finance Manager will serve as a second signatory on the payment request if it exceeds $5,000.00 USD or the local Colombian peso equivalent. If the payment request is below $5,000.00 USD or the local Colombian peso equivalent, only the PD's signature is needed.

Information on any new bank account must be sent to Partners HQ's CFO and provide the following information: the name on the account, account number, bank name, type of account, list of signatories on the account and current balance. Changes to the signatories on the account must be approved by the PD and notification should be provided to Partners HQ. Upon hiring or termination of employee with signatory power, the bank account signatories must be updated accordingly.

6.3.1 Monthly Bank Account Reconciliations

The monthly bank statement will be used to reconcile the account each month. Each bank account should have a separate general ledger account, differentiated by sub-code.

At the end of each month or the beginning of the next month, Partners Colombia will receive a monthly bank statement from the bank. Note an official statement must be obtained from the bank the account, regardless of whether any transactions took place during the month. As the reconciliation is done in Colombian Pesos, proof of exchange rate to USD must be provided.

The purpose of the monthly bank reconciliation is to reconcile the balance shown on the bank statement with the ending balance on the general ledger journal. Each transaction (check, wire, advance, etc.) must be recorded separately. A lump sum total will not be permissible. All bank reconciliations must be done on the field report expenditure template and reconciliation, found in Annex C.

The reconciliation tab should not be used to restate the monthly bank activity but should be used to show any outstanding transactions that occurred during the month but have not yet been reflected on the bank statement. The prior month's bank reconciliation must be checked for any items that still remain outstanding. Transactions that remain uncleared from previous months should be promptly researched with the bank or the payee. The tab for financial field report of general ledger activities should show all financial transactions occurring in the month.

Once the full bank reconciliation is completed, the FO Finance Manager will be responsible for submitting to Partners HQ the following: bank reconciliation, copy of the bank statement, full financial field report (general ledger report), and copies of all receipts by the 7th of each month for the prior month's expenditures as indicated in 3.1 Reconciliation of Assets, Liabilities & Cash Accounts.

6.4 Cash Flow Advances

Partners Colombia may request up to 30 days of cash needs based on the monthly cash flow projection. Cash may be drawn once a month on the first of the month. A cash flow request must be used for all cash requests to Partners HQ, the template is provided in Annex D. Funding requests should be sent to Partners HQ by the 7th of the month to be processed on mid-month wire and check release cycle, unless otherwise stated. Partners Colombia should plan enough lead time when requesting cash to consider the wire processing time by the bank and Partners HQ. Cash flow advances must be cleared monthly through submission of a financial report that is submitted to Partners HQ in accordance with 3.1 Reconciliation of Assets, Liabilities & Cash Accounts. Often times the cash flow advances will not clear entirely each month, and therefore any leftover funds should be taken into consideration as cash on hand when determining the next month's cash flow request. If financial reports are not submitted on time, additional advances to Partners Colombia may be held at the discretion of the CFO.

6.4.1 Excess Cash on Hand

Excess funds are defined as cash in excess of 60 days cash needs for Colombia operations. As having an excess of funds in the Colombia can pose a risk, Partners Colombia should consult with Partners HQ to determine the best course of action to rectify the situation.

6.5 General Cash Handling Policies

Below are the general guidelines that Partners Colombia is required to meet in order to ensure compliance and safeguarding of cash.

6.5.1 Use of Safes

Partners Colombia is required to use a safe for the storage of office cash. Access to the safe should be strictly controlled. A set of keys should be kept by the PD and FO Finance Manager only.

6.5.2 Minimizing Cash Transactions

Given the inherent risks associated with cash handling, Partners Colombia must always use other means of payment whenever possible, such as a bank debit card, checks or wire transfers and avoid use of petty cash and advances. The maximum cash payment that is permissible is USD $25.00. Transactions over this threshold must be made with another payment method such as check or wire transfer.

6.5.3 Evidence of Receipt by Payee

To prevent duplicate payments or claims of discrepancies, all cash payments must be documented by evidence of receipt of payee. This means that the recipient of the payment must sign that the cash was received in total at the time of payment. A numbered receipt should be prepared in duplicate indicating the amount and date and should be signed by the recipient. One copy should be given to the payee and one copy should be retained and included with the voucher documentation.

6.5.4 Periodic Cash Counts – Petty Cash Certification

Cash balances should be physically counted periodically to ensure that cash journal/receipts balances match the actual cash on hand. These cash counts should be done in accordance with Section 6.1 Petty Cash. Petty cash certifications should conform to the following general guidelines:

- Cash counts should be done discreetly, out of general view and should be undisturbed.
- Counts should be performed by a minimum of two people. One should serve as the counter and the other as a witness of the count. A template of the Petty Cash Certification can be found in Annex E which must be completed each time.
- Cash counts should be performed each month and at random. Note that Partners HQ reserves the right to request a Petty Cash Certification at any time.
- Any overages or underages must be recorded in the cash journal at month end in order to reconcile with the final count. Discrepancies may not be held over to future periods. The cause for any overages or underages must be further researched and appropriate action taken to ensure that it does not happen in the future. Partners HQ must be notified of any discrepancies.

7. Partners Colombia General Policies

7.1 Anti-Corruption Policy

Partners Colombia and its affiliates must have a zero-tolerance against bribery and corruption. The objective of the anti-corruption policy is to ensure that appropriate anti-corruption and bribery procedures are in place to avoid any violations of relevant laws and regulations. This policy applies to all officers, directors, shareholders, employees and appointed third party representatives. For a copy of the full policy, please reference the Partners General Field Office Manual.

7.2 Anti-Discrimination

Partners Colombia defines discrimination as any distinction, exclusion or preference based on gender, race, maternal language, color, sex, religion, age, pregnancy or maternity, political opinion, disability, sexual orientation, disability or health condition, economic situation, philosophy, national or family origin or social origin, that results in destroying or altering the equality of chances or treatment in employments or occupation. The Colombian Constitution provides that people are equal before the law and benefit from the same protection and guarantees (Article 10 of the Código Sustantivo del Trabajo).

Partners Colombia promotes diversity and equal opportunity in the workplace in accordance with all applicable local laws. If you believe that you have been the victim of any type of discrimination or are aware of such conduct, you must promptly notify your supervisor, PD or Partners HQ. An employee who has made a report of questionable conduct and who subsequently believes he or she has been subjected to retaliation of any kind by any Partners Colombia or Partners HQ employee is directed to immediately report it to the PD or the appropriate party at Partners HQ. Anyone found to be engaging in any type of unlawful discrimination will be subject to disciplinary action, up to and including termination of employment.

All Partners Colombia employees have the responsibility to maintain honesty, integrity, and efficiency, and to reassure their conduct and commitment to the highest ethical standards. It is important to emphasize that all employees are important. The development and success of Partners Colombia depends on the interest and creativity of its employees in the work. They must maintain good relationships and treat others kindly, creating a harmonious work environment and excellent employee relationships including equality of opportunity without discrimination or harassment.

7.3 Anti-Sexual Harassment

The Partners Colombia prohibits all forms of sexual harassment in accordance with Colombian Law No. 1010 of 2006. Sexual harassment refers to any physical behavior, verbal or not, of sexual nature, affecting women and men's dignity, and deemed inappropriate, unreasonable, and offensive for the worker.

The evidence of sexual harassment in the workplace is established if the workers perceive that their reaction to such behavior:

1. Is a condition to keep the job and/or;
2. Will have an impact on decisions concerning their job and/or;
3. Will have an impact on their performance.

Sexual harassment can also come from a behavior that creates a hostile, threatening and humiliating environment. Partners Colombia is committed to providing a work environment free of any form of verbal or physical discrimination and abuse based on gender, race, maternal language, color, sex, religion, age, pregnancy or maternity, political opinion, disability, sexual orientation, disability or health condition, economic situation, philosophy, national or family origin or social origin, or for any other purpose. It is Partners Colombia policy to prohibit harassment between employees. The purpose of this philosophy is not to regulate the moral behavior of employees, but rather to ensure professional behavior at work. Employee harassment refers to the use of epithets, nicknames, threats, derogatory comments, offensive jokes, sexual insinuations, requests for sexual favors, and any other type of verbal or similar physical contact. Any employee who considers that she/he is subject to discrimination and harassment should report this situation to his/her immediate supervisor, PD or Partners HQ so that the corresponding investigation can be carried out and that the measures that the case deserves to be taken.

7.4 Anti-Workplace Violence and Bullying

To protect the welfare of our staff from instances of violence in the workplace, Partners Colombia has implemented a violence prevention policy. Partners Colombia strongly believes that all employees should be treated with dignity and respect and that each employee is responsible for her or his actions and consequences. Thus, acts of violence and threats of violence will not be tolerated. The carrying of weapons including, but not limited to, firearms and knives on company or client premises is strictly prohibited. Additionally, Partners Colombia does not allow workplace bullying. Partners Colombia defines bullying as "repeated inappropriate behavior, either direct or indirect, whether verbal, physical or otherwise, conducted by one or more persons against another or others, at the place of work and/or in the course of employment." Such behavior violates the company Code of Ethics, which clearly states that all employees will be treated with dignity and respect. Bullying may be intentional or unintentional. However, it must be noted that where an allegation of bullying is made, the intention of the alleged bully is irrelevant and will not be given consideration when meting out discipline. As in sexual harassment, it is the effect of the behavior upon the individual that is important. Partners Colombia considers the following types of behavior examples of bullying:

- Verbal bullying: Slandering, ridiculing, or maligning a person or his/her family; persistent name calling that is hurtful, insulting or humiliating; using a person as the butt of jokes; abusive and offensive remarks.
- Physical bullying: Pushing, shoving, kicking, poking, tripping, assault, or threat of physical assault; damage to a person's work area or property.
- Gesture bullying: Nonverbal threatening gestures or glances that convey threatening messages.
- Exclusion: Socially or physically excluding or disregarding a person in work-related activities.

Any violation of this policy may lead to disciplinary action, up to, and including termination. Additionally, employees have a "duty to warn" their supervisors, PD or Partners HQ of any suspicious workplace activity, situations or incidents that appear problematic. This includes, but is not limited to, threats, or acts of violence, aggressive behavior, and threatening comments or remarks. While Partners Colombia cannot guarantee the safety of employees, all reports will be promptly and thoroughly investigated.

7.4.1 Harassment/Bullying Complaint Procedure

If you believe you have been subjected to prohibited harassment or you are aware of any such conduct, the incident should be reported immediately. We ask that any person who has witnessed or been the subject of harassment contact our independent Human Resource (HR) Consultant, Foster Thomas. A confidential hotline at +1 (443)-951-4951 has been set up for you to report your concern via voicemail message. The voicemail is monitored by an HR Consultant from Foster Thomas who will review all messages and promptly contact you to discuss your concern and to gain a full understanding of the situation. The HR Consultant will then provide an overview of the situation to the Ethics Committee of the Board. The Ethics Committee will then review the case and make a determination of whether the case should be referred to the President (or, in appropriate circumstances, to another member of Senior Management or the PD) for further action. If the complainant provides no identifying information in the message, Foster Thomas will relay the complaint directly to the Ethics Committee for review.

Alternatively, or in addition to the confidential hotline, you may report harassment to your supervisor, PD or Partners HQ, as you feel comfortable. Such complaints must be recorded in writing, either by the complainant or by the supervisor/PD to whom it is reported. A Harassment Complaint Form is available in Annex F. Any supervisor or PD who becomes aware of possible harassment or retaliation must immediately advise a member of Partners HQ so it can be investigated in a timely and confidential manner.

All harassment complaints will be promptly and thoroughly investigated, and each complaint will be handled as confidentially as possible under the circumstances. Complaints will be investigated impartially and if found to be truthful, Partners Colombia will take immediate corrective action. Anyone found to have engaged in harassment will be subject to appropriate disciplinary action up to, and including, termination of employment.

7.4.2 Protection from Retaliation for Harassment/Bullying Complaint

Partners Colombia prohibits any retaliation against employees who legitimately exercise their rights under this policy or who participate in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any employee for making a truthful, good-faith complaint or report of a violation. Employees who believe they are being discriminated against as a result of having legitimately filed a complaint or having truthfully participated in an investigation should immediately notify their supervisor, PD or Partners HQ.

7.5 Freedom of Association

Colombia has ratified ILO Convention No. 87, the Freedom of Association and Protection of the Right to Organize Convention and ILO Convention No. 98, the Right to Organize and Collective Bargaining. The Colombian Constitution of 1991, Article 38 provides for the right to associate, Article 55 provides the right to collective negotiation and bargaining, and Article 56 provides the right to carry out strikes.

According to the article 39 of the Political Constitution, employers and workers have the right to freely associate in defense of their interests, forming professional associations or unions; these have the right to affiliate or federate with each other.

Professional associations or unions must adjust to the exercise of their rights and compliance of their duties, to applicable law and democratic principles. Unions are subject to the inspection and vigilance of the government. The right to carry out strikes is regulated as far as public services and order is concerned. Workers and employees, without prior authorization, have the right to constitute the organizations they consider convenient, as well as to affiliate to these with the sole condition of observing their status.

Unions are organizations of free entry and retirement of workers. The statutes will regulate the co-participation in institutions of mutual benefit that the union had established with contributions from its members. In addition, strikes are legal as long as they are carried out as stated by the terms described in articles 444 and 445 of the Labor Code.

7.6 Freedom of Work

In accordance with Article 8 of the Colombian Labor Code, Partners Colombia recognizes the freedom to work. No one can limit or prevent another from dedicating himself/herself to their profession, industry or commerce that pleases them, their exercise being lawful, but by resolution of competent authority aimed at protecting the rights of workers or society, in the cases provided by law.

7.7 Anti-Forced Labor

Partners Colombia prohibits all forced labor. Forced labor shall mean any work or service exacted from an individual under the threat of any penalty and for which the individual has not voluntarily offered himself. No citizen can be forced into forced labor except in the case of a legal conviction.

7.8 Conflict of Interest

Partners Colombia requires that all potential conflicts of interest be reported immediately to the PD and Partners HQ. A personal conflict of interest is a situation in which an employee, or entity representative has a financial interest, personal activity or relationship that could impair the employee's ability to act impartially when performing activities on behalf of Partners Colombia. To avoid a conflict of interest, Partners Colombia does not allow any employee, entity representative or any member of an employee's immediate family to receive a sub-award or have any financial or other interest in the entity selected for a sub-award without disclosing the conflict. Additionally, all employees, and representatives of Partners Colombia must neither solicit nor accept gratuities, favors, or anything of monetary value from sub-recipients or prospective sub-recipients. Any outside business dealings of Partners Colombia's employees must be legal and not conflict in any manner with Partners Colombia's operations. Outside business dealings include, but are not limited to, any investments, loans, employment, or business ownership by Partners Colombia's employees.

Furthermore, contracts or transactions (i) between Partners and one or more of its board members, officers, or employees, or (ii) between Partners and any corporation, partnership, association or other organization in which one or more of its board members, officers or employees are directors or officers, or have a financial interest, shall not be void or voidable solely for this reason, or solely because the board member, officer or employee is present at or participates in any meeting which authorizes the contract or transaction, or solely because his, her, or their votes are counted for such purpose, if:.

1. The material facts regarding the relationship or interest are disclosed or are known to the Board of Directors, and the Board of Directors in good faith authorized the contract or transaction by the affirmative votes of a majority of the disinterested board members or officers, even though the disinterested board members or officers may then become less than a quorum; or
2. The material facts regarding the relationship or interest are disclosed or are known to the Board of Directors and officers voting thereon and the contract or transaction is specifically approved in good faith by a vote of the Board of Directors; or
3. The contract or transaction is fair to Partners as of the time it is authorized, approved, or ratified by the Board of Directors.

Common or interested Board members or officers may be counted in determining a quorum at any meeting of the Board of Directors which authorizes the contract or transaction, provided, however, that the interested person or persons shall be excluded from the room during the discussion of the contract or transaction in question and during the vote thereon.

7.9 Confidentiality

Partners Colombia's work makes it essential that employees and consultants do not divulge proprietary company information unless expressly authorized by an officer of the company. Partners Colombia's employees and independent contractors may have access to and become acquainted with proprietary and confidential information such as client lists, rates, financial records, internal structure, internal policies, publications, inventories, computer software and related documentation and similar information, which is owned by Partners Colombia, and which is regularly used in the operation of the business of the company. All employee and consultant agree to not use such proprietary or confidential information obtained during employment or contractual relationship with Partners Colombia as a means of making private profit.

Additionally, certain information concerning Partners Colombia's business is a valuable, special, and unique asset of the company. Employees and consultants agree not to disclose Partners Colombia's proprietary or confidential information to any person or entity for any reason, except as required in the course of employment or contractual relationship, or required by law or court order; and further agree not to make use of such information his/her own benefit or the private benefit of others.

All files, records, documents, drawings, specifications, equipment, and similar items relating to the business of Partners Colombia, including computer software or software documentation, shall remain the exclusive property of Partners Colombia and shall not be reproduced, removed, or transmitted from the premises of the company under any circumstances without the prior written consent of the Partners Colombia. Upon termination of employment with Partners Colombia, employees and consultants are required to return all company property to the PD.

Employees and consultants also agree that if any trade secret, formula, device, technology, technical information, process, etc. ("invention") is made during the course of employment or contractual relationship, alone or jointly with others which is made with Partners Colombia's equipment, supplies, facilities, trade secrets or time, or which relates to the business of Partners Colombia, or which results from any work performed by me for Partners Colombia, such invention will belong to Partners Colombia and Partners HQ, whom will have full authority to use, transfer or license it. Partners Colombia and Partners HQ will have the right to keep such invention as a trade secret if it so chooses. It is further agreed that Partners Colombia is not required to designate the employee or consultant as the inventor or author of any such invention if it is distributed publicly or otherwise. Any violation of this policy may lead to disciplinary action, up to, and including termination.

7.10 Drug Free Workplace

It is the policy of Partners Colombia to provide staff members with a working environment that is free from the problems associated with the use of illegal drugs. The use of illegal drugs is inconsistent with the behavior expected of staff members and subjects Partners Colombia to unacceptable risks of workplace accidents or other failures that would undermine Partners Colombia's ability to operate effectively and efficiently.

In addition, the use of illegal drugs is contrary to the mission of Partners Colombia, which includes providing drug prevention education to communities in Latin America, the Caribbean, and the United States. In order to carry out this mission, Partners employees must set an example in their behavior inside and outside the workplace. Therefore, employees found to be engaged in the use of illegal drugs or the unlawful manufacture, distribution, or dispensing of a controlled substance, either in or outside the Partners Colombia's workplace, are in violation of Partners Colombia's policies and are subject to disciplinary action, which may include termination. Each staff member must agree to notify Partners Colombia of any criminal drug statute conviction for a violation occurring in the workplace no later than five (5) days after such conviction. Non-compliance with this policy will result in disciplinary action.

7.11 Smoke Free Workplace

It is the policy of Partners Colombia to prohibit smoking on all Partners Colombia's premises in order to provide and maintain a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind."

The smoke-free workplace policy applies to:

- All areas of Partners Colombia building
- All visitors to the Partners Colombia
- All staff and consultants working on Partners Colombia's premises

Smoking is permitted outside the building where designated. Employees who violate the smoking policy will be subject to disciplinary action.

7.12 Alcohol Policy

An employee whose use of alcohol adversely affects job performance is subject to disciplinary action, which may include discharge. Partners Colombia may also require that an employee seek assistance and/or counseling services as a condition of employment in appropriate circumstances.

7.13 Code of Ethics

Partners Colombia has established the below Code of Conduct. It has consequently incorporated these standards, not only in relation with its employees, but also with its consultants, and where the non-respect of all or one of them is a justifying cause of termination of an employee contract or the end of a specific job. Each employee, volunteer, consultant and representative and member of the Partners Network is expected to adhere to a high standard of ethical conduct. The good name of Partners Colombia depends on the way its network and representatives conduct business and the way the public perceives that conduct. Unethical actions, or the appearance of unethical actions, are not acceptable.

Below is Partners Colombia’s standard code of conduct principals:

1. Sexual exploitation and abuse by employees is a serious misconduct that may result in termination of the employee's contract.
2. Sexual activity with children (persons under 18 years of age) is prohibited, regardless of the legal age established in the country. It is not accepted as a defense that there is a misleading assessment of the age of the child.
3. The exchange of money, employment of goods or services for sex, including sexual favors or other forms of behavior used to humiliate, degrade, or exploit, is prohibited. This includes the exchange of assistance that must be addressed to the beneficiaries.
4. Sexual relations between humanitarian workers and beneficiaries are strongly censored because they are based on inherent inequalities. This type of relationship transgresses and violates the credibility and integrity of the work of humanitarian assistance.
5. In the event that an employee of the Humanitarian Section is aware of or makes reference to suspicious behavior related to sexual abuse by a co-worker, whether working in the same office or not, he or she should report it to your supervisor or Partners HQ.

6. Humanitarian staff is required to create and maintain an environment that prevents sexual exploitation and abuse and can promote the implementation of a code of conduct. Managers at all levels have special responsibilities to support and develop systems that maintain this environment.
7. All persons interacting with or representing the Partners Network should maintain the confidentiality of information entrusted to them by Partners Colombia and any other confidential information about the organization, its activities, partners, funders, stakeholders, or suppliers, that comes to them, from whatever source, except when disclosure is authorized or legally mandated.
8. Persons interacting with or representing Partners Colombia in a foreign country are responsible for knowing and complying with these laws. Furthermore, anyone interacting with or representing the Partners Network must also take care to understand and respect the cultures and customs of the countries where Partners operates. Anyone working in the international arena should be aware of the US Foreign Corrupt Practices Act. The Act prohibits giving anything of value to officials of foreign governments in order to obtain or retain business. It is prohibited for any representative of Partners Colombia or its network to engage in bribery, kickbacks, payoffs, or other corrupt business practices. It is also Partners Colombia's policy to fully comply with all applicable US export, customs and trade control and regulations, licensing/trademarking/copyright requirements and other relevant US and international laws.
9. Partners Colombia intends to provide a pleasant, healthful, comfortable, and professional atmosphere that is free from intimidation, hostility or other offenses which might interfere with the pursuit of our mission. Moreover, Partners Colombia does not tolerate discrimination based on gender, race, maternal language, color, sex, religion, age, pregnancy or maternity, political opinion, disability, sexual orientation, disability or health condition, economic situation, philosophy, national or family origin or social origin, or any other legally prohibited characteristic. Harassment or

discrimination based on sex, or any other legally prohibited basis is illegal and is contrary to the policy of Partners Colombia.

If you know of or suspect a violation of applicable laws, rules or regulations or this Code, you must immediately report that information to the PD and Partners HQ. Individuals can also contact Partners confidential hotline at +1 (443)-951-4951. Partners HQ will determine, or shall designate appropriate persons to determine, appropriate action in response to violations of this Code.

Partners Colombia prohibits any retaliation against anyone who makes a good faith report of a suspected violation or who participates in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any person for making a valid and truthful complaint or good faith report of a violation. Nothing in this policy is meant to, nor should it be interpreted to, in any way limit your rights under any applicable federal, state, or local laws.

7.14 Grievance Policy

Partners Colombia will provide employees with the opportunity to bring work-related problems and concerns to the attention of management and to resolve such problems fairly and promptly. Any employee who feels that s/he has been treated unfairly or inequitably regarding a condition or action affecting employment should bring the matter to the attention the PD, Partners HQ or to the confidential hotline at +1 (443)-951-4951.

7.15 Whistleblower Policy

Employees have the duty to comply with all applicable laws and to assist Partners Colombia to ensure legal compliance. Partners Colombia encourages its employees to report improper activities in the workplace and will protect employees from retaliation for making any such report in good faith. Employees have the right to report, without suffering retaliation, any activity by the organization or its employees that the employee reasonably believes:

- Violates any local, state, or federal law;

- Violates or amounts to noncompliance with any local, state, or federal rule or regulation;
- Violates fiduciary responsibilities by a corporation to its stakeholders or employees.

In addition, employees can refuse to participate in an activity that would result in a violation of, or noncompliance with, any local, state, or federal statutes, rules, or regulations. Employees are also protected from retaliation for having exercised any of these rights in any former employment. The whistleblower protection laws do not entitle employees to violate a confidential privilege of the organization (such as attorney-client privilege) or improperly disclose trade-secret information.

7.15.1 Whistleblower Complaint Procedure

Any employee who suspects a violation of ethics or legal compliance is required to report the situation(s) to his/her supervisor, the PD, Partners HQ, or the confidential hotline at +1 (443)-951-4951.

7.15.2 Protection from Retaliation for Whistleblower Complaint

Partners Colombia is prohibited from discharging an employee or taking other adverse employment action against an employee in retaliation for the employee's good faith complaint about safety and health hazards or other violations of law in the workplace and the environment.

7.16 Labor Disputes

Labor disputes shall be governed by Title II, Part Two, of the Código Sustantivo del Trabajo. In the case a labor dispute arises, the employees and Partners Colombia will work to immediately solve and rectify the conflict and carry out direct amicable conversations to that effect. In the event that the labor dispute cannot be resolved between the two parties, the employees will decide in an assembly meeting, in which the "Ministerio del Trabajo" may be requested to participate, if the dispute is solved by an arbitration tribunal or if a strike is organized and deployed, all relevant documentation and minutes of the assembly meeting will be sent to the "Ministerio de Trabajo".

In case the dispute is submitted to an arbitration tribunal, such a tribunal may carry out an investigation to determine the causes of the dispute. The arbitration tribunal will decide on all disputes related to salaries, working conditions that are not determined by the legal provisions, regulations, collective conventions, or agreements in force, as well as those related to negotiation and revision of the terms of collective conventions.

7.17 Hygiene, Health & Workplace Security

Partners Colombia will take all necessary precautions to effectively protect the life, safety, and health of employees. In order to ensure this, Partners Colombia will take the necessary measures that are aimed at:

- Preventing accidents in the workplace;
- Ensuring that all machinery, equipment, and other operations have security measures in place and are kept in good condition and will be subject to periodic inspection and maintenance;
- Preventing occupational diseases;
- Preventing fires;
- Providing a healthy and clean work environment;
- Providing the necessary clothing and equipment to ensure appropriate protection;
- Providing security guards for the office as necessary;
- Warning employees of any workplace dangers that could impact their health;
- Carrying out training activities on hygiene and safety at work as needed;
- Ensuring proper hygiene in sanitary facilities;
- Ensuring that appropriate hygiene is maintained in facilities where food or drinks are prepared; and
- Maintaining a first aid kit in the office.

All employees share the responsibility for workplace safety. The PD is responsible for developing safety awareness and ensuring that all operations are performed with regard for the safety and health of all employees involved. Employees are responsible for continuously practicing safety while performing their job duties. Employees are encouraged to be alert to unsafe conditions and report them promptly to the PD. All reports can be made without fear of reprisal. Partners Colombia will ensure that all workers are insured against occupational accidents and sickness in accordance with Colombian law.

7.17.1 Housekeeping

Safety is directly related to neatness and cleanliness. Items that are out of place can cause accidents and injuries, and lack of cleanliness can quickly become a health risk. Furthermore, our office reflects our staff and organization to outside guests, so it is everyone's shared responsibility to project the best impression possible.

Employees are expected to keep their work areas neat, organized, and free of clutter or objects that could interfere with the work process or cause accidents. Employees should assist with keeping public areas presentable by:

- Returning tools and supplies to their proper place and condition after use.
- Properly disposing of trash and cleaning spills or other messes.
- Storing limited food items in the refrigerator, and promptly consuming or removing them.
- Making sure hallways, walkways and other publicly visible areas are free and clear of dangerous obstacles or unsightly objects.
- Reporting safety and maintenance issues immediately.

7.17.2 Job Related Injury Reporting

Employees should immediately report all work-related illnesses, injuries, or occupational disease exposures to the PD or Partners HQ. Employee should complete the Employee Incident Report Form, found in Annex G. Once reported, the PD in conjunction with Partners HQ will determine the next steps.

Partners does not discriminate or retaliate against employees who have filed legitimate job-related injury report. Supervisors will not take or threaten any action to compel or persuade employees not a job-related injury report.

8. Recruitment and Labor Contracts

8.1 Application Process for Personnel

After a position is posted and available, the applicant must complete the Application Form for Personnel, template is provided in Annex H. The applicant will then send the complete application to the PD. Only the final list of applicants who meet the qualifications will be sent to the supervisor of the position and Partners HQ, who will proceed with the recruitment process, with support from the PD. Note that all recruitment of staff will be internal and/or external.

8.1.1 Internal Recruitment

In order to promote promotion within Partners Colombia as much as possible, the vacant position may be filled by any employee who would be interested and who, after evaluation, meets the requirements to fill the vacancy. If a promotion is made internally, the employee may be eligible for a salary increase and other changes as determined by the new position.

8.1.2 External Recruitment

When external recruitment for a vacancy is needed, the job offer should be actively advertised and promoted locally and internationally. The advertisement should be clear, accurate and brief, but should also provide terms of reference, necessary training, and experience, and how to submit an application. At a minimum, advertising notices will provide:

1. Reference terms
2. Information on the necessary training and experience of the candidate
3. Place and deadline for submission of applications

The PD will review all CVs received and those meeting the selection criteria will be forwarded to the supervisor of the position and Partners HQ.

8.1.3 Transfer within the Partners Colombia

An employee's transfer means moving from one department to another, to a similar position. The salary remains unchanged. This is not a disciplinary measure. The transfer of an employee is carried out:

1. By decision of the PD, when in the interests of Partners Colombia and Partners HQ
2. At the request of the employee, the case will be considered according to the possibilities within Partners Colombia
3. At the request of his/her immediate supervisor

Any transfer of position requires the decision of the managers of the two (2) departments concerned, PD and Partners HQ.

8.1.4 Promotion within the Partners Colombia

Promotion is not automatic. However, following the annual performance evaluation, an exceptional employee may benefit from promotion if there is availability within the organizational structure at Partners Colombia, based on the needs of each project, and the availability of resources.

8.2 Selection Process for Personnel

Both internal and/or external candidates should be reviewed and interviewed. A selection committee will be organized and must include at a minimum the position's supervisor, PD and Partners HQ. It will have two potential phases:

1. An interview of the successful candidates by a selection committee to assess:
    - The qualifications of the candidate in relation to the profile of the position to be filled
    - His/her past experience
    - His/her sense of responsibility
    - His/her ability to perform the duties of the position
    - His/her ability to communicate

2. A written or practical test (if required) to judge the technical qualifications of the candidate. This will include a matrix for evaluating candidates through a scoring system. This will support the procurement process for selecting the final candidate to fill the position.

Note: some projects will require specific qualification/requirements before hiring any Key Personnel. Any specific donor requirements should be followed when hiring any personnel.

Final candidate's information will be sent to the PD and Partners HQ for final approval. Once approved, the candidate will sign his/her contract and be provided with his/her orientation. All offer letters/agreements should, at a minimum, be signed by both the employee and PD.

8.3 Employee vs. Contractor Definition

8.3.1 Employee Definition

Employment contract is one by which a natural person is obliged to provide a personal service to another person, natural or legal, under the continued dependence or subordination of the second and through remuneration in accordance with Chapter 1, Article 22 of the Código Sustantivo de Trabajo.

8.3.2 Contractor Definition

An independent contractor does not provide services under the direction and dependence of another and is not subject to specific working hours. Independent contractors therefore and not representatives or intermediaries, the natural or legal persons that contract the execution of one or several works or the provision of services for the benefit of third parties, for a certain price, assuming all the risks, to realize them with their own means and with freedom and technical and managerial autonomy. But the beneficiary of the work or owner of the work, unless it is work that is foreign to the normal activities of your company or business, will be jointly and severally liable to the contractor for the value of the wages and benefits and compensation to which the workers are entitled, solidarity that does not prevent the beneficiary from stipulating with the contractor the guarantees of the case or to repeat against him what was paid to those workers (Article 34, Código Sustantivo de

Trabajo). Likewise, Partners in developing its purpose may enter into contracts of service provision or independent consulting, where it will be expressly stated that the Contractor will not have any type of subordination and will provide the services in a technical manner and by its own means.

8.4 Labor Contract Definition

Colombian labor laws are territorial in nature. Colombian labor law is applicable to all labor relationships developed in Colombia, regardless of the nationality of the parties (employer or employee) or the place where the contract is executed (Article 2, Código Sustantivo de Trabajo).

8.4.1 Employee Labor Agreements

Any relationship in which one person obliges himself/herself to provide any form of service to another in exchange for remuneration and under the direction or supervision of the latter is considered to be an employment contract and, as such, subject to the provisions of the Labor Code (Chapter 1, Article 22 Código Sustantivo de Trabajo).

Per Partners Colombia, individual contracts of employment must be written, and all salaries quoted in Colombian pesos at the gross value. Labor contracts shall be drafted in Spanish in two originals, one of which shall be given to each of the contracting parties. This includes all new contracts, modifications and/or novation.

All the legally established employee benefits are deemed to be automatically included in any employment contract. The minimum legal terms and conditions apply by default, unless an applicable collective agreement includes any other term which improves the employment conditions for the employee.

8.5 Types of Contracts

Below are the options for contracts at Partners Colombia:

- *Fixed-Term Contract (Contrato a Término Fijo)* -The fixed-term contract is the one which term is fixed in advance by the will of the parties (Art. 46 - Código Sustantivo de Trabajo y Art. 28 de la Ley 789 de 2002). Its duration cannot be more than three (3) years. Fixed term employment contracts with a term of less than one (1) year can be renewed for three (3) equal or shorter terms, after which any further renewal shall be for one (1) year. Fixed term contracts of one-year (1) to three (3) years duration may be renewed indefinitely. Fixed term employment contracts do not become ever indefinite term contract unless the parties agree on the change. If a renewal is not desired, a prior notice of at least thirty (30) calendar days, must be given to the other party, before the expiration date of the contract, however the fixed term employment contracts with a term equal or less than thirty (30) days does not require a prior notice.
- *Occasional or Temporary Contract (Contrato Temporal o Contrato Ocasional de Trabajo)*- It has a duration no greater than one (1) month and it refers to activities different from the normal activities of the employer (Art. 6 - Código Sustantivo de Trabajo).
- *Contract Civil for Provision of* Services (Contrato Civil por Prestacion de Servicios) – The payment for services will not be that of an employer and employee, but rather of an independent contractor. As such, these agreements do not provide social benefits and the duration of the agreement is agreed upon between the parties depending on the work to be done. The payment will be made as agreed less the mandatory "retencion".
- *Training Contract (Contrato de Aprendizaje)*- This contract is focused on the training of practitioners (Article 81 of the Código Sustantivo de Trabajo). This contract must not exceed [include number of days up to two years] days and is for the purpose of an individual acquiring training in a specific trade by working in the common administrative, commercial, financial, or manufacturing activities of the organization. The individual will receive monetary maintenance and support which shall not constitute salary. (Article 30 de la Ley 789 de 2002).

- *For the Duration of the Work or Hired* Service *(Contrato de Obra o Labor)* - The term of the contract depends on the duration of the work for which the person has been hired. Such work must not be part of the ordinary activities of the organization. It is necessary to describe in detail the duties or work subject of this contract and for this reason, it must be written. Contracts for the duration of the work cannot be renewed (Article 45 - Código Sustantivo de Trabajo).
- *Open-Ended/Indefinite Term Contract (Contrato a Término Indefinido)* - The open-ended contract is one whose term is not provided for in advance (Art. 47 - Código Sustantivo de Trabajo) and which can cease at any moment by the will of the worker or the employer, without prejudice to the legal provisions regulating the termination of the contract of employment. A contract of occasional or temporary nature which is tacitly renewed shall be regarded as having been transformed into a contract of indefinite duration, granting the worker all the benefits and legal advantages attached to it.

8.5.1 Payment Structure for Labor Contracts

Upon the creation of an employment opportunity, the PD must determine what type of payment structure for the labor contract will be needed, based on the work to be performed. The following types of payments options are available:

- Fixed Price – Fixed Price consultant agreements are used mainly for assignments in which the content and length of the services and the required output of the worker are precisely specific and for these reasons the worker can generally control the scope of work and duration of services. Under a fixed price agreement Partners Colombia agrees to pay the worker a predetermined set amount of money for certain products of specified technical natures, such as reports, project designs, etc. that is to be delivered within a specified deadline, the quality of which can usually be readily assessed. Fixed-price agreements provides for a price that is not subject to any adjustment on the basis of the worker's cost experience in performing the contract. It provides maximum incentive for the worker to control costs and perform effectively.

- Time-Based (Hourly, Weekly, Monthly, etc.) – In a time-based agreement, the worker provides services at a pre-determined time-based unit rate and records all hours worked under the scope of work. Time based labor agreements are recommended when the nature and scope of the services provided are such that a scope of work provides general guidelines for the activities to be performed and when it becomes difficult to determine the exact time with sufficient precision, which is common in complex scope of works.

8.5.2 Pay Structure

All permanent staff members of the organization, with the exception of consultants, are paid according to the salary schedule of Partners Colombia.

Each position in a particular category is based on a combination of:

- a) Level of responsibility
- b) Qualifications required for this position

8.6 Content of Labor Contracts

According to Chapter 1, Article 23 of the Código Sustantivo de Trabajo, the essential elements of the labor contract are:

1. The specific and personal activity of the worker, in other words, done by himself/herself;
2. The continued subordination or dependency of the worker on the employer enables the employer to demand compliance with orders, at any time, regarding the approach, time, or amount of work, and impose regulations, which must be maintained during the contract period. All this without affecting the honor, dignity, and minimum rights of the worker in accordance with treaties or international conventions on human rights related to the matter that bind the country; and
3. A salary as compensation of the service.

In addition to the previous components, Partners Colombia’s employment contract must contain the following information in accordance with Article 39, Código Sustantivo de Trabajo:

- First and last name of employee;
- Identification Number (Cedula);
- Domicile of the parties;
- Nationality;
- Duration and working hours;
- Nature of the work to be done, including a list of responsibilities and tasks;
- Place or places where the contract will be performed;
- Salary, payment terms and payment periods;
- Signatures of the contracting parties;
- Places and date of the binding of the contract.

Likewise, Partners in developing its purpose may enter into contracts of service provision or independent consulting, where it will be expressly stated that the Contractor will not have any type of subordination and will provide the services in a technical manner and by its own means. “They are independent contractors and, therefore, true {employers} and not representatives or intermediaries, the natural or legal persons who contract the execution of one or more works or the provision of services for the benefit of third parties, for a certain price, assuming all the risks, to be carried out with their own means and with freedom and technical and managerial autonomy. But the beneficiary of the work or owner of the work, unless it involves work outside the normal activities of his company or business, will be jointly and severally liable with the contractor for the value of wages and benefits and compensation to which they have workers right, solidarity that does not prevent the beneficiary from stipulating the guarantees of the case with the contractor or from repeating against him what has been paid to those workers”

8.7 Obligations of Binding Labor Contract

Per a legal labor contract, below are the obligations and prohibitions of each contracting party in accordance with the Código Sustantivo de Trabajo.

The workers' obligations are as follows in accordance with Article 58 of the Código Sustantivo de Trabajo:

- Perform the work personally, in the stipulated terms; observe the precepts of the regulation and abide by and comply with the orders and instructions given in a particular way by the employer or his representatives, according to the established hierarchical order;
- Don't communicate with third parties, except for the express authorization, the information you have about your work, especially about things that are of a reserved nature or whose disclosure may cause damages to the employer, which does not prevent to report common crimes or violations of the contract or legal labor standards before the competent authorities;
- Preserve and restore a good condition, except for natural deterioration, the instruments and supplies that have been provided and the raw materials left over;
- Rigorously keep morale in relationships with your superiors and colleagues;
- Communicate opportunely to the employer the observations that it considers conducive to avoid damages;
- Provide possible collaboration in cases of accident or imminent risk that affect or threaten the persons or things of the company or establishment;
- Observe carefully and carefully the instructions and preventive orders of accidents or occupational diseases;
- The pregnant worker must begin to enjoy the paid leave at least one (1) week before the probable date of delivery; and
- Fulfill all other obligations that would be specifically stipulated in the contract.

Partners Colombia obligations are as follows in accordance with Article 57 of the Código Sustantivo de Trabajo:

- Make available to workers, unless otherwise stipulated, the appropriate instruments and raw materials necessary for carrying out the work;
- Procure appropriate local workers and adequate elements of protection against accidents and occupational diseases in a manner that reasonably guarantees safety and health;
- Immediately provide first aid in case of accident or illness;
- Pay the agreed remuneration in the conditions, periods and places agreed upon, after deduction of any legal and contractual charge for the repayment of loans, advances, proven losses, and damages affecting the employer's revenues, property or facilities agreed by the employee.;
- Keep absolute respect for the personal dignity of the worker, his beliefs, and feelings;
- Grant the worker the necessary licenses for the exercise of suffrage; for the performance of temporary official positions of forced acceptance; in case of serious domestic calamity duly proven; to perform union commissions inherent to the organization, or to attend the burial of their peers, provided that they notify the employer or their representative with due opportunity and that, in the last two (2) cases, the number of those who are absent is not such that impair the operation of the company;
- Give the worker who requests it, at the expiration of the contract, a certification stating the time of service, the nature of the work and the salary earned;
- Pay the worker the reasonable expenses of coming and returning, if to render his services he did change his residence, unless the termination of the contract originates due to the fault or will of the worker. If the worker prefers to settle in another place, the (employer) must pay him for his transfer until the expenses that would be demanded to return to the place where he previously lived. In the expenses of transfer of the worker, they are understood including those of the relatives who live with him;

- Comply with the regulations and maintain order, morality, and respect for the laws;
- Grant the worker in the event of the death of his spouse, permanent companion or of a family member until the second degree of consanguinity, first of affinity and first civil , a paid license for mourning of five (5) business days;
- Grant a pregnant worker paid leave in such a way that she takes leave one (1) week before or two (2) weeks before the probable date of delivery, according to the decision of the future mother or according to the medical certificate referred;
- Fulfill all the other obligations strictly stipulated in the contract.

Partners Colombia prohibitions are as follows in accordance with Article 59 Código Sustantivo de Trabajo:

- Deduct, withhold, or compensate any amount of the number of wages and benefits in money that corresponds to the workers, without prior written authorization from them for each case, or without judicial order, with the exception of the following:
    - With respect to salaries, deductions, withholdings, or compensations may be made in the cases authorized by articles 113, 150, 151, 152 and 400.
    - Cooperatives can order withholdings of up to fifty percent (50%) of salaries and benefits, to cover their credits, in the manner and in the cases authorized by law.
- Forcing workers in any way to buy merchandise or supplies of the employer;
- Demand or accept money from the worker as a bonus to be admitted at work or for any other reason that refers to its conditions;
- Limit or pressure workers in any way in the exercise of their right to association;
- Impose obligations of a religious or political nature to workers, or hinder or prevent them from exercising the right to vote;
- Make, authorize, or tolerate political propaganda in the workplace;
- Make or allow all kinds of raffles, collections, or subscriptions on the work sites;

- Use in the certifications referred to above to harm the interested parties, or adopt the "blacklist" system, whatever modality they use, so that workers who separate or are separated from the service are not selected in other companies; and
- Execute or authorize any act that violates or restricts the rights of workers or that offends their dignity.

Employee prohibitions are as follows in accordance with Article 60 of the Código Sustantivo de Trabajo:

- Subtract from the factory, workshop or establishment, work tools and raw materials or processed products. Without permission from the (employer);
- Submit to work while intoxicated or under the influence of narcotics or unnerving drugs;
- Keep weapons of any kind on the job site, except those legally authorized by the security;
- Miss work without just cause of impediment or without permission from the (employer), except in cases of strike, in which they must leave the place of work;
- Intentionally reduce the pace of work execution, suspend work, promote untimely suspensions of work, or excite their declaration or maintenance, whether or not they participate in them;
- Take collections, raffles and subscriptions or any kind of propaganda in the workplace;
- Shorten the freedom to work or not to work, or to join or not join a union or stay in it or retire; and
- Use the tools or tools provided by the (employer) on objects other than the contracted work.

8.8 Termination & Suspension of Labor Contract

Labor contracts may be terminated entirely or suspended for a period of time in certain circumstances. The termination and suspension of labor contracts in Colombia will be governed by the laws and labor jurisprudence, so that the rules established by the Código Sustantivo de Trabajo will apply.

8.8.1 Temporary Suspension of Labor Contract without Liability for the Parties

The employment contract may be suspended under the terms of Article 51 of the Código Sustantivo de Trabajo, as follows:

1. Due to an inevitable accident or fortuitous event that temporarily prevents its execution.
2. For the death or disqualification of the employer.
3. By suspension of activities or temporary closure of the company, establishment, or business, in whole or in part, up to one hundred twenty (120) days for technical or economic reasons or any other independent of the will of the employer, by prior authorization of the Ministry. The employer must inform his employees in writing of the request that is raised in this respect.
4. By temporary permission granted by the employer to the employee or by disciplinary suspension.
5. Because the employee is called to provide military service. In this case, the employer is obliged to retain the position of the worker for up to thirty (30) days after the end of the service. Within this term the employee can return to his tasks, when he considers it convenient, and the employer is obliged to admit it as soon as he manages his reinstatement.
6. For preventive detention or for corrective arrest of the employee that does not exceed eight (8) days and whose cause does not justify the termination of the contract.
7. By strike declared lawfully.

Once the causes of the temporary suspension of work have disappeared, the (employer) must notify the employees, in cases where they treat the three (3) first ordinals of the previous article, the date of resumption of work, by means of personal notification or notices published not less than twice in a newspaper of the locality, and must admit to their previous occupations all the employees who appear within three (3) days following the notification or notice.

During the period of the suspensions contemplated in article 51, the obligation to provide the promised service is interrupted for the worker, and for the employer, to pay the salaries of those periods, but during the suspension they are paid by the employer, in addition to the obligations that have already arisen before, those that correspond to it due to death or illness of the workers. These periods of suspension can be discounted by the (employer) when liquidating vacations, layoffs, and retirements.

8.8.2 Termination of Labor Contract

According to Article 61 of the Código Sustantivo de Trabajo, there are 2 (two) ways in which a labor contract can be terminated. Note there are special cases where it is not possible to terminate an employment agreement without the authorization of the Ministry of Labor or a Labor Judge, even with just cause:

- Employees who are pregnant or breastfeeding for a period of up to six months (this protection extends to a father/domestic partner who is an employee when the mother is unemployed and included as her beneficiary with the social security authorities).
- Employees who are mentally or physically impaired or economically vulnerable and in a manifestly weak condition, including employees whose health condition substantially limits them to comply with their labor duties.
- Employees who are less than 3 years away from complying with the requirements to obtain a retirement pension.
- Union leaders cannot not be terminated unless a labor judge authorizes it and only for the just causes established in Colombian Labor Code and the company's policies and/or procedures.

1) ***As a matter of law***; the labor contract ends (Article 61, Código Sustantivo de Trabajo):

a) By death of the employee;

b) By mutual consent;

c) By expiration of the agreed fixed term;

d) By termination of the work or work contracted;

e) By liquidation or definitive closure of the company or establishment;

f) Due to suspension of activities by the employer for more than one hundred and twenty (120) days;

g) By enforceable sentence;

h) By unilateral decision in the cases of the Article 7, of the Decree-Law 2351 of 1965, and 6 of this law;

i) For not returning the employee to his job when the causes of the suspension of the contract disappear.

In the cases contemplated in subparagraphs e) and f) of this article, the employer must request the corresponding permit from the Ministry of Labor and Social Security and inform its workers in writing of this fact. The Ministry of Labor and Social Security will resolve everything related to the permit within a period of two (2) months. Unjustified compliance with this term will incur the official responsible for the cause of punishable misconduct under the current disciplinary regime.

2) ***By the will of one of the parties****;* there are just causes to terminate the employment contract unilaterally (Art. 62, Código Sustantivo de Trabajo):

A.) By the employer with just cause:

1. If the employee has lied by presenting false certificates for his admission or tending to obtain an undie advantage.

2. Any act of violence, injury, ill treatment, or serious indiscipline incurred by the employee in his work, against the (employer), members of his family, managerial staff, or co-workers.
3. Any serious act of violence, insult or bad treatment incurred by the employee outside the service, against the (employer), the members of his family or his representatives and partners, workshop leaders, guards, or wardens.
4. Any material damage caused intentionally to buildings, works, machinery and raw materials, instruments and other objects related to work, and any serious negligence that endangers the safety of people or things.
5. Any immoral or criminal act that the employee commits in the workshop, establishment, or place of work or in the performance of their work.
6. Any serious violation of the obligations or special prohibitions that concern the employee in accordance with articles 58 and 60 of the Código Sustantivo de Trabajo, or any serious fault classified as such in collective agreements or conventions, arbitration decisions, individual contracts, or regulations.
7. The preventive detention of the worker for more than thirty (30) days, unless later acquitted; or the correctional arrest that exceeds eight (8) days, or even for a shorter time, when the cause of the sanction is sufficient in itself to justify the termination of the contract.
8. Whether the employee reveals technical or commercial secrets or discloses matters of a reserved nature, to the detriment of the company
9. The poor performance at work in relation to the ability of the employee and the average performance in similar tasks, when not corrected within a reasonable time despite the requirement of the (employer).
10. The systematic non-execution, without valid reasons, on the part of the employee, of the conventional or legal obligations.
11. All vices of the employee that disturbs order of the establishment.

12. The systematic reluctance of the employee to accept preventive, prophylactic, or curative measures, prescribed by the doctor of the (employer) or by the authorities to avoid illnesses or accidents.
13. The ineptitude of the worker to perform the work entrusted.
14. The recognition to the employee of the retirement pension or disability being at the service of the company.
15. Contagious or chronic illness of the employee, who does not have professional character, as well as any other illness or injury that makes him incapable for work, whose cure has not been possible for one hundred and eighty (180) days, provided permission by the Ministerio del Trabajo is previously granted. The dismissal for this cause may not be made until the expiration of said period and does not exempt the (employer) from the benefits and legal and conventional indemnities derived from the illness.

In all the previous cases, the specific cause shall be pointed out by the employer and the employee will be entitled to defend himself. In the cases of numerals 9 to 15 of this section, for the termination of the contract, the employer must give notice to the employee in advance of no less than fifteen (15) days.

B.) By the employee with just cause:

1. Having suffered deception on the part of the (employer), regarding working conditions.
2. Any act of violence, bad treatment or serious threats inferred by the (employer) against the employee or members of his family, inside or outside the service, or inferred within the service by the relatives, representatives, or dependents of the (employer) with the consent or tolerance of it.
3. Any act of the (employer) or its representatives that induces the employee to commit an unlawful act or contrary to his political or religious convictions.

4. All the circumstances that the employee cannot foresee when concluding the contract and that endanger their safety or health, and that the (employer) does not agree to modify.
5. Any damage caused maliciously by the (employer) to the employee in the provision of the service.
6. The systematic breach without valid reasons on the part of the (employer), of its conventional or legal obligations.
7. The requirement of the (employer), without valid reasons, for the provision of a different service, or in places other than the one for which he was hired, and
8. Any serious violation of the obligations or prohibitions that concern the employer, in accordance with articles 57 and 59 of the Código Sustantivo de Trabajo, or any serious fault classified as such in collective agreements or conventions, arbitration decisions, individual contracts or regulations.

The party that terminates the contract of employment unilaterally must inform the other, at the time of termination, the cause or reason for that determination. Subsequently, different grounds or reasons cannot be validly invoked.

C.) Termination without just cause:

In every employment contract the condition of the resolution for breach of the agreement is covered, with compensation for damages to be borne by the responsible party. This compensation includes loss of earnings and consequential damage. In the case of unilateral termination of the employment contract without just proven cause by the employer, the employer shall owe compensation to the employee in accordance with Article 64 of the Código Sustantivo de Trabajo.

Upon termination without just cause, the employer must provide the employee with an account statement with information regarding social security payments for the last three months previous to the termination of the contract. Failure to comply with this will result in termination of the contract not being valid. (Paragraph 1, Article 64, Código Sustantivo del Trabajo).

8.8.3 Work Certificate upon Termination

If any employee requests, upon the expiration of any labor contract, for any reason, the employer must provide the employee a document that states the following:

- Start and end date;
- Type of work performed;
- Salary earned.

8.9 Probation Period 2 Months

All new employees are subject to a probationary period of two (2) months for indefinite term contracts and one-fifth of the duration of the contract for fixed-term contracts in accordance with Article 76 of the Código Sustantivo de Trabajo. The probationary period must be stipulated in writing per Article 77 of the Código Sustantivo de Trabajo. During this trial period he/she may terminate his/her services without notice. One week before the end of the probationary period, the candidate will be evaluated and if he/she does not meet the requirements of the position he/she may be terminated at the end of his/her probation, without notice, but he/she will be entitled to the Bonus and leave proportional to the number months of service and will be compensated for all time worked. Note, when successive employment contracts are entered into between the same employer and employee, the stipulation of the probationary period is not valid, except for the first contract (Article 78 of the Código Sustantivo de Trabajo).

8.10 Mandatory Notices for Termination of Labor Contract

Upon failure to perform a labor contract by either party, the affected party may unilaterally terminate the agreement and claim compensatory, incidental, and consequential direct damages.

Upon unilateral termination of the labor contract by employer, or if employer's breach of the contract gives rise to unilateral termination by employee, the employee shall be entitled to indemnification as provided in Article 64 of the Código Sustantivo del Trabajo.

At least 15 days' written notice is required in cases of poor performance. In cases of misconduct or termination without cause, no notice is required, and such terminations can be effective immediately (Article 70 of Decree 2351 of 1965 y Article 46 of the Código Sustantivo de Trabajo).

For employees with a fixed term agreement, written notice is required at least 30 days prior to the agreement's expiration (Article 46 of the Código Sustantivo de Trabajo).

The contract of employment shall remain in force throughout the notice period. If the employer immediately terminates the labor contract, the employer shall pay to the employee the amount of wages that would have been earned had he/she worked the notice period. (Indemnity of Notice).

8.11 Statutory Benefits – Severance (Indemnification) Pay

The amount of the severance payment differs in several factors such as seniority, type of contract and amount of the salary. Partners Colombia will follow the requirements set by Colombian law.

For employees who entered into agreements for the duration of a project, the severance would be the estimated salary owed to the employee until the project concludes, however in no case can severance be less than 15 days of salary (Article 46 of the Código Sustantivo de Trabajo).

For fixed-term contracts, the value of salaries corresponding to the time remaining to meet the stipulated term of the contract; or that of the period determined by the duration of the work or the work contracted, in which case the compensation shall not be less than fifteen (15) days (Article 46 of the Código Sustantivo de Trabajo).

In indefinite term contracts the compensation will be paid as follows (Article 46 of the Código Sustantivo de Trabajo):

Service Period	Severance Pay
For service up to 1 year	30 Days of Salary
More than 1 year of continuous service	20 Additional Days beyond the 30 Days of Salary above for each of the years of service subsequent to the first and proportional in nature

a) For workers who earn a salary of less than ten (10) legal monthly minimum wages:

b) For workers who earn a salary equal to or greater than ten (10), monthly legal minimum wages:

Service Period	Severance Pay
For service up to 1 year	20 Days of Salary
More than 1 year of continuous service	15 Additional Days beyond the 20 Days of Salary above for each of the years of service subsequent to the first and proportional in nature

8.12 Record Keeping for Personnel

Partners Colombia requires that all documentation related to the solicitation, hiring, review and termination of employees be retained in secure personnel folders. These folders should include all reprimands, warnings, and suspensions of each for each employee with dates and reasons. Any required documents/provisions from the donor should also be included in the personnel record. Individual personnel folders/files should be maintained for all employees. All information provided by the employee is, and remains, confidential, and the documents in his/her file may not in any way be accessed by unauthorized personnel.

For each Partners Colombia staff member there will be an individual file which will include:

1. The Curriculum Vitae
2. The employment contract
3. The job description
4. Any documentation indicating a salary increase
5. The Employee Evaluation Forms
6. Any document relating to a change in position, transfer, or promotion
7. Any offer letters or warning letters
8. Record of paid leave or any other special leave requested and obtained
9. Timesheets
10. All documents related to:

    a) Resignation

    b) Revocation

    c) Lay-off

    d) Other causes of separation.

Partners Colombia reserves the right to verify the authenticity of any document submitted by the Employee. Additionally, in accordance with Colombian law, all employee's personal data may not be disclosed or used in any way (except for employees' recruitment and internal purposes), unless the employee authorizes in writing (Law 1583 of 2012 and Decree 1377 of 2013).

8.12.1 Access to Personnel Records

The only individuals at Partners Colombia, who have access to the personnel files are the PD and the Administrative Manager. Pursuant to the habeas data right, protected by the Political Constitution, Article 15, every employee must be granted access to the files that contain information in connection with his/her employment. This review must be done in the presence of PD.

9. Worktime, Workdays and Holidays

9.1 Normal Daytime Work Hours

Work hours are time when the worker is available to the employer. Rest periods are time when the worker is not available for the employer's work.

Normal (day) worktime is 8 hours per day and 40 hours per week.

Partners Colombia observes the following working days and hours, in compliance with Colombian law:

Option A: Monday to Friday from 8 am to 5 pm, or 40 hours of work per week.

Option B: Monday to Friday from 9 am to 6 pm, or 40 hours of work per week.

Other options will be analyzed as needed and appropriate with the PD and prior approval from Partners HQ.

The PD, or his/her delegate, will inform Partners HQ on Partners Colombia staff schedule in a semi-annual basis, unless any changes happen in between the reporting periods.

All staff are required to account for all workdays Monday through Friday (unless there is a federal holiday) by working a regular day or taking the appropriate type of paid leave. There is no exception to this rule, regardless of the number of days within the month, all workdays Monday through Friday must be accounted.

9.2 Overtime - Daytime Work

Overtime refers to any hours worked beyond normal working hours listed above. All work effectively done outside of normal work hours constitutes overtime work and must be paid as such, except in the case of those in positions of leadership, trust, or management, as these employees are ineligible for overtime. Overtime hours during day work are compensated with an additional 25% surcharge. All overtime day work hours therefore are compensated at 1.25 times the daytime hourly salary. Under no circumstances may overtime work, day, or night, exceed two (2) hours per day and twelve (12) hours per week. However, Partners Colombia believes that the daily work assigned to its employees can be done as part of her/her regular schedule. Therefore, except in case of emergency or force majeure, all overtime must be approved by the supervisor. An employee requesting overtime must obtain the approval of his/her supervisor prior to overtime hours being worked. Any overtime worked without supervisor approval, will be paid, however disciplinary action will be taken including up to termination. Overtime is not considered as necessary because of the slowness of an employee in the performance of his/her duties, whether it is the improper performance of duties and/or the obligation to seek or correct errors.

9.3 Night Work

Night work is considered any work between the hours of 9:00 PM and 6:00 AM. These hours are compensated with an additional 35% surcharge. All night work hours therefore are compensated at 1.35 times the hourly salary, without prejudice to the provisions relating to the payment of work on Sundays and public holidays.

9.3.1 Night Work and Overtime

Overtime worked at night shall be paid at a rate of 75% increase from normal night hours, without prejudice to the provisions and any additional pay relating to the payment of work on Sundays and nonworking holidays. Therefore, the rate is the regular hourly rate times 1.75 for the normal day hourly rate.

9.4 Rest and Break Time

Below is the list of rest and break times allotted to all employees at Partners Colombia, in accordance with Colombian law:

- Half-Time Break - The worker shall be granted a half-time rest of a maximum of one hour between 12:00pm and 2:00pm. This rest shall not be counted within the normal hours of work.
- Break for Pregnant Women - During the period of pregnancy, the woman shall be entitled to two rest periods per day of at least half an hour each, in addition to the part-time rest for the meal.

- Breastfeeding Break - Any mother breastfeeding her child may, for this purpose, have at her place of work, two breaks of 30 minutes each within each day to breastfeed her child during the first six months. The employee may choose to join the two breaks for a 60-minute late arrival or early dismissal. Partners Colombia will grant additional breaks if the worker presents a medical certificate in which the reasons justifying the greater number of breaks is stated. These moments of rest are paid, in accordance with Article 238 of the Código Sustantivo del Trabajo.

9.5 Weekly Rest Day

After a period of five consecutive working days (regardless of the number of hours worked during this period) or 40 hours per week (plus overtime), all workers are entitled to a paid rest on Sunday. This day of rest includes at least twenty-four (24) consecutive hours on Sunday. Payment is made on the basis of the daily wage for workers with a fixed salary. For those doing piecework, payment is made on the basis of the average daily wage.

9.5.1 Work on Weekly Rest Day

If for any reason the employee must work on a Sunday, these hours are compensated with an additional 75% surcharge. All Sunday hours therefore are compensated at 1.75 times the hourly salary, without prejudice to the provisions and any additional pay relating to the payment of overtime (day and night), nightwork, and public holidays.

9.6 Holidays

All employees at Partners Colombia will be granted the following nonworking holidays in accordance with local Colombian law. If an employee must work on a holiday, the employee is paid a 75% surcharge, which will not accumulate with the increase for night work, overtime (day or night), or payment of weekly rest. Additional paid holidays may be granted at the discretion of Partners HQ.

National Public Holidays that are celebrated in Colombia, some dates may vary based on year*:

January 1	New Year's Day
January 6 (unless falling on a weekend, will be moved to the following Monday)	Epiphany
Varies (Monday after March 19th)	Saint Joseph's Day
Varies	Maundy Thursday
Varies	Good Friday
May 1	Labor Day
Varies	Ascension Day
Varies	Corpus Christi
Varies	Feast of the Sacred Heart
Varies	Feast of Saints Peter and Paul
July 20	Independence Day
August 7	Battle of Boyacá Day
Monday on or after August 15th	Feast of Assumption
Varies	Columbus Day
First Monday in November	All Saint's Day
November 11	Cartagena Independence Day

December 8	Feast of Immaculate Conception
December 25	Christmas Day

*Updated list of national public holidays will be made available at the beginning of each new year.

9.7 Compensatory Time

Partners Colombia is a flexible and humane organization. Our human resources are our most valuable asset, and we want to build them, not use them up. In this regard, time is available to exempt employees after periods of unusually excessive work with the intention they use this time to catch up on personal matters and to rest. Compensatory time is not related to hours or days worked and does not accumulate or accrue. Employees are eligible for one day (8 hours) of compensatory time within thirty (30) days of the following circumstance:

- Employees who travel for six or more consecutive days
- Administrative staff following the completion of an audit
- Employees included in proposal preparation, following submission.

This time must be coordinated in advance with your supervisor in order to meet work-related demands.

Employees who work on a Sunday shall have the right to one compensatory day or remuneration at the election of the employee, as provided by Articles 180, 182 and 183 of the Código Sustantivo del Trabajo,

All compensatory time requests must be tracked and recorded properly on the employee's timesheets in Replicon. Employees should enter compensatory time as regular hours, with a comment indicating the approved reason for the compensatory time.

10. Wages and Social Benefits

Wages and social benefits are in accordance with each employee's labor contract with Partners Colombia, taking into consideration the difference between ordinary salary and integral salary (salario integral), as applicable. Partners Colombia will pay similar wages for similar work and skills, in principle, in accordance with the market as determined by the specific skills and background of a particular worker.

Salaries in Colombia can be agreed under the ordinary or integrated salary scheme, in accordance with Colombia labor regulations. Employees under the ordinary salary scheme are entitled to the following mandatory fringe benefits and payments, in addition to the monthly remuneration:

- Severance aid (Cesantías) - Equivalent to 30 days of salary for every year of service (proportionally for fractions of a year).
- Interest on severance aid (Intereses de Cesantías)- Equivalent to 12% of the severance payment per year (proportionally for fractions of a year).
- June and December service bonus (Prima) - Equivalent to 15 days' salary, payable to the employee every calendar year. The first payment must be made on the last day of June and the second one must be made within the first 20 days of December, in proportion to the time worked during the respective calendar semester.
- Vacation - 15 working days of vacation for every year of service.

The ordinary salary scheme is mandatory for salaries below 13 times the monthly minimum wage. If the proposed salary is equal or higher to that amount, an integrated salary scheme could be agreed.

The monthly integrated salary includes the legal, social or fringe benefits provided to the employees, except for vacations (employees are entitled to 15 business days of vacation per year of service per Article 132 of the Código Sustantivo de Trabajo). This type of integral salary must be agreed by both parties and written into the offer letter. In particular this includes the following:

- Severance aid (auxilio de cesantías)
- Interest on severance aid (intereses de cesantías)
- Legal service bonuses and extra-legal bonuses
- Any type of surcharge
- Sunday and holiday surcharge and days off
- Night work surcharge
- Subsidies and in-kind supplies
- Travel allowances, within Colombian territory or abroad
- Bonuses of all types and natures

In general, any and all benefits that an employee receives in money or in kind, either regularly or sporadically, except for vacation. The minimum monthly integrated salary must be equivalent to at least 13 times the minimum wage.

10.1 Wages

All employees will be remunerated for work provided to Partners Colombia. This wage or salary can be paid per unit of time, per piece work or it can be fixed.

In order to receive remuneration for time worked, all employees will need to complete timesheets. Time records are legal documents and the basic source of information for payroll purposes; therefore, time worked must be reflected accurately and in accordance with Section 10.3 Timekeeping. All staff is responsible for approving their timesheet to certify the accuracy of all time recorded. Each supervisor will review for accuracy and approve the time sheets after the employee submits. Remuneration to all employees will be based on the approved time sheets only. All tax and other required deductions as mandated by local law will be withheld from each paycheck.

Salaries will be paid on the 25th day of each month by bank transfer. The payment corresponds to salaries for the actual month, the 1st through the end of each month, as applicable. If the pay day coincides with leave, the payment will be made to the employee's account the day before.

10.2 Wage & Leave Advances

No wage or salary advances are allowed. Furthermore, no advance leave for vacation, sick, or other leave may be taken.

10.3 Timekeeping

In order to ensure accurate timekeeping in the field, Partners HQ will require use of the electronic timekeeping and accrual platform called Replicon. Each employee will be responsible for utilizing his/her account to accurately record hours worked and request all types of leave. At the end of each week, employee will be responsible for reviewing and certifying their hours worked by clicking “submit” timesheet in Replicon. Subsequently, the respective employee’s supervisor will need to log in and review and approve of the hours worked and click “submit.” All timesheets will not be considered completed until both the employee and the supervisor have certified the timesheet. Monthly, all timesheets should be printed and filed in accordance with 4.2 Filing and Records.

Any leave that is not requested and recorded in Replicon correctly will be disallowed and not approved. Failure to accurately report time and/or leave requests can result in disciplinary action, up to and including termination.

10.4 Pay Slips (Paystubs)

All employees should receive a pay slip with their salary payment (regardless of method of payment) that documents the details of the payment. Pay slips should include the following information:

1. Name of employee
2. Period to which the payment applies
3. Units, rate, and extended amount of gross salary or wage payments

4. Units, rate, extended amount, and description for each additional category of pay
5. Units, rate, extended amount, and description for each deduction
6. Taxes withheld on behalf of the government or other taxation authority
7. Subtotaled net pay amount

Invoices are completed using information from the reviewed and approved monthly payroll timesheets.

10.5 Bonuses & Benefits

The fixed term/temporary contract and open ended/permanent contracts require legal bonus and benefits as follows.

10.5.1 Annual Premium (Prima)

Partners Colombia must pay their employees an annual premium or "prima." The bonus is required by law and is equivalent to 30 days of salary per year, which will be recognized in two payments. One payment of no more than 15 days of salary to be paid by June 30th, and a second payment of the other half of the salary, or proportional in the case of having less than one year of work to be paid by December 20th (Article 306 of the Código Sustantivo de Trabajo, modified by Article 1 of the Law of 1788 de 2016). If the employee did not work for the entire period, the bonus must be paid proportionately to the time worked. This benefit is due upon termination of employment in proportion to the time worked during the calendar semester in which the termination takes place.

10.5.2 Severance Aid (Cesantías)

In addition to the annual premium, in Colombia, according to Law 50 of 1990, employees who earn ordinary salary are also entitled to receive an unemployment allowance (severance aid) or "Cesantías." These funds are deposited annually (no later than February 14th of each year) by the employer in an unemployment fund chosen by the employee or paid out upon termination of a labor agreement. Essentially, Cesantías are a right of employees in Colombia to an amount of money that can be used when they are not employed or no longer employed by Partners Colombia. The employee cannot withdraw this severance while the employment agreement is in effect, except if the funds withdrawn are intended to buy or improve the home or for college education always that it is for a not major value than the required for such effects (Article 256 of the Código Sustantivo de Trabajo). Note this is separate from any indemnification that may be required by law upon contract termination.

Cesantías is a social benefit paid by the employer and in favor of the employee which corresponds to a month's salary for each year of service provided or proportionally to the time of service (Article 249 of the Código Sustantivo de Trabajo modified by Article 21 of Law 1429 of 2010). To determine the Cesantías, the last monthly salary earned by the worker is taken as a basis, provided that he/she has not had a variation in the last (3) three months. Otherwise, the average salary earned will be averaged over the entire period of service. When the worker has been less than one year of service, the salary earned will be averaged over the entire period of the service. Note that only the portion of your income that is defined as salary determines the employees Cesantías.

This benefit is due upon termination of employment in proportion to the time worked during the calendar semester in which the termination takes place, unless a loss in eligibility of severance aid (Cesantías) occurs.

10.5.2.1 Loss of Eligibility for Severance Aid (Cesantías)

The worker will lose the right to unemployment benefits when the employment contract ends for any of the following reasons:

1. Any criminal act committed against Partners Colombia or relatives within the second degree of consanguinity and first in affinity, or the managerial personnel of the company;
2. Any serious material damage intentionally caused to buildings, works, machinery and raw materials, instruments and other objects related to work, or
3. If the worker reveals technical or commercial secrets or discloses confidential matters, with serious prejudice to the company.

10.5.3 Interest on Severance Aid (Intereses de Cesantías)

In addition to the severance aid or "cesantías," in Colombia, according to Law 50 of 1990, employees who earn ordinary salary are also entitled to "Interest on the Severance Aid."

Together with the payment of cesantías, the employee is entitled to receive annual interest of twelve (12%) percent on the cesantías. This amount is deposited in the personal bank account of the employee. It has to be paid by January 31st of each year using the rate of the severance accrued during the immediately preceding year (Article 1, Law 52 of 1975). To calculate for proportional time, the employer takes the cesantías earned in the prior year, multiplied by the days worked (assuming an average of 30 days per month if full month is worked) times 12% and then divided by 360 days.

This benefit is due upon termination of employment in proportion to the time worked during the calendar year in which the termination takes place, unless a loss in eligibility of severance aid (cesantías) occurs.

10.6 Wage Deductions

A deduction is any withholding from an employee's salary payment made by Partners Colombia.

10.6.1 Statutory Deductions

Contributions to the Social Security System

Employees in Colombia must be enrolled in the social security system (for pension, health, and labor risks) and employers have the obligation to make the corresponding monthly contributions on time. The following deductions are mandated by Colombian law to be withheld from all remuneration payments:

	Partners Colombia (Employer)	**Employee**	**Total**
Pensions	12%	4%	16%
Health Plans*	8.5%	4%	12.5%

Social Security (Level 2)	1.044%		1.044%
Cajas de Compensación	4%		4%
Instituto Colombia Bienestar Familiar (ICBF)*	3%		3%
Sistema de Aprendizaje Nacional (SENA)*	2%		2%
Total:	**30.54%**	**8%**	**38.54%**

*Only applies to employees receiving more than 10 minimum salaries in Colombia.

10.6.2 Other Deductions

The following deduction may only be made when there is a prior written agreement between the employee and Partners Colombia:

- Those authorized by law;
- Deduction to pay back a salary advance granted by employer;
- Reimbursement for damages to office, products, etc.;
- Payments of salaries and other remunerations made in excess

10.7 Paid Leave

All employees will be entitled to the following paid leave, in addition to all the holidays mentioned above.

10.7.1 Annual Leave

All employees are entitled, after one year of service, to a paid leave of 15 working days per year worked. Each month, 1-day ¼ (1.25 days) of paid leave will be accrued. For an employee with less than one year of service, the number of annual vacation days = the number of months of service x 1.25. As a general rule, vacations must take place within the following year after having completed one year of work (subsection 1, Article 187, Código Sustantivo del Trabajo). However, Partners will allow employees to take annual leave in the first year of service with written approval from the PD. Employees may only request annual leave days that have been accrued. Once vacation leave is taken the employee should be paid at the rate that they earn at the time the leave was used.

Employees must take at least 6 days' vacation per year, which are not cumulative (Article 190, Código Sustantivo del Trabajo). The vacations must be provided, and the employer cannot compensate for this benefit in another manner, except upon termination. The annual leave does not increase by law based on years of service. The balance of the 15 annual days, per year, may be accumulated for up to 2 years, and up to 4 years for employees who are part of management, specialized in technical labors, or foreign employees whos' families reside outside of Colombia. These limits may not be increased, even with the authorization of the Ministerio del Trabajo. (Article 190, Código Sustantivo del Trabajo). After the required accumulation period for vacation has passed, if the employee has still not used the hours, they will be considered forfeited. In all circumstances vacation not taken by the employee within a period of 4 years will expire per Article 488 Código Sustantivo del Trabajo). Each employee must send their annual leave plan to the PD. Partners Colombia will plan annual leave which will take place during the year at the beginning of such year.

Partners Colombia has 12 months, after the completion of a year of work, in order to determine the date during which the employee's leave for vacations will occur. After the 12 months have ended, the employee may determine such dates unilaterally (Article 187 Código Sustantivo del Trabajo). Partners Colombia may freely anticipate the period during which vacations will occur, even before employee has completed an entire year of work, upon request by the employee or as determined by the needs of Partners Colombia's operations or how such operations evolve.

Partners Colombia may, reasonably based on the service's necessity, interrupt employee's vacation, but once the causes for the interruption cease to exist, employee must continue with his vacation leave (Article188, Código Sustantivo del Trabajo). Employees may interrupt his/her vacations if he/she turns sick or becomes pregnant. However, in that case, evidence of the health condition issued by the EPS must be provided by employee to employer.

Employees cannot accrue vacation periods year by year with the purpose of receiving a longer vacation period afterwards. Labor law provides that all employees must receive the complete, uninterrupted vacation period, meaning that the employer cannot ask an employee to suspend it, unless very qualified of indispensable employees, in which case vacation periods can be split in two. Furthermore, any agreement to relinquish the right to an annual holiday with pay or to forgo such a holiday shall be void.

Non-working holidays and interruptions of work due to sickness or maternity benefiting the worker shall not be deducted from the 15 working days of annual leave. Annual leave must be coordinated with working associates to ensure adequate coverage in the office. All vacation leave must be requested in Replicon and approved by the employee's supervisor and inform both the PD and Partners HQ. All annual leave requests must be tracked and recorded properly on the employee's timesheets.

Employees are encouraged and expected to take their annual leave. Partners Colombia will try to accommodate employee vacation plans and will be able to do this to the fullest extent if the employee and the supervisor agree on vacation plans with ample lead time.

An employee who, at the end of his/her annual leave does not show up at his/her duty without authorization by PD could be considered terminating the contract.

10.7.1.1 Annual Leave Payout upon Termination

In case of suspension, dismissal, or resignation of the employee for any reason before the expiration of his year of service, and whatever the duration of employment, the worker is entitled to payment of his/her portion of annual leave based on the accruals indicated in Replicon. Employees are entitled to the number of days of regular annual leave accumulated up to the date of termination. The payment is based on the salary earned at the time of termination excluding any overtime and payment for days of mandatory rest. If the employee's work is variable or piece-rate, Partners Colombia would need to take the average daily rate earned in the past year to calculate the daily rate to be paid.

The payout of vacation must match the days accrued in Replicon. Partners Colombia's policy is to provide the full monthly accrual on the 1st of each month, therefore, if the employee terminates employment any date after the 1st of the month, they would be entitled to the full month's accrual. Similarly, upon hired, the employee will receive the full month's accrual regardless of the entry date in the current month. Vacation is prorated on a monthly basis for the purposes of the termination payout.

10.7.2 Sick Leave

If an employee cannot work due to illness or an accident, a medical authorization from a Colombian Social Security entity must be obtained in order for the employee to get paid for the sick days. Sick leave is paid during the employee's absence for an indefinite period. The first two days of sick leave are assumed by the employer and paid at 100% of their salary. As of the third day, the payment is assumed by the employee's Entidad Promotora de Salud (EPS). The employee will earn two-thirds of their salary from the third day of sick leave onward (if it is for maternity and/or paternity leave, it is paid at 100%). If an employee is injured on the job, he/she is eligible for 100% of salary for the duration of his/her absence.

10.7.3 Maternity Leave

Every pregnant woman shall, on production of a medical certificate, shall be entitled to a maternity leave during which she shall be paid as if she were continuing to work. In accordance with Article 235 of the Código Sustantivo de Trabajo the certificate must indicate the following:

a) The state of pregnancy of the worker;
b) The indication of the probable day of delivery, and
c) The indication of the day from which the leave must begin, taking into account that it must begin at least one week before delivery the expected date.

Beyond biological mother, paid maternity leave is extended in the same terms to adoptive mothers, or the father who remains in charge of the newborn without the mother's support (either due to illness or death), assimilating the date of delivery to that of the official delivery of the child who has been adopted, or of the person who takes custody just after birth. In this sense, maternal leave is extended to the father in the event of the mother's death or illness, the child's father's employer will grant him a leave of duration equivalent to the time remaining for the expiration of the post-partum leave period granted to Mother (Article 236 of the Código Sustantivo de Trabajo).

The duration of the maternity leave is set at 18 weeks. Maternity leave is a paid leave of absence that the law confers on a woman who has a child, and who is recognized and paid by the EPS to which the mother is affiliated, or in its absence by the employer. The maternity leave for mothers of premature children, will take into account the difference between the gestational date and the term birth, which will be added to the eighteen (18) weeks established in this law. In the case of mothers with multiple births, the license will be extended in (2) two more weeks (Article 236 of the Código Sustantivo de Trabajo).

For worker who in the course of pregnancy suffers an abortion or a non-viable premature birth, is entitled to a leave of (2) two or (4) four weeks, remunerated with the salary that accrued at the time the rest began (Article 237 of the Código Sustantivo de Trabajo). If childbirth is viable, the regular maternity leave above applies. To be entitled to this leave the worker must present to Partners Colombia a medical certificate indicating the following:

a) The affirmation that the worker has suffered an abortion or non-viable premature birth, indicating the day on which it took place, and

b) The indication of the rest time that the worker needs.

Payment of maternity leave is calculated based on the salary earned at the time the leave is taken. In the case of a salaried employee, the income earned during maternity leave cannot exceed the normal monthly rate as indicated in the offer letter of the employee. If the employee's work is variable or piece-rate, Partners Colombia would need to take the average daily rate earned in the past year to calculate the daily rate to be paid to the employee during maternity leave (Article 236 numeral 1 and 2 of the Código Sustantivo de Trabajo).

10.7.4 Paternity Leave

In accordance with Article 236 of the Código Sustantivo de Trabajo, the husband or permanent partner will be entitled to eight (8) working days of paid paternity leave.
Payment of paternity leave is calculated based on the salary earned at the time the leave is taken. In the case of a salaried employee, the income earned during the month in which paternity leave is taken, cannot exceed the normal monthly rate as indicated in the offer letter of the employee.

10.7.5 Bereavement Leave

Employees are entitled to statutory paid leave for bereavement. Five (5) days paid leave is provided to employees for the death of a spouse or permanent partner, a parent, a child, a sibling, a grandparent, a grandchild, a mother or father-in-law, son or daughter-in-law, a stepchild, or a stepparent. Employees must give 2 days' notice in order for this leave to be granted. Partners Colombia may limit the authorization for such leave if worker force remaining in service are not sufficient. (Subsection 6, Article 57, Código Sustantivo del Trabajo).

10.7.6 Voting Leave

Article 3 of Law 403 of 1997 establishes that citizens who exercise their right to vote will be entitled to half-day paid rest, which will be granted within the month following election day, by mutual agreement with the employer. Therefore, employees are entitled to paid leave for voting of one-half (1/2) day.

Additionally, article 105 of Decree 2241 of 1986 (Election Code), establishes that voting juries working in the public or private sectors will be entitled to a one (1) day paid compensatory rest within the next 45 days following elections. To that extent, those who prove they have served as juries may request the recognition of this benefit and be provided (1) additional paid day for serving as a voting jury.

10.7.7 Family/Personal Leave

In accordance with Law 1857 of 2017, employees are entitled to paid leave every six months for employees to share with their family. Up to two (2) days paid leave is provided each year for this family/personal leave. Partners Colombia may be able to adjust work schedules to allow employees time with his/her family members, to attend to his/her duties of protection and accompaniment of his/her spouse or permanent companion, his/her minor children, the elderly from their family group or their relatives within the 3rd degree of consanguinity that require them; as well as those of their family who are in a situation of disability or dependency. Partners Colombia and the employee may agree a flexible schedule on the schedule and working conditions to facilitate the fulfillment of the family duties mentioned within this paragraph. Any changes to the regularly approved work schedule to accommodate these employees must be agreed to in writing by both the employee and their respective supervisor, including informing Partners HQ. Partners Colombia may procure facilities in order for employee and his family to share time and/or carry out recreational activities together every semester (Article 3, Law 1857 of 2917).

10.8 Benefits Accruals

Some types of benefits may be paid out directly when they are earned, such as health benefits and therefore these types of benefits should be recorded as an expense directly in the period in which they are earned and paid.

Other benefits, such as annual leave, bonuses, severance pay, etc. are earned over time and will only be paid out at a later date as defined by the policy above. In order to reflect the future commitment to pay as well as the proper allocation of the expense to projects, these types of benefits should be accrued monthly on the books. The amount that is earned each month should be calculated and recorded as an expense and, since no funds will actually be disbursed until the benefit is paid out in the future, an offsetting liability should be set up on the balance sheet. When the benefit is eventually paid, the payment will clear the liability account.

It is the responsibility of the FO Finance Manager to analyze Partners Colombia's staff benefits package to determine if a benefit should be accrued. The FO Finance Manager must ensure that benefits accruals are well documented, as these accruals can carry over for an extended period of time. Accrual accounts should be reconciled monthly.

Benefits under this section shall not constitute part of the salary, as provided under Article 128 of the Código Sustantivo del Trabajo.

10.9 Social Benefits

The following social benefits will be provided to all employees of Partners Colombia.

10.9.1 Health Insurance

Colombia provides a universal health insurance scheme in which all citizens, irrespective of their ability to pay, are entitled to a comprehensive health benefit package.

10.9.2 Pension Scheme

Pensions in Colombia cover old age, disability by ordinary risk (that is, not related to work accident or disease) and death. The affiliation is mandatory for all dependent and independent workers (Article 2, Law 797 of 2003). According to Colombian law, the employer is responsible for a monthly payment as a contribution to the general pension system of 12% of the value of the base salary, and the employee will contribute the value equivalent to 4% deducted from his/her monthly salary.

11. Employees

11.1 Job Descriptions

All permanent field staff positions should have job descriptions that are established, accurate and up to date. Job descriptions should reflect the actual work undertaken and should clearly outline the expectations of the worker employed in that position. A copy of the job description should be provided to each staff member when they commence work.

At times, the employee supervisor should give feedback to their staff member based on a comparison of their work performance and the expectations in the job description. Partners recommends that this be in correlation with midterm or yearly performance reviews. Job descriptions should be used in the performance appraisal process to assess the employee's achievements and performance in accordance with the process established by the PD.

Should Partners Colombia choose to alter the duties and responsibilities for a particular position, the job description should be subsequently altered. The decision to alter a job description must be made by the PD and employee's supervisor. If the resulting decision has budget implications, approval is also required from Partners HQ.

11.2 Performance Evaluations

The employee's supervisor will conduct a written performance evaluation on an annual basis. Initial performance evaluations will generally be performed after two months of employment upon the end of the probationary period. This evaluation will not be used as basis for salary increases. The evaluation will be written and will be based on available job descriptions, standards of performance, and such other factors which Partners Colombia determines to be appropriate. Employees will have the opportunity to review, evaluate and discuss their performance as well as obtain feedback from Partners Colombia. Standards for evaluation templates will be provide by Partners HQ and also found in Annex I.

11.3 Salary Adjustments

Salaries for all employees are reviewed no less than 12 months after the last salary review or annually at the beginning of each year. Adjustments to salaries are merit-based changes deriving from the performance of an individual and availability of resources. In all instances, increases are dependent on the overall financial health of the organization, **all merit-based salary adjustment recommendations must be approved by Partners HQ.** If any salary increases are approved by Partners HQ, then a Salary Increase form must be completed. A copy of the Salary Increase form can be found in Annex I.

11.4 Salary Advances

Salary advance are not provided under any circumstances.

11.5 Suggested Dress Code for Personnel

Partners Colombia suggested dress code is business professional from Monday to Thursday. Friday is informal and casual clothes may be worn. In the event that the employees have a field visit, it is recommended that they take into account the location and to dress accordingly. All visits to the U.S. Embassy or other government agencies are suggested to be formal dress.

11.6 Communicating Absences or Delays

If an employee is delayed arriving to work or absent, he/she must notify his/her supervisor with as much advanced notice as possible. In the case of an unforeseen delay or absence, the employee will be required to call and notify his/her superior. If the delays or absences become too frequent or occur without notification, the supervisor must address a memo to the PD documenting such incidents. If the cumulative absences or delays in work are consecutive or unjustified Partners Colombia reserves the right to take disciplinary action, up to and including termination. If an employee is absent due to illness beyond two (2) consecutive days, he/she must provide a doctor's note or medical certificate, otherwise the employee may be considered as resigning after the third consecutive day.

The PD at Partners Colombia may terminate the employment agreement of any employee who is absent from his/her workstation three (3) consecutive days without authorization and without just cause. Pursuant to Article 64 of the Código Sustantivo del Trabajo, any employee who is absent from work for three (3) consecutive days without notice or justification is automatically considered as resigning from his/her position.

An employee who wishes to be delayed or absent for a valid personal or professional reason during working hours, must first seek and obtain the authorization of his/her immediate supervisor.

11.7 Dispute Resolution

Regrettably, conflict can occur in any work environment. In an effort to resolve the conflict in an expedient, yet fair manner, Partners Colombia recommends the following process for conflict or dispute resolution.

1. Speak directly to the person you are having the dispute with. Many times, disputes arise due to misunderstandings and miscommunications.
2. If speaking to the individual does not work, please speak to your supervisor, PD, or any other member of Senior Management. Then the supervisor, PD, or member of Senior Management will arrange a meeting between those involved in the dispute, to determine a resolution.
3. If the above options are unable to resolve a workplace dispute, the parties may be referred to mediation by an outside third party. The resolution of the third-party mediator is binding on both parties of the dispute.

11.8 Disciplinary Action

Violations of this policy may result in discipline up to and including termination of employment. Note: Nothing in this policy is meant to, nor should it be interpreted to, in any way limit your rights under Colombian laws.

Partners Colombia may decide in its sole and complete discretion to warn, discipline, suspend or discharge employees with or without progressive disciplinary actions. The appropriate action will depend on the severity of the problem, the employee's past performance or the needs of the business.

Unacceptable behavior, which does not lead to immediate dismissal, may be addressed with a verbal or written warning. Written warnings will include the reasons for the supervisor's dissatisfaction and any supporting evidence. You will have an opportunity to defend your actions and rebut the opinion of your supervisor at the time the warning is issued. Disciplinary actions may also include suspensions or other measures deemed appropriate to the circumstances.

Disciplinary action may in include sanctions on the employee. Sanctions and the process by which they are imposed will be fully and strictly in accordance with Colombian law. Sanctions may be in the form of fines which only be imposed for not showing up to work or showing up late and may not be greater than 20% of a day's salary. A limit to the number of occasions on which a fine is imposed is not established by law. Fines may be deducted from the employee's salary (Article 113, Código Sustantivo del Trabajo). Employees may be sanctioned by suspending his contract for 8 consecutive days for first time violations, and up to 60 days for repeated violations. During this time, salary, and benefits (vacations, cesantías, etc.) will not be accrued for the worker. There are no limits to the number of occasions that the suspension of contract may be imposed by employer (Article 112, Código Sustantivo del Trabajo).

All pertinent facts will be carefully reviewed, and the employee will be given a full opportunity to explain his or her conduct before any decision is reached. The PD will give a second opinion concerning the unacceptable behavior before dismissal occurs.

11.9 Reasons for Disciplinary Action

In establishing rules of conduct, Partners Colombia has no intention of restricting the personal rights of any individual. Rather, we wish to define the guidelines that protect the rights of all employees and to ensure maximum understanding and cooperation. The following list of work rules is an illustration of the type of behavior that will not be tolerated by Partners Colombia. This list is not all-inclusive. Any employee who violates any of the work rules listed below may be subject to disciplinary action, up to and including termination of employment. The level of disciplinary action taken will be determined at management's discretion and judged by the severity of the violation:

- Failure to comply with Partners' Colombia procedures, policies, or practices.
- Submission of false, misleading, or incomplete information to obtain employment.
- Failure to comply with Partners' Colombia Proprietary Information and Confidentiality Policy.
- Theft or inappropriate removal or possession of Partners' Colombia property.

- Falsification of timekeeping records.
- Negligence or improper conduct leading to damage of employer-owned or client-owned property.
- The use, influence, purchase, or sale of illicit drugs, controlled dangerous substances (excluding lawful use of prescribed medication) or alcohol on Partners property or at a work site during working hours.
- Possession of weapons, explosives, or firearms on company property.
- Committing violent acts or threats of violence.
- Committing acts of illegal discrimination or harassment.
- Insubordination, including refusal to perform assigned tasks or the performance of assigned tasks in an inappropriate manner.
- Violation of safety or health rules.
- Excessive absenteeism and/or tardiness without a proper excuse.
- Failure to meet performance standards.
- Failure to communicate and work well with others.

12. Risk Assessments & Contractor/Sub-recipient Monitoring

12.1 Risk Assessment Guidelines & Process

Partners Colombia risk assessment validates that potential contractors/sub-recipients are viable, legitimate businesses and confirms that they have the financial capability and organizational resources to provide the required services. At the same time, it makes sure that contractor/ sub-recipients are not engaged in questionable ethical or legal activities.

Each time a new contract/agreement valued at USD $5,000 or more is signed, Partners Colombia will be required to send Partners HQ a completed Risk Assessment. The Risk Assessment template is found in Annex J.

12.2 Frequency of Risk Assessment

For ongoing contractor/sub-recipient monitoring activities, a follow up Risk Assessment should be completed annually in January. The completed and updated annual Risk Assessments for all contract/agreements over USD $5,000 must be sent to Partners HQ by January 31st.

13. Procurement

13.1 Procurement Overview

The purpose of this policy is to ensure the highest level of procurement integrity is consistently observed throughout the field office while acquiring goods, supplies and services. The procurement policy is to prevent conflict of interest, facilitate open and free competition, ensure that cost analysis is conducted and that all contracts include clauses that protect the organization contractually, and provide for legal remedies where it is applicable.

All procurements must comply with the Procurement Standards in 2 CFR 200 Uniform Guidance Section 200.318, which can be summarized generally as follows: (1) the purchase complies with Partners' documented procedures, (2) purchases are necessary, (3) open competition (to the extent required by each method), (4) conflict of interest policy applies and (5) proper documentation for the purchases. Consideration should be given to consolidating or breaking out procurements to obtain a more economical purchase. Where appropriate, an analysis must be made of lease versus purchase alternatives, and any other appropriate analysis to determine the most economical approach. When possible, Partners Colombia should use federal excess and surplus property in lieu of purchasing new equipment and property to reduce project costs. Additionally, to the extent possible, Partners Colombia will engage in affirmative efforts to utilize small businesses, minority owned firms, and women's business enterprises.

All procurements made by Partners Colombia must:

1. Be necessary, at a reasonable cost, documented, not prohibited by law or the applicable funding source, and made in accordance with this Policy.
2. Avoid acquiring unnecessary or duplicative items.
3. Engage responsible vendors who possess the ability to perform successfully under the terms and conditions of a proposed procurement. Partners Colombia shall consider vendor integrity, policy compliance, past performance record and financial and technical resources.

13.2 Ethical Conduct for Procurement

Care must be taken to avoid the intent and appearance of unethical practice in relationships, actions, and communications. All procurement activities conducted on behalf of Partners Colombia must be in compliance with the standards outlined in federal, state, local laws, and Partners' policies. When conducting procurement including but not limited to purchasing goods and services, awarding contracts and grants, or the administration and supervision of contracts, Partners Colombia must adhere to the following:

1. **Checks and Balances**

   Separation of duties throughout the procurement process must be strictly enforced. At the minimum, for any one procurement action, the person initiating the procurement request and managing the invitation for quotation, bids, or tenders, must be different from the person approving the procurement and signing the contract. It is advisable to have people from outside of the team on the Evaluation Committee.

2. **Confidentiality**

   Partners Colombia staff participating in a procurement process must not disclose information related to provider quotes, bids/proposals, or other sensitive information to any co-worker without a specific and articulable need to know.

Disclosing any non-public information related to procurement to any third party is strictly prohibited.

3. Conflicts of Interest

Partners Colombia defines a procurement conflict of interest as any situation where a provider may be perceived to be shown unfair favoritism due to a relationship or other connection to an employee, representative or affiliate. Partners Colombia takes a rigorous, transparent, and forceful approach to identifying and preventing such conflicts. It is the individual and non-delegable responsibility of every employee, representative and affiliate to disclose potential conflicts of interest to their supervisor or another appropriate member of management. Where possible, potential, and actual conflicts of interest will be mitigated with an appropriate and effective mechanism without disqualifying any bidders, but where the integrity of the process demands otherwise, the Partners Colombia will not hesitate to disqualify problematic bidders or re-compete procurements.

Examples of conflicts of interest may include, but are not limited to:

a. *Financial conflicts*: A conflict where a Partners Colombia employee, representative or affiliate involved in a procurement has a financial interest in a potential provider/bidder.
b. *Personal conflicts*: A conflict where a Partners Colombia employee, representative or affiliate involved in a procurement has a friend or family member who works for, or otherwise has an interest in, a potential provider. Family member includes spouse, children, parents, grandparents, grandchildren, siblings, and siblings' immediate families including their spouses and children.
c. *Employment offers*: A conflict where a Partners Colombia employee, representative or affiliate involved in a procurement has a job offer, or was a former employee of a potential provider.

d. Any other fact or situation where there is a division of loyalty on the part of the employee, representative or affiliate between Partners Colombia and a potential provider.

Employees, representatives, and affiliates are responsible for disclosing known or suspected conflicts of interest. If an actual or perceived conflict of interest is identified, the provider is not necessarily or automatically excluded from competing for the procurement. But appropriate mitigating actions need to be in place before the potential bidder can be considered as qualified. The conflict must be clearly documented in writing and the employees, representatives, and affiliates with the actual or perceived conflict must recuse himself/herself from any process related to the procurement, including source selection, contract execution or payment approval/process. Perceived or actual conflicts must be disclosed to the PD or his designee, who will make the final decision on appropriate mitigating actions, required which could include exclusion of the potential bidder.

4. Gratuities from Suppliers

Partners Colombia employees, representatives and affiliates are prohibited from soliciting or accepting money, loans, credits, entertainment, favors, services, or gifts from current or prospective suppliers. Such gratuities, even if of seemingly low value, can give rise to a conflict of interest or the appearance of a conflict of interest. In particular, employees, representatives and affiliates should never accept gratuities from a current or prospective supplier that has submitted or may submit a bid for a Partners Colombia contract for which a bid solicitation is being contemplated, developed, or is actively accepting bids.

5. Free and Open Competition

In all procurement processes Partners Colombia encourages free and open competition to maximum extent possible. To ensure procurements are free and open, Partners requires the following:

- Reduce unfair competitive advantage – which means vendors who help develop statements of work are barred from bidding on that work.
- Create clear evaluation criteria – which means solicitations should clarify the criteria Partners Colombia will use to evaluate bids.

As permitted by law, policy, or regulation, Partners Colombia may pursue appropriate legal, administrative, or disciplinary action against an employee, officer, director, volunteer, vendor, or vendor's agent who is alleged to have committed, has been convicted of or pled no contest to a procurement related offenses. If said person has been convicted, disciplined, or pled no contest to a procurement violation, said person shall be removed from any further responsibility or involvement with grants management, procurement actions or bids.

13.3 Procurement Process

In Colombia, the following matrix must be used to determine the method of procurement required.

1. **Micro-Purchase Threshold: Less than $2,500.00 USD or COP equivalent**

   In accordance with 2 CFR 200.67, micro-purchase means a purchase of supplies or services using simplified acquisition procedures, for an aggregate amount which does not exceed the micro-purchase threshold. The micro-purchase procedure is used in order to expedite the completion of lowest-dollar small purchase transactions and minimize the associated administrative burden and cost. For Partners Colombia items procured at or below $2,500 USD or the COP equivalent (or $2,000 in the case of acquisitions for construction subject to the Davis-Bacon Act), the organization will allow a simplified procurement process. Micro-purchases may be awarded without soliciting competitive quotations if Partners Colombia considers the price to be "fair and reasonable" and is documented. Splitting procurements to keep within the micro-purchase threshold to avoid competition requirements is not allowed. Micro-purchases should be distributed equitably among qualified vendors to the extent practicable. Micro-purchases should follow normal review process in FO finance department (i.e. FO accountant or designed

FO officer prepares and FO Finance Manger reviews and approves). For all micro-purchases there must be proof of clear due diligence conducted on the contractor to ensure that they are not suspended or debarred from doing business with the US Government or on a blocked persons list. (Reference 3.2 System of Award Management (SAM) Check Via Visual Compliance). Micro-purchase do not require a formal contract or agreement.

2. Small Purchases Threshold: $2,500.01 to $9,999.99 USD or COP equivalent

Small purchases are those valued above the micro-purchase threshold but below Partners competition proposals threshold. Procurement by small purchase procedures are those relatively simple and informal procurement methods for securing services, supplies, or other property. For a small purchase procurement, a purchase order, and a minimum of three (3) price/rate quotes must be obtained from qualified sources and be the basis for supplier selection prior to making a purchase. Documentation needs to be in writing from the suppliers and can include written quotes, quotes via email, screen shots from websites, copies of published price lists, advertised pricing in established magazines or journals, etc. Partners Colombia must select the provider that offers the product or service for the lowest price and meets the required specifications (as opposed to desired specifications). Splitting procurements to keep within the small purchase threshold to avoid further competition requirements is not allowed. Small purchases should follow normal review process in FO finance department (i.e. FO accountant or designed FO officer prepares and FO Finance Manger reviews and approves). For all small purchases there must be proof of clear due diligence conducted on the contractor to ensure that they are not suspended or debarred from doing business with the US Government or on a blocked persons list. (Reference 3.2 System of Award Management (SAM) Check Via Visual Compliance). Small purchases require a formal contract or agreement with the provider.

3. Competition Proposals Threshold: $10,000.00+ USD or COP equivalent

All procurements valued at $10,000.00+ USD or COP equivalent must be conducted in a manner providing full and open competition consistent with the standards of 2 CFR 200.319. For transactions at or above this threshold, Partners' does procurement by full and open competitive proposals. This method is conducted with more than one source submitting an offer, and either a fixed price or cost reimbursement type contract is awarded. When conducting full and open competitive proposals, the following requirements apply:

a. Requests for proposals must be publicized and identify all evaluation factors and their relative importance. This includes the following (as applicable): description of technical requirements, criteria to be used in evaluating bids, minimum acceptable performance standards, and specific features of required items. Any response to publicized requests for proposals must be considered to the maximum extent practical. The required timeline for publicization is as follows:

Estimated Contract Value	**Posting Period Required**
$10,000.00 - $50,000.00	Minimum three (3) Business Days
$50,000.01 - $99,999.99	Minimum five (5) Business Days
$100,000.00 or more	Minimum fifteen (15) Business Days

b. Proposals must be solicited from a minimum three (3) qualified providers;
c. There must be a written matrix or method for conducting technical evaluations of the proposals received and for selecting recipients;
d. Contracts must be awarded to the responsible firm whose proposal is most advantageous to the program, with price and other factors considered.

Partners Colombia staff should not put undue restrictions on the competitive process including but not limited to:

a. Placing unreasonable qualification requirements on firms;
b. Requiring unnecessary experience and excessive bonding;

c. Noncompetitive pricing practices between firms or affiliated companies;
d. Noncompetitive contracts to consultants on retainer contracts;
e. Organizational conflicts of interest;
f. Specifying only a ‘‘brand name’’ product instead of allowing ‘‘an equal’’ product to be offered and describing the performance or other relevant requirements of the procurement; and
g. Any arbitrary action in the procurement process.

Partners Colombia must conduct procurements in a manner that prohibits the use of statutorily or administratively imposed state or local geographical preferences in the evaluation of bids or proposals, except in those cases where the federal awarding agency expressly mandates or encourages geographic restriction or preference.

It is required that an appropriate competitive process be utilized and fully documented. At minimum, a proper procurement process requires:

Pre-Selection:

- For all procurements, including contract modifications, in excess of the Simplified Acquisition Threshold (currently $250,000 USD), Partners Colombia must perform a cost or price analysis. To determine a fair and reasonable value, Partners Colombia much make independent estimates before receiving bids or proposals. To establish a fair and reasonable profit, consideration must be given to the complexity of the work to be performed, the risk borne by the contractor, the contractor's investment, the amount of subcontracting, the quality of its record of past performance, and industry profit rates in the surrounding geographical area for similar work. Costs or prices based on estimated costs for contracts using US Government are allowable only to the extent that costs incurred, or cost estimates included in negotiated prices would be allowable for under 2 CFR200 and the prime award.

Solicitation

- Proof of publication of the opportunity including identification of all evaluation factors and their relative importance.
- Specifications, scope of work or technical requirements for the goods or services to be purchased which must be clear and accurate and does not contain factors which unduly restrict competition.
- Identify all requirements which the offerors must fulfill and all other factors to be used in evaluating bids or proposals. A defined criterion for selecting a good or service provider (e.g., price, capacity to deliver on time, quality of output, past performance where applicable, etc.).Solicitations of three (3) quotes or request for proposals from a pool of qualified providers or candidates.
    - In the absence of three submitted quotes or proposals, then a clearly documented memo for justification demonstrating that efforts were taken to obtain three quotes or proposals must be prepared and submitted as part of the procurement documentation.

Proposal Review/Selection

- Support from technical/evaluation committee review (i.e. review notes, matrix analysis, etc.)
- A memo that clearly documents the approved bid/proposal and analysis that documents the "procurement story" behind how the preferred supplier was selected and how the evaluation criteria were utilized.
- Approval from the donor to make the purchase when required.
- Confirmation that the procurement follows limitations imposed by the federal awarding entity for geographic codes and restricted commodities purchase (as applicable).
- Clear due diligence conducted on the contractor to ensure that they are not suspended or debarred from doing business with the US Government or on a blocked persons list. (Reference 3.2 System of Award Management (SAM) Check Via Visual Compliance).

- Formal contract or agreement is required.

All competitive proposals must be prepared/documented by the FO accountant or designed FO officer, reviewed by the FO Finance Manager, and then approved by Partners HQ.

4. Noncompetitive Proposals - Sole Source Procurements

In rare circumstances a sole source transaction may be permitted. A sole source transaction is one that normally would require full procurement; however, given certain circumstances, the purchase will be approved without full and open competition. This approval can only be forthcoming in writing from FO Finance Manager or PD. When an Employee, Representative or Affiliate proposes sole source procurement, he/she must provide clear written justification documenting the process and efforts used for determining that there are no other qualified providers. Failing to anticipate needs resulting from poor planning is not an exception to competitive requirements. For an exception to be valid, a clear statement of justification for waiving the competitive bidding process must be submitted in writing. The following are possible scenarios of when sole source procurement may be justified:

1. When only the proposed provider can furnish the services because of its previous experience with Partners Colombia and having an alternative source duplicating these capabilities would result in excess cost.
2. When only one supplier can satisfy the technical requirements because of unique technical competence or expertise, or the work "so specialized" in nature that there is only one entity that could complete it.
3. When the item does not satisfy the requirements for sole source, but the use of any other manufacturer would result in excessive costs.
4. When there is a security concern or other security risk that would allow for only one provider.
5. When only one source possesses the patent(s) or exclusive right(s) to manufacture or to furnish the item or service.
6. When the item is available only from a single source, such as:
    a. Artwork

   b. Unusual and generally unavailable used equipment,
   c. Specialized scientific equipment and instruments
   d. A specialized service (e.g. consultant) where the supplier has a one-of-a-kind ability to provide the required service due to demonstrably unique circumstances (knowledge, contacts, experience)
   e. Continuation of a current service where changing suppliers could result in excessive cost
7. When the federal awarding agency or pass-through entity expressly authorizes noncompetitive proposals in response to a written request from Partners Colombia.
8. When after solicitation of a number of sources, competition is determined inadequate.
9. The public urgency or emergency for the requirement will not permit a delay resulting from competitive solicitation such as:
   a. Human life, health or Partners' property is in jeopardy
   b. Repairs are immediately needed for equipment where delay would lead to higher expense.
10. Subcontracts or subaward where the agreement to work with another individual or institution was written into the grant award and subsequently approved by the federal awarding entity.

All noncompetitive proposals must be prepared/documented by the FO accountant or designed FO officer, reviewed by the FO Finance Manager, and then approved by Partners HQ. For all noncompetitive proposals there must be proof of clear due diligence conducted on the contractor to ensure that they are not suspended or debarred from doing business with the US Government or on a blocked persons list. (Reference 3.2 System of Award Management (SAM) Check Via Visual Compliance). Formal contract or agreement is required.

14. Colombia Field Office Travel Policies and Procedures

14.1 Policy Overview and Applicability

The objective of this policy is to manage a travel process fully compliant with the 2 CFR 200 and Partners Colombia's rules and regulations with guidance from U.S. Government procedures and Colombian Law.

The financial goal of this policy is to increase accountability and efficiency of travel expenditures and to ensure compliance throughout the full process of USG regulations, 2 CFR 200, and other applicable laws, including timely clearance of all travel reports (expense reports and per diem payments).

This policy applies to all Partners Colombia travelers unless otherwise indicated below. Specific guidance at a country and project level may be prepared on a case-by-case basis and approved by the CFO or CEO. In no event, shall these country or project-specific policies be out of compliance with the procedures and cost/time values identified herein.

14.2 Requesting Travel Authorization

Staff and consultants considering a trip must discuss with their supervisor the need for the trip, activities to be conducted, funding for related costs, expectations, etc. For all travelers including staff, consultants, volunteers, and others traveling under Partners Colombia funding, a travel authorization (TA) must be prepared and approved prior to travel and booking of flights, hotels, etc.

All field staff and local consultants are required to complete a travel authorization for all travel with a duration of four (4) hours or longer, regardless of the destination or transportation mode.

For the CPU team through December 31, 2021, travel authorizations will be completed using the Salesforce platform. CPU staff should complete the travel authorization on Salesforce and submit electronically to the appropriate supervisor. The respective supervisor will then review the proposed travel itinerary, and either approve or reject for modification electronically. Once a fully approved travel itinerary is in Salesforce, the employee can proceed with remaining travel plans and bookings.

Effective January 1st, 2022, all staff will complete travel authorizations using the standard template for Replicon. Prior to travel all staff will complete the "Travel Authorization Form" found on SharePoint. This form will collect the following information:

- Traveler's Full Name on official government ID (e.g., Cedula, Passport)
- Date Requested
- Purpose of the Trip/ Scope of Work to be Performed
- Dates of Travel
- Proposed Itinerary
- Once the form is completed, it will be uploaded into the Replicon platform at: https://login.replicon.com/. Employees will create a new expense report in Replicon to request approval for the travel authorization. The form will be uploaded into the Replicon database as supporting documentation for the travel. The employee will electronically submit the request for approval. The respective supervisor will then review the proposed travel itinerary, and either approve or reject for modification electronically. Once a fully approved travel itinerary is in Replicon, the employee can proceed with remaining travel plans and bookings.

14.2.1 Itinerary Changes

The appropriate supervisor should approve the traveler's itinerary changes. After receiving approval from the supervisor, travelers can contact the appropriate agency to make the necessary changes. Most importantly, it is critical that the supervisor notifies the FO Finance Department, to ensure that the per diem amount or other changes can be made, as necessary. In emergency circumstances, when a supervisor is not available or after hour changes must be made immediately, it is left to the discretion of the travelers. However, they are required to notify their supervisor once the change(s) have been made. Note that the supervisor reserves the right to not approve the change. In such instance, the traveler will be responsible for any difference in cost associated with the change. Disagreements will be resolved by the CFO at Partners HQ.

14.3 Traveler Definitions

Partners' travel policy is broken out based on three traveler types. All travelers are expected to comply with and follow the provisions in their respective categories as follows:

- US based/HQ
    - US based/HQ are all individuals with their principal desk location at HQ.
    - This includes but is not limited to:
        - HQ Staff
        - Consultants
        - Interns
        - Telecommuting employees, etc.
- Local Field Office staff
    - Local field staff are those on payroll at Partners field offices, including the Country Director
    - Local consultant based abroad are consultants paid directly by the field office
    - All other local travelers
- US based/Other
    - Including but not limited to volunteers, board members, etc.

14.4 Travel Advances

Partners Colombia's policy is to only make payments after goods and services have been supplied and conditions for payment met, therefore NO advances will be made for staff going on work related travel, unless a request is made by the employee and approved by the Supervisor and Partners HQ.

14.5 Allowable and Unallowable Expenses (Applicable to All)

The following allowable and unallowable expenses apply to all Partners Colombia travelers regardless of their relationship or the location of their base.

Partners Colombia has a travel policy that provides a per diem for all Meals & Incidental Expenses (M&IE), while all other miscellaneous travel expenses, lodging, rental cars, personal vehicles, airfare, and train costs are reimbursed based upon actual expenses incurred. Allowable expenses are also limited to the conditions established on grants and agreements with funding agencies sponsoring the trip.

Furthermore, only allowable expenses are reimbursable under the category other miscellaneous travel expenses, lodging, rental cars, personal vehicles, airfare, and trains. No later than 30 days following the final day of a trip, an Expense Reimbursement Report should be prepared and submitted to the traveler's FO Finance Department. Partners Colombia will not accept reimbursement requests made after 60 days unless approved by Senior Management at HQ. All travelers requesting an exception must make their requests in writing with a valid reason for the delay.

14.5.1 Lodging – Reimbursable Based

Lodging is defined as room charges and taxes. For reimbursement purposes, a receipt must be provided. These charges cannot include room service fees, upgrade fees, mini bar tabs, entertainment fees, etc. All of these other expenditures must be paid by the traveler using their personal or per diem funds and excluded from their lodging bill.

Partners Colombia will recognize and reimburse lodging costs based on actual expenses, but the USG ceiling rates shall be a guide to appropriate expenditures per country and must not be exceeded. Exceptions above the maximum rate can be approved by the CFO or CEO. A list of USG guidance is provided below:

- General Services Administration (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The Department of Defense (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The State Department establishes all foreign rates which are specific to major cities.

14.5.2 Rental Cars – Reimbursable Based

The cost of rental cars including rental car insurance is allowed only if the nature of the trip or the location of business to be visited is such, that use of field transport or local transportation is unavailable, impractical, or unsafe, as determined by the traveler's supervisor. If deemed necessary and approved as part of the TA process, Partners Colombia will recognize and reimburse rental car costs based on actual expenses. Prior to reimbursement, the FO Finance Department will need to check that the TA includes an explanation (specific uses) as to why a car rental was necessary.

Note, Partners Colombia does not carry a blanket collision damage waiver policy nor is the traveler covered with liability insurance if collision with the rental vehicle were to occur. Partners Colombia recommends the purchase of collision and liability insurance each time a car is rented.

14.5.3 Use of Personal Vehicle – Reimbursable Based

The use of a personal vehicle while on travel within Colombia is permitted in lieu of airline transportation if approved by the supervisor. The traveler will be reimbursed for gas mileage in accordance with the IRS standard mileage rate. The current mileage reimbursement is USD $0.56 cent per mile driven for business purposes https://www.irs.gov/newsroom/irs-issues-standard-mileage-rates-for-2021. A map from origin to destination must be included as documentation to receive mileage reimbursement.

14.5.4 Tolls, Parking, Etc. – Reimbursable Based

For business travel, if renting a car, using a personal vehicle, or using a Partners Colombia's program vehicle, Partners Colombia will reimburse based on actual costs for all tolls, parking and other costs associated to the use of the vehicle. These types of expenditures are reimbursed based on actual charges incurred and a receipt must be provided for expenses over USD $25.

14.5.5 Airfare and Trains – Reimbursable Based

Partners Colombia will reimburse or purchase on behalf of all approved travelers all necessary airfare and train tickets. For reimbursement purposes, a receipt and boarding pass must be provided for all airfare and train tickets. Please note below the additional restrictions related to airfare purchases.

14.5.5.1 Seat Upgrades

Only coach class or promotional fares will be paid by Partners Colombia. Business and first class are considered seat upgrades and must follow the below protocol; otherwise, this will not be covered by Partners Colombia. While seat upgrades are not to be expected, there are some circumstances when the traveler could be authorized to travel Business class:

- When no space is available in coach-class accommodation and the flight must be taken;
- When use of business class is necessary to accommodate traveler disability or a special need; or
- When the cost is the same or the traveler pays for the difference in cost between coach and the upgrade.

With the exception of no-cost upgrades, or the traveler pays for the difference in cost without Partners Colombia's funding, all seat upgrades will need to be approved in advance with the PD and must include a written justification as to why the upgrade is necessary.

14.5.5.2 Fly America Act

All U.S. government-funded travel will comply with the Fly America Act, which requires that all travel and shipments must be made on U.S. flag carriers to the extent services by such carriers is available. Use of a Fly America compliant carrier is required regardless of whether a foreign carrier can provide the service at a comparable or lower cost, or whether a foreign carrier is preferred due to convenience. The rules generally provide for a limited number of exceptions; however, a U.S. carrier must be used for any travel: 1) within the U.S., or 2) between the U.S. and the last destination point that is served by a U.S. carrier for that particular routing. Exceptions to the Fly America Act can only be approved by Partners CFO at HQ. The exceptions are as listed below:

1. If a U.S. flag air carrier offers nonstop or direct service (no aircraft change) from your origin to your destination, you must use the U.S. flag air carrier service unless such use would extend your travel time, including delay at origin, by 24 hours or more.
2. If a U.S. flag air carrier does not offer nonstop or direct service (no aircraft change) between your origin and your destination, you must use a U.S. flag air carrier on every portion of the route where it provides service unless, when compared to using a foreign air carrier, such use would:
    - Increase the number of aircraft changes you must make outside of the U.S. by 2 or more; or
    - Extend your travel time by at least 6 hours or more; or
    - Require a connecting time of 4 hours or more at an overseas interchange point.

For a flight to be in compliance with the Fly America Act, the code of a U.S. flag air carrier must be noted as part of the flight number on the airline ticket, flight coupon (boarding pass), or passenger receipt. Each airline has a two-letter alpha code. From this list, you will be able to compare airline codes on the ticket with those on the list and thereby be able to ascertain whether or not the flight is on a U.S. Flag air carrier. In order to ensure that the flight is Fly America Act compliant all travel should be booked through the designated travel agent/agency.

Many of the U.S. flag air carriers are listed below:	
• AirTran Airways (FL)	• JetBlue Airways (B6)
• Alaska Airlines (AS)	• Midwest Express (YX)
• American Airlines (AA)	• Southwest Airlines (WN)
• Continental Airlines (CO)	• Spirit Airlines (NK)
• Delta Airlines (DL)	• United Airlines (UA)
• Frontier Airlines (F9)	• US Airways (US)
• Hawaiian Airlines (HA)	

14.5.6 Meals & Incidentals (M&IE) – Per Diem Based

Per diem means the amount of money that Partners Colombia gives to the employee for an official trip out of his / her office to cover food and other expenses in accordance with current rates. Partners Colombia includes the cost of all meals and incidentals under a flat rate per diem provided to the traveler and will NOT reimburse based on actual expenditures. Partial per diem will be provided when one or more of the meals is provided by someone other than the traveler.

For the appropriate amount of the per diem and exceptions, please reference Section 14.6 Per Diem for M&IE to determine correct per diem based on the traveler type.

14.5.7 All Other Miscellaneous Travel Expenses (MTE) – Reimbursable Based

All other miscellaneous travel expenses (MTE) are additional expenses and paid as necessary and charged to the POA credit card or reimbursed based on the actual costs incurred. All MTE expenses over USD $25 must be supported by receipts/stubs/invoices as part of the expense report in order to be reimbursed. MTE includes but is not limited to the following:

- All ground transportation fees (buses, taxis, etc.) between place of lodging or business and places off site to obtain meals, meetings, site visits, etc. (documentation must include origin and destination and the purpose of the trip).
- Visas
- Room cleaning cost: Where an apartment is taken in lieu of hotel accommodations, the traveler may contract, however this must come from the incidental travel expense part of the per diem
- Immunizations and medications on travel
- Reproduction of materials
- Telephone calls and other communication costs that are reasonable and necessary for work-related communications
- Bank fees on exchanges currencies
- Purchase of clothing (in the event that baggage is lost, and clothing must be purchased in order to keep with meeting schedules)

14.5.8 Unallowable Expenses and Reimbursement Limitations

Partners Colombia will not reimburse or cover charges for the below prohibited items. Please note these lists are not inclusive and Partners Colombia reserves the right to refuse payment of any authorized or expense deemed unallowable.

14.5.8.1 Alcohol Purchases

Alcohol purchases may not be made with Partners Colombia's funds while on Partners Colombia travel.

14.5.8.2 Other Unallowable Expenses

Partners Colombia's unallowable expenses include but are not limited to:

- Additional travel insurance, travel accident insurance or trip cancelation premiums
- Non-essential upgrades or packages
- Additional expenses associated with the cost of first or business class airfare, unless it falls into the exception categories listed above
- Childcare and babysitting expenses
- Costs incurred by your failure to cancel transportation or hotel reservations
- Costs incurred by your spouse or other dependents traveling with you, unless spouse or dependents is also on a Partners assignment
- Gasoline expenses when the automobile mileage reimbursement rate is claimed
- Hair styling and haircut expenses
- Spa, nails, or other treatments
- Entertainment or tour expenses, unless activity is required by Partners Colombia trip
- Kennel/boarding expenses for pets
- Costs incurred for speeding tickets, etc. when renting or driving any vehicle for Partners Colombia use
- Other expenses not directly related to the business purpose of the travel assignment

For a complete list of unallowable expenses for USG funds, please reference 2 CFR Part 200: Unallowable Costs (Annex K) or OMB Circular A-133, which includes any potential exceptions to the above unallowable expenses.

14.6 Per Diem for M&IE

Partners Colombia has a travel policy that provides a per diem for all expenses related to meals and incidental expenses (M&IE). For the appropriate amount of per diem, please determine the traveler type. All travelers will fall into one of the three categories, as defined in Section 14.3 Traveler Definitions.

14.6.1 M&IE Rates

All Partners Colombia's M&IE per diem rates are based on a percentage of the government per diems allowed per city and/or country, as defined herein and below. Depending on the destination, travelers should utilize the General Service Administration rates for travel within the continental US, the Department of Defense rates for travel to Alaska, Hawaii, and other US territories, and the State Department for all foreign travel. The websites to obtain the rates are listed below:

- General Services Administration (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The Department of Defense (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The State Department establishes all foreign rates which are specific to major cities.

Per diems are driven based on the approved TA and include any travel outside of HQ or the respective Country Field Office with travel duration of four (4) hours or longer, regardless of the destination or transportation mode. Exceptions to this must be approved by the CEO or CFO.

14.6.2 M&IE Meal Breakdown

M&IE is intended to cover the costs of meals and incidentals during each day of work-related travel. For first and last days of travel (travel days), if the itinerary requires the traveler to start their travel day from their home-of-record (or work-related destination) before breakfast and return to their work-related destination (or home-of-record) after dinner, then the full per diem can be recorded and documented in the expense report. Specifically, if departure from home on first day of travel is before 6AM or arrival to home on last day of travel is after 7PM, then full per diem may be applied for a travel day. Otherwise, travel day rates will be determined as defined in Section 14.6.4 Per Diem M&IE – Local Field Office Staff. The travel day rate utilized should be as follows: On first day of travel, utilize the destination city; on the last day of travel, utilize the departure city. For example, if the traveler leaves home-of-record and travels to San Diego on day one, and returns back home from San Diego on day three, during both travel days, the per diem should be calculated based on the San Diego rate.

If the daily M&IE rate excludes one or more of the meals, these are to be reduced at the following rates:

- Breakfast: 16% of daily calculated M&IE rate
- Lunch: 24% of daily calculated M&IE rate
- Dinner: 40% of daily calculated M&IE rate

Note that incidentals are calculated at 20% of the total daily rate and excluded from these meal rates; i.e., the sum of incidentals and the three meals is equal to 100% of the daily M&IE. See examples in Annex L.

14.6.3 M&IE Allowable Costs

The M&IE portion is intended to substantially cover the costs as described below.

1. The meals allowance portion is intended to include the cost of breakfast, lunch, and dinner while on travel, and is incorporated as part of the per diem.
2. Incidental travel expense portion is intended to include but are not limited to:
    a. Fees and tips to waiters, porters, baggage handlers, bellhops, hotel servants, dining room stewards, and similar employees
    b. Laundry, dry cleaning, and pressing of clothing
    c. Room cleaning tips
    d. All other incidental travel expenses as defined by Chapter 300, Part 300-3, in the Federal Travel Regulation (www.gsa.gov/ftr), under Per Diem Allowance.

Colombia field office staff are not permitted to charge a corporate card for meals covered by their per diem, for themselves or any other individual receiving a Partners Colombia's per diem. As all Partners Colombia travelers receive some form of per diem, their costs should be paid for separately with per diem or personal funds. However, if the meal for the group is charged on a corporate card, this meal must be deducted from the daily per diem rate, at the rate defined above (in Section 14.6.2 M&IE Meal Breakdown) for the specified meal.

If Colombia field office staff need to cover the cost for meal invitees (e.g. donors, etc.), they may use a corporate card to pay for the bill; however, they should deduct their meal and the meals of any other Partners Colombia's per diem recipients from the bill and pay the remaining balance on the corporate card, if possible. Alternatively, they may choose to deduct the meal from the daily per diem rate received, as per the rate defined above for the specified meal. Similarly, when paying with personal credit card or cash (intending to be reimbursed), the Colombia field office staff will only receive reimbursement for the portion of the bill that does not include meals for Partners Colombia's per diem recipients. If for some reason the bill cannot be split, and there is no other option than to pay on a corporate card, the Colombia field office staff member must split out the portion of the bill when coding their credit card statement between personal charges and actual business expenses. The Colombia field office staff member will be liable to pay Partners Colombia back for their part of the meal and for the meals of any other Partners Colombia per diem recipient charged to their Partners Colombia's corporate credit card if they received an advance for per diem; otherwise, this should be deducted from the expense report when requesting travel per diem after the trip.

14.6.3.1 M&IE Weekend Travel

Should a traveler remain away from home on business over a weekend, the per diem will be allowed, assuming that the traveler is required to be away from home over the weekend for business purposes.

14.6.4 Per Diem M&IE – Colombia Field Office Staff

This portion of the per diem policy guidelines applies to all Colombia field office staff, local consultants and all other local travelers based outside of the US. This policy includes the PD, Chief of Party, etc.

For all full days on travel, the per diem rates will vary based on type of travel as outlined below:

- **Partners Colombia staff will receive 50% for all domestic travel and 90% for all international travel** (unless an exception is on file) of the government per diem rate for the particular city (or region for travel where not all specific cities are listed).*

On the first and last day of travel, in alignment with the USG guidelines, the maximum M&IE per diem will be based on the type of travel as outlined below:

- **Partners Colombia staff will receive 37.5% for all domestic travel and 67.5% for all international travel** (unless an exception is on file) of the government per diem rate for the particular city (or region for travel where not all specific cities are listed). See exceptions to this in Section 14.5.2 M&IE Meal Breakdown above.*

*If local field office staff are taking personal vacation time either before or after the Partners Colombia business travel, they will not receive Partners Colombia per diem those days. The local field office staff will receive the first and last travel day in accordance with the guidelines listed above, as these local field office staff local field office staff would have had to travel to or from the office or place of residency whether or not they were on personal travel after or prior to the trip.

14.6.5 Payment of Per Diems

Regardless of the traveler, per diems will only be paid upon the Finance Office's receipt of an approved TA and per diem form. The approved TA and per diem form will be the supporting documentation and authorization for the issuance of the per diem. No receipts will be required for per diem payment, except as defined in this policy.

All per diem payments should be made within 30 days from the end date of travel. Partners Colombia will not accept per diem payment requests made after 60 days unless approved by Partners HQ. All travelers requesting an exception must make their requests for exceptions in writing (e.g. memorandum addressed to the FO Finance Office) with a valid reason for the delay.

It is the traveler's responsibility to utilize their per diem to cover all their meals and incidentals. Unless approved by the CEO, no additional M&IE will be provided. The traveler does not need to reimburse the organization if they do not spend all their daily M&IE.
Since Per diems are established in USD, the currency converter will be OANDA, and the rate will be based on average for the official travel dates.

14.6.5.1 Per Diem Payment for Local Field Office Staff

Local field office staff including the PD and all other local travelers outside of the U.S. will be issued their per diem upon submission of the approved travel authorization via Replicon. The per diem request with the attached travel authorization as the supporting documentation will need to be submitted by each employee in Replicon, and then approved by the appropriate supervisor on Replicon. Once completed, this information will be submitted to the FO Finance Department for direct payment into the employee's bank account within 30 days.

14.7 Reimbursement Requests (Non-Per Diem Items)

Allowable expenses that may be submitted for reimbursement as described above (lodging, rental cars, personal vehicles, airfare, and trains) are all reasonable costs which are essential and directly related to the objectives of the grant and/or the main purpose of the trip.

14.7.1 Expense Reports for Reimbursement – Colombia Field Office Staff

No later than 30 days following the final day of a trip as necessary (in which purchases are not made on behalf of the traveler in advance), a reimbursement request should be prepared in Replicon and submitted to the FO Finance Department. The method for requesting expense reimbursement will be done via the Replicon application. This report should include the following:

- A fully executed Travel Authorization
- Expense Report which includes all proper documentation and copies of receipts attached for all items over USD $25 or the local COP equivalent.
    - Please note that a bank or credit card statement is not sufficient documentation for a receipt. Where sufficient documentation has not been obtained, an affidavit will need to be filled out confirming the expenses were for business purposes and that the expenses did not include any alcohol. A copy of an appropriate affidavit is found in Annex M.
- Provide evidence of the exchange rate during the period of travel (a hotel or bank receipt showing a conversion of currency may be a convenient way of satisfying this requirement.)
    - The following site is also recommended to utilize for obtaining the exchange rate:
        - Oanda: https://www.oanda.com/fx-for-business/historical-rates

14.8 Personal Travel During Business Trips

If, for personal reasons, the traveler wishes to go to places other than those on the authorized Partners Colombia itinerary, he/she may book and must pay for those reservations and additional costs. The traveler should also notify Partners HQ in writing that they are booking personal travel/personal portion of the trip. If the personal travel is booked on the same ticket as the Partners Colombia authorized trip, the traveler will be responsible for covering their personal travel within 30 days of the booking. If the flight cost is a cheaper ticket price including personal days on the beginning or end of the trip, the traveler does not need to reimburse any money. Traveler must evidence the difference in fare from the same site that the official itineraries are been purchased and the comparison should be made the same day the itinerary has been purchased (different dates will not be accepted). Travelers are only responsible for paying the difference of the ticket price. For example, travel dates for business ticket cost equals $500, travel dates including a personal portion of the trip equals $600, the staff must reimburse Partners Colombia the $100 difference between business ticket cost and personal portion of the trip. Appropriate documentation showing the additional costs must be kept on file for audit purposes.

14.9 Use of Partners Colombia's Vehicles

It should be noted that only authorized employees of Partners Colombia and Partners HQ are eligible to drive company vehicles. "Vehicles" are defined as cars, trucks, motorcycles, or any other motorized vehicle owned by Partners Colombia. Partners Colombia provides vehicles for business use to allow employees to drive on designated business assignments. All employees using company vehicles must following the below requirements:

- Any driver of Partners Colombia vehicles must ensure that the equipment does not experience any deterioration either by his/her direct negligence or by the fault of a third party. Therefore, the employee will personally ensure the proper physical maintenance of the vehicle he/she is responsible for by checking the daily cleanliness and routine parameters, which the employee will note before each use.
- Only authorized employees of Partners Colombia are eligible to drive company vehicles.
- All authorized drivers must be 25 years or older.
- The keys should be held by authorized employees of Partners Colombia who are eligible to drive company vehicles. When the vehicle is not in use or on business assignment, the keys should be returned to the PD.
- All individuals driving Partners Colombia's vehicles, must always have a valid driver license on them while utilizing the company vehicle.
- Company vehicles are **only** to be used for business travel.
- On occasion supervisors must check the employee's driving record to ensure that the employee's record is clean and without motorized vehicle violations.

- Employees approved to drive on company business are required to inform their supervisor of any changes that may affect either their legal or physical ability to drive.
- Employees holding jobs requiring regular driving for business as an essential job function must, as a condition of employment, be able to meet the driver approval standards of this policy at all times.
- Employees should maintain the security of the vehicle and its contents, including not leaving personal items (including those of any passengers) in the vehicle at any time while unattended.
- Drivers must always drive safely and responsibly and follow all traffic regulations, including the speed limit and pay special attention to pedestrians and cyclists.
- Drivers must be mindful of the weather, and avoid driving during severe weather conditions, when feasible.
- Use of handheld cell phones (including texting) while behind the wheel of a moving vehicle being used on company business is strictly prohibited.
- Employees are responsible for any driving infractions or fines as a result of their driving.
- Nonemployees and nonbusiness passengers (i.e., family and friends) are prohibited from riding in company vehicles.
- Current registration and proof of insurance must be present in vehicle.
- Vehicle doors must be locked when in motion.
- Company vehicles shall always be secured when not in transit by being locked, keys removed, and alarms activated if so equipped.
- Employees must report any accident, theft or malicious damage involving a company vehicle to the PD and Partners HQ, regardless of the extent of damage or lack of injuries. Such reports must be made as soon as possible but no later than 6 hours after the incident unless employee is medically incapable of reporting.

- Employees are expected to cooperate fully with authorities in the event of an accident. However, employees should make no voluntary statement other than in reply to questions of investigating officers.
- Smoking is prohibited in all company vehicles.
- Seatbelts must always be worn by all passengers in the vehicle.
- Employees are not permitted, under any circumstances, to operate a company vehicle with any physical or mental impairment that causes the employee to be unable to drive safely. Furthermore, employees shall not operate any company vehicle while using or consuming alcohol, illegal drugs or prescription medications that may affect their ability to drive.
- The company driver is responsible for ensuring all necessary precautions are always taken to prevent damage and theft of the company vehicle and/or its contents. Whenever an employee leaves a company vehicle, the following must be done:
    - Roll up all windows
    - Lock all doors
    - Do not leave merchandise and equipment in open view inside a car, which may tempt a break-in. Remove all valuable items or lock them inside the trunk and out of sight when the vehicle is left unattended.
- Employees must take precautions to safeguard the vehicle and its contents. To the extent possible, employees must select off street parking, secure parking garages, or a lighted area close to a business or hotel entrance where normal police surveillance or security protection exists. If an employee is keeping a vehicle overnight in Bogota and a secure location is not possible, then the employee must return the vehicle to Partners Colombia’s office location.

Any violation of the above requirements will result in disciplinary action, up to and including termination.

14.9.1 Vehicle Driving Restrictions

Any employee who has a "major violation" in the last five years will not be eligible to drive company vehicles unless special authorization is given by Partners HQ. Major violations include but are not limited to:

- Driving under the influence of drugs/alcohol;
- Failure to report an accident;
- Reckless driving;
- Making a false accident report;
- Driving while license is suspended or revoked; or
- Attempting to evade a police officer.

14.9.2 Vehicle Travel Restrictions

Vehicles within cities must take into account the current insecurity situation in the country. It is recommended to check with the FO Finance Manager for the restrictions in place and adhered to U.S. Embassy restrictions for travel. For trips, the maximum time of departure is: 5:00am and the maximum time of return is 7:00pm. Exceptions may be requested by writing to Partners HQ, in consultation with Embassy Security and depending on the geographic area for travel.

A seat belt is required at all times and the speed must not exceed 100 km/h or 60 miles on national roads and 40-50 km/h on dirt roads, depending on the state, or less based on the road signs and Colombian traffic laws.

14.9.3 Vehicle Logs

Before each use, employees must complete a basic vehicle check before and update the log. Drivers must confirm that the following parts and components are in good working order: brakes, steering mechanism, horn, windshield wipers/washers, rear-vision mirrors, lights, and tires. Vehicles found to be in an unsafe condition may not be operated for until properly repaired.

After the basic check is completed, employees will need to report any damages and/or issues with the vehicle on the approved tracking sheet. A mileage log must be maintained for each vehicle, identifying the date and purpose of each trip and the beginning, and ending odometer readings. Upon finalizing the use of the vehicle at the end of each day, the employee will need to update the log and report any damages and/or issues with the vehicle. If an employee fails to update the mileage log and perform the vehicle check, they may face disciplinary action.

14.9.4 Reporting Vehicle Accidents

In case of an accident, the employee should take the following steps:

- If anyone is hurt, call for medical assistance;
- Contact the PD and Partners HQ immediately;
- Report the incident immediately to the local police and obtain a copy of the police report;
- Get the below information if possible:
    - Nature and extent of the damage to vehicles and other property;
    - Name and address of the legal owner of the other vehicle or vehicles, if any.
    - Name, address, driver's license number, and date of birth of the driver of the other vehicle or vehicles, if any;
    - License number, make and model of the other vehicle or vehicles, if any;
    - Name of the insurance company of any other driver or drivers, policy number and expiration date, and policy holder's name and address;
    - Time, place, and date of the accident;
    - Names and addresses of anyone injured and description of injuries; and
    - Names and addresses of any passengers and other witnesses.
- Exchange vehicle identification, insurance company name and policy numbers with the other driver (if applicable);
- Do not admit negligence or liability. Give no information except as required by law enforcement officers;
- Do not attempt settlement, regardless of how minor;
- Take a photograph of the scene of accident;

- Complete the employee accident report found in Annex G.

After the accident, the employee should follow legal guidelines for exchanging information with other drivers and report the accident to local police. Employees cannot guarantee payment to other parties without Partners Colombia's authorization.

The employee will be responsible for completing the Employee Accident Report Form found in Annex G. Such reports must be made as soon as possible but no later than 6 hours after the incident unless employee is medically incapable of reporting. All photos, police reports, employee accident reports, and other information relating to the incident must be retained and a copy sent to Partners HQ. The PD will work with Partners HQ to contact the insurance provider and file claim, as necessary.

14.9.5 Vehicle Repairs

For all vehicle repairs, employees must review the warranty on the vehicle when applicable. The warranty must be reviewed to ensure that the repairs are not covered under the existing warranty and/or that the repairs are done at the necessary shop which are authorized outlets for service. Additionally, the driver must check that the original parts of the vehicle are not replaced used parts, a dishonest practice quite common for radiators, batteries, lamps etc. in some places.

14.9.5.1 Normal Vehicle Maintenance

The driver will respect the normal maintenance schedule of the vehicle, usually based on the mileage of the car or the number of months of use if it occurs before. The objective is to maintain company vehicles in a safe and operating condition by using the most economical, reliable, and up-to-date procedures and technologies available, all-in accordance with the original manufacturer's recommendations. Employees who are having vehicles serviced for normal maintenance, should follow all necessary procurement standards and recommended maintenance timelines.

14.9.5.2 Major Vehicle Repairs

Major vehicle repairs are those valued at USD $500 and above. For all major repairs, the employee will be required to obtain three (3) quotes from a pool of qualified service providers. The PD in coordinator with Partners HQ will review the quotes and select the best provider. The overall process and selection of the provider will be documented in accordance with the normal procurement standards in Section 13. If the major repair pertains to an accident report and an insurance claim is filed, then Partners HQ in coordination with the PD will work with the insurance agent to cover the cost less any deductible.

14.9.6 Vehicle Insurance and Registration

Under Partners HQ's vehicle insurance policy, it provides protection to authorized drivers of company vehicles while on official business. The insurance policy covers collision, fire, theft, and liability and includes a deductible. If the accident is due to driver negligence, the insurance claim may be denied, and Partners Colombia will be responsible for all costs associated with the incident.

All Partners Colombia's vehicle must be registered in Colombia with the appropriate authorities. Any vehicle that is not properly registered cannot be used for business, until the registration is updated. Copies of current vehicle registration information must always be retained in the glovebox of the vehicle, and a second copy filed with the FO Finance Manager.

Annex A

Master Equipment & Supply Listing

Master Equipment & Supplies Report														
#	Photo	Description of Inventory & Equipment	Condition	Brand	Model	Serial #	Acquisition/ Purchase Date	Purchase Price	Current Price	Grant	City	Physical Location	Responsible Person	Notes
Equipment (over $5,000 USD)														
1										USAID800				
2														
3														
4														
5														
6														
7														
8														
9														
10														
Inventory & Supplies (under $5,000 USD)														
1														
2														
3														
4														
5														
6														
7														
8														
9														
10														

Submitted by: ______________________ Date: __________

Signature: ______________________

Annex B

Petty Cash Count

	Cash Count of Petty Cash as of End of Month	
Bank Notes	100,000 Pesos	**COP 0.00**
	50,000 Pesos	**COP 0.00**
	20,000 Pesos	**COP 0.00**
	10,000 Pesos	**COP 0.00**
	5,000 Pesos	**COP 0.00**
	2,000 Pesos	**COP 0.00**
Coins	Coins Total	**COP 0.00**
	Total Cash On Hand as of XXXXXX	**COP 0.00**
	Beginning Amount of Petty Cash in COP	**COP 0.00**
	Beginning Amount of Petty Cash in USD	**$ 200.00**
	Difference (Should equal the above expense report total)	**COP 0.00**

By signing below I certify that I have conducted a cash count on _____________ (date) and verified Petty Cash Float in the presence of the petty cash float holder.

Petty Cash Verifier: ______________________________ Date: __________

Title ______________________________

Petty Cash Float Holder: ______________________________ Date: __________

Title: ______________________________

Remarks: ______________________________

Annex C

Field Expenditure Report and Certification

Partners of the Americas - DOL418/DOL420 Colombia Payroll Account Report

Month ending	3/31/2020
Country	Colombia

drop down list

Ref or CK#	Payee	Funder-Grant	*Budget Description	Activity Code	Amount Colombian Pesos	Exchange Rate 3,210.00	Amount (USD)	Object Code	Description of Expense	Country	Office	Subcont. ID	Session Description
		DOL418_Grant	Administration Manager (50%)	PERSNL-F&A	COP 0.00	3,210.00	$ -	7410		CO	CO	0	Colombia DOL418/DOL420
		DOL420_Grant	based Staff Travel to Ecuador, Peru, and Brazil for Non-M&E Activities - Lodging an	CE.T4.II	COP 0.00	3,210.00	$ -	7520		CO	CO	0	
		DOL420_Grant	Fringe benefits - Colombia	FRINGE-CO		3,210.00	$ -	7420		CO	CO	0	
		DOL418_Grant	Fringe benefits - Colombia	FRINGE CO		3,210.00	$ -	7420		CO	CO	0	

General Information & Certifications

Name of the Country office	**Colombia Field Office**	**Name of the Country office**	**Colombia Field Office**
Project Code:	***DOL418***	**Project Code:**	***DOL420***
Project Name:	***Colombia Avanza - Building the Capacity of Civil Society to Combat Child Labor and Forced Labor and Improve Working Conditions***	**Project Name:**	***Project to Reduce Child Labor and Forced Labor in Palm Oil Supply Chains***
Project Start Date:	**08-Dec-17**	**Project Start Date:**	**01-Jan-19**
Project End Date:	**30-Nov-20**	**Project End Date:**	**31-Dec-22**
Report Date:	**01-Aug-19**	**Report Date:**	**01-Aug-19**
Total Months for the Project:	**36 Months**	**Total Months for the Project:**	**49 Months**
Remaining Months for the Project:	**16 Months**	**Remaining Months for the Project:**	**42 Months**
Remaining Months for the Project:	**44.76%**	**Remaining Months for the Project:**	**85.48%**

Certification of Expenses:

1. The undersigned hereby certifies (1) the fiscal report & attachments have been prepared from the books & records of the field office in accordance with the terms of the grant
2. That the work reflected by the costs above have been performed, that the quantities and amounts involved are consistent with the requirements of the award.
3. That all required approvals have been obtained and appropriate refund to Partners of the Americas will be made upon request in the event of disallowance of costs not
4. By signing this report, I certify that the expenses contained in the present report for month of __XXXXX____ equivalent to US dollars __XXXXXX___ were incurred by the

Name of Certifier: ____________________

Signature: ____________________

Title: ____________________

For Internal Use Only
Partners of the Americas

Program Manager

I have reviewed and confirmed that all expenses listed in the detail of disbursements report are in line with the program goals and approved work plan. I certify that all expenses are reasonable within the approved budget.

Name of Certifier: ____________________

Signature: ____________________

Title: ____________________

Bank Reconciliation

PARTNERS of the AMERICAS
Connect • Serve • Change Lives

DOL418/DOLL420 Payroll Account - Colombia
Bank Reconcilation
Bank Account: XXXXX

Month and Year: **Jul-19**

Exchange Rate for the Month COP to USD **3210.00**

According to the Bank

Balance as end of: *July-19* COP 0.00

Plus:

Deposits in Transit COP 0.00

Less:

Check in Transit COP 0.00

Number of Check	Details of Expense	Date	Amount
			COP -
			COP -
			COP -
			COP -
			COP -
			COP -

Balance According to the Bank: **July-19** **COP 0.00**
Exchange Rate Applied COP to USD **3210.00**

USD Balance According to the Books end of: **July-19** $ -

According to the Books

Balance as Beginning of: *July-19* COP 0.00

Plus:

Deposits for the Month COP 0.00

Less:

Check Written in Current Month COP 0.00

COP Balance According to the Books end of: **July-19** **COP 0.00**
Exchange Rate Applied COP to USD **3210.00**

Difference of Bank and Book Balance as end of: **July-19** $ -

By signing this report, I certify that the expenses contained in the present report for month of __XXXXX____ equivalent to US dollars __XXXXXX___ were incurred by the entity, and are related to activities carried out by the project. I certify to the best of my knowledge and belief that the report is true, complete, and accurate, and that the expenditures and disbursements are for the purposes and objectives set forth in the terms and conditions of the Department of Labor (DOL) Award. I am aware that any false, fictitious, or fraudulent information, or the omission of any material fact, may subject me to criminal, civil or administrative penalties for fraud, false statements, false claims or otherwise. I understand that if the expenses contained herein are questioned or not approved by Partners CFO or by DOL, I will provide full cooperation to all the involved parties to complete such review, audit or

Prepared By: ______________________________ ____________
Finance-Administrative Director Date

Approved By: ______________________________ ____________
Project Director Date

Field Office Expense Checklist (Resource Only)

Colombia Field Expense Report Check List

1	Download bank transactions for the last month	
2	Verify bank balance at the end of the month	
3	Input the month of the report on all sheets.	
4	Enter the last month's average exchange rate in the cell indicated (download by Oanda web)	
5	Organize the transactions by payment date	
6	Reference the payee name	
	6A	If the payment is to the Joint Account, the payee name should be PoA Suc Colombia
7	Select the budget description for each transaction	
8	Write the amount in pesos verifying the correct exchange rate	
9	Very which exchange rate must be used (last month's average vs related record exchange rate from a previous month)	
10	Describe in detail each transaction (row by row)	
	10A	Invoice number
	10B	Month
	10C	Year
	10D	Detailed description of the expense, the expense should be described in detail
		If the expense is payroll it must be written with the first letter of the period, the employee's position, followed by the initial letter person's name, and the last name. (E.g. September Payroll 2020 Salary Adm. Assistant A. Moreno)
		If it is a payroll deduction, the type of deduction should be written (E.g. SS, Rte Fte, Etc.)
		If it is a tax, write the type of tax (E.g. Rte Fte, Rte ICA)
11	The payroll records must be written by employee and concept. (E.g. 1st. row by salary or payment type - incomes -, 2nd. row by social security discounts in negative, 3rd. row in the case of discount by taxes, also in negative).	
12	Download the official bank statement in the PDF format when available.	
13	Include notes in the Bank Statement for the records that sum more than 1 row in the Excel report	
14	Verify the Excel formula IF for the sum in dollars which excludes records that do not affect the budget	
15	Insert the hyperlink corresponding, previously saved in the Receipts Folder in the respective month, row by row in the column "Ref or CK" (column B). The file should contain:	
	15A	The bank transfer
	15B	Invoice or equivalent document
	15C	Visual compliance of the payee
	15D	For the payments to the Joint Account, add the cost distribution by project. It should be clear the amount corresponding to each project (E.g. Amount that F2F will assume of the external auditors fee).
16	Verify that the hyperlink that contains the documentation works correctly	
17	List A/P in their own tab	
	16A	Relate the A/Ps in the current month
	16B	Verify the A/P's sum is equal to the sheet "Certification of Expenses", and the form SUMIF
18	Input the amount corresponding to the Column H sum, less formula SUMIF. This amount should be in, in the Certification of Expenses sheet.	
19	Verify through "search" the name of month before, making sure the current month is the only one mentioned in the reporting with some exceptions. For the previous month's payments it should clearly be specified to what month they are relating to and why.	

Annex D

Cash Flow Request

PARTNERS *of the* AMERICAS
Connect · Serve · Change Lives

Partners of the Americas

CASH FLOW REQUEST for **May-19**

Office:	Colombia	***Currency:***	COP	***Date Requested:***	4/22/2019
Program/Grant #:	**DOL418**				

			Amount
Ending Bank Balance from Previous Month (COP)			COP 15,754,000.00
Exchange Rate of COP to USD			3150.00
Ending Bank Balance in USD			$ 5,001.27
Last Cash Flow Request (if not in previous month bank statement, otherwise put 0)			$ -
Total Projections for Current Month in USD	**Apr-19**		$ -
Total Projections for Next Month in USD (Rounded Numbers)		**May-19**	
Direct Labor			$ -
Equipment			$ -
Supplies and Office Expenses			$ -
Outcome 1: Improved capacity of civil society for acceptable conditios			$ -
Outcome 2: Improved capacity civil society to raise awarenessin coffee sector			$ -
Outcome 3: Improved Capacity of civil society to implement initiatives to address child labor			$ -
Outcome 4: Monitoring, Evaluation, and Collection of Reliable Data			$ -
Total			$ -
Necessary Funding for Next Month			$ (5,001.27)
Total Cash Flow Request			$ (5,001.27)

Prepared by: ______________________ Date: ____________

Title of Preparer ______________________

Certified By: ______________________ Date: ____________

Title of Certifier: ______________________

Remarks: ____

Annex E

Petty Cash Certification

Date

Name of Country Director/Chief of Party
Country Director/Chief of Party

Dear **Name of Country Director/Chief of Party**:

Re: CERTIFICATE OF PETTY CASH FLOAT HELD FOR PROJECT NAME AND GRANT NUMBER

TOTAL OF PETTY CASH FLOAT: ______________________

LESS TOTAL PETTY CASH VOUCHERS: ______________________

EQUALS TOTAL CASH ON HAND: ______________________

I certify that I have conducted a cash count on _____________ (date) and verified Petty Cash Float in the presence of the petty cash float holder.

PETTY CASH VERIFIER: ___________________ Name

___________________Signature

PETTY CASH FLOAT HOLDER: ___________________ Name

___________________ Signature

Annex F

Harassment Complaint Form

The information you provide below is considered sensitive and will be shared only with those who are considered essential to the investigation and disposition of this complaint. Do not feel limited by the space provided in this form – you are encouraged to attach additional pages if you believe it will assist in the investigation.

If you are more comfortable with verbally relaying your report, your supervisor, or any member of management you've discussed your complaint with can complete the form on your behalf. However, you must sign the last page.

Complainant Name:	
Position:	
Department:	
Supervisor:	

1. ***Describe the alleged harassment incident(s).***

2. ***Who was responsible for the alleged harassment incident(s)?***

3. Identify any witnesses to the alleged harassment incident(s).
4. Where did the alleged harassment incident(s) take place?
5. List the date(s) and time(s) that the alleged harassment incident(s) occurred.
6. Have you reported this incident to anyone else? If so, whom?

Employee Signature		***Date***
Signature of Person Completing Form (if not employee):		***Date***
Name of Person Completing Form (if not employee):		

Partners Colombia is an equal opportunity employer. It is Partners Colombia's policy that all employees have a right to work in an environment free of discrimination and harassment based on gender, race, maternal language, color, sex, religion, age, pregnancy or maternity, political opinion, disability, sexual orientation, disability or health condition, economic situation, philosophy, national or family origin or social origin or any other basis protected by local law. Partners Colombia's policy prohibits retaliation against any employee for complaining about discrimination or harassment.

Annex G

Employee Incident Report

<table>
<tr><th colspan="6">A. Injured Employee Data</th></tr>
<tr><td colspan="3">Employee Name:</td><td colspan="2">Position:</td><td>Full Name of Witness (If applicable):</td></tr>
<tr><td colspan="6">Work Location:</td></tr>
<tr><td colspan="2">Date of Accident</td><td colspan="2">Time of Accident
A.M. ☐

P.M. `☐</td><td colspan="2">Claim Number (if known)</td></tr>
<tr><td>Phone:</td><td colspan="3">Other/Cell Number:</td><td colspan="2">Email:</td></tr>
<tr><td colspan="4">Supervisor</td><td colspan="2">Supervisor Telephone Number</td></tr>
</table>

Check all that Apply:

Type of Accident/Loss: ( )Injury ( )Vehicle Accident ( )Illness ( )Property Damage ( )Fire

(_)Other-Specify:______

Location of Occurrence: ( )On Premises - Office ( )Off-Premises

Nature of Injury/Illness: (Strain, Laceration, Burn, Fracture, etc.)_____________________________

Part(s) of Body: (Back, Finger, Hand, Foot, etc.)_____________________

Date of 1st Medical Treatment:_Time__AM/PM

Employee Sent: ( )Back to Work ( )To Doctor ( )Home ( )To Hospital

If applicable: Estimated Time of Disability:______Days

For Vehicle Accidents Only

Owner: ( ) Partners Colombia ( )Other (Name/Address)_____________

License Plate Number:_______________Year:________

Make/Model:________________

Brief Damage Description:

Repair Hours (Estimated)______ Estimated Material Costs $____________

B. Accident Description
Instructions: Obtain written and/or recorded statements from injured employee. What happened? What caused the accident? What were the contributing factors? Reconstruct the sequence of events that led to the injury. Attach additional sheets if necessary. This document becomes an official accounting of the facts surrounding the accident. When documenting the facts, include answers to the following questions:
Where did the accident happen and who was involved? Provide a full description of the surroundings of the location and the individuals involved.
What was happening at the time of the accident and why was it taking place?
What were the events leading up to the accident? Describe the sequence in order and when they took place.
What exactly caused the injury and how did it happen? What were the mechanics, equipment or tools involved?
Describe the injury or injuries incurred. What body part and what kind of injury? (Indicate if no injury occurred.)

If a physical injury was avoided, what could have happened to cause an injury?
7. If damage occurred to employer vehicle, please describe the damage:
8. If damage occurred to employer equipment, please describe the damage:
C. Accident Findings
After review of all facts, what was the hazardous condition, unsafe work practice, or other causal factors (procedure, equipment, people, and environment) that contributed to the accident / injury?

Employee Signature: ____

Date:_________________

Witness Signature (If Applicable):____

Date: __________

Supervisor Signature: ____

Date: _________________

Employee Accident Investigation Report

To Be Conducted by PD

For all question below please write one of the following: *(Y for Yes; N for No; NA for Not Applicable)*

I. Environmental Data

Temperature___
Humidity______
Weather_______
Wind__
Visibility______
Lighting______
Surface (road, steps, floor, etc.).
____
Condition (smooth, wet, slippery, etc.)
____

Type Surface (wood, asphalt, grass, etc.)
____
Describe Roadway (Curve, uphill, intersection, etc.) _______________
Traffic Control Devices (Y/N):
(1) Present____
(2) Visible____
For ramps, stairs, steps (Y/N):
(1) Present____
(2) Obstructions______

II. Operator/Vehicle (If applicable)

A. Driver Injured________________
B. Passengers Injured ____________
C. Others Injured________________
D. Vehicle Damaged______________
F. Other Vehicle Damaged________

G. Other Property Damaged______________
H. Driver Licensed for Vehicle____________
I. Seat Belts Worn______________________
J. Alcohol/Drugs Involved ______________

III. Equipment/Training Data

A. Safety Equipment Required_______
B. Safety Equipment Available_______
C. Safety Equipment Used___________
D. Experience a Factor______________
E. Instructions Available____________

F. Instructions Written_______________
G. Instructions Adequate_____________
H. Alcohol/Drugs a Factor____________
I. Adequate Rest for Use_____________

Have similar accident occurred before? ____

How many accidents has this employee had in the past 12 months? __________________________

Of the above accidents how many were preventable? ____________________________________

Once the investigator has completed the questions above and reviewed the incident report, answer the following questions:

In your opinion, what caused the accident?

A. Unsafe Procedure_______________ Was this Preventable _____ or Non-Preventable _____

B. Defective Equipment ____________ Was this Preventable _____ or Non-Preventable _____

C. Horseplay/Misconduct___________ Was this Preventable _____ or Non-Preventable _____

D. Unauthorized Use ______________ Was this Preventable _____ or Non-Preventable _____

E. Poor Hygiene/Housekeeping _______ Was this Preventable _____ or Non-Preventable _____

F. Lack of Training/Experience ________ Was this Preventable _____ or Non-Preventable _____

D. Corrective Action
What is recommended to prevent this type of accident from occurring again?
List possible factors based on descriptive narrative and information in preceding data fields:
List causes:
Corrective Action Taken/Planned, with dates:

Use Additional Forms and Paper if Required

Investigated by: ____

Investigator Signature: ____

Date: __________________

Reviewed by: ____

Reviewer Signature: ____

Date: __________________

Annex H

Application for Employment

EEO Statement: Partners of the Americas is an equal opportunity employer and will not discriminate against any application for employment on the basis of actual or perceived race, color, religion, national origin, religion, sex (including pregnancy, childbirth, and other pregnancy-related conditions), age (18 and over), marital status (including parenthood), personal appearance, sexual orientation, gender identity or expression, family responsibilities, genetic information, disability, veteran status, matriculation, political affiliation or any other basis prohibited by law.

General Information:

Date:______________________________________

Full Name: ____

Current Email Address: ____

Current Address: ____

Day Phone Number: ______________ Evening Phone Number: _______________

____ [ ] Full-Time
Position Desired Salary Desired Earliest Start Date [ ] Part-Time
[ ] Intern

Have you ever applied to Partners of the Americas before? __________

If yes, when: ______________________

How did you find out about Partners of the Americas? ______________________________________

Are you legally permitted to work in this country? [ ] Yes [ ] No

Have you ever been convicted of a crime other than a minor traffic violation? [ ] Yes [ ] No
If yes, give details on a separate page and attach to the application.

Note: A criminal conviction is not an absolute bar to employment but will be considered in relation to specific job requirements.
Education / Training:

High School City & State Degree

Did you graduate: [ ] No [ ] Yes

College City & State Degree

Did you graduate: [ ] No [ ] Yes

Graduate/Trade School City & State Degree

Did you graduate: [ ] No [ ] Yes

Previous Experience (Start with current or most recent employer):

Firm Name From (Month/Year) To (Month/Year) Salary

Address (Street, City, State, Zip)

Job Title Supervisor's Name Phone #

Responsibilities: ____

Reason for Leaving: ____

May we contact the above employer? [ ] Yes [ ] No If no, please provide explanation.

Firm Name From (Month/Year) To (Month/Year) Salary

Address (Street, City, State, Zip)

Job Title Supervisor's Name Phone #

Responsibilities: ____

____

Reason for Leaving: ____

May we contact the above employer? [ ] Yes [ ] No If no, please provide explanation.

____

Firm Name From (Month/Year) To (Month/Year) Salary

____

Address (Street, City, State, Zip)

____

Job Title Supervisor's Name Phone #

Responsibilities: ____

____

Reason for Leaving: ____

May we contact the above employer? [ ] Yes [ ] No If no, please provide explanation.

Additional Qualifications:

Please identify any additional knowledge, skills, qualifications, or awards that will be helpful to us in considering your application for employment.

____

____

References:

Please provide the names of three professional references, not related to you, who can best provide pertinent information as to your character and capabilities for the position you are applying or being considered for. These individuals are generally your previous supervisors.

Name/Title: **Organization:** **Relationship:**

Email **Telephone #:**

Applicant's Certification:

Applicant's Certification of Truthfulness, Agreement to Background Checks and Understanding Employment

I hereby certify that all statements made in this application and in the pre-employment, process are true and correct to the best of my knowledge and belief. I understand and agree that any misrepresentation or omission of facts in my application or in the pre-employment process may result in rejection of my application or termination of my employment.

I understand an employee of Partners of the Americas may make an investigation as to my character and general reputation. I authorize all current and past employers, schools, persons, and organizations having relevant information or knowledge to provide it to Partners of the Americas for the use in deciding whether or not to offer me employment. I hereby release Partners of the Americas its representatives and all such employers, schools, persons, and organizations from all liability in making or responding to inquiries in connection with my application.

I understand that if an employment relationship is established my employment can be terminated at any time, with or without cause, at the option of either Partners of the Americas or myself. I further understand that nothing contained in this application or in any other oral communication or representation from Partners of the Americas or any Partners of the Americas representative made at any time constitutes a contract, guarantee, promise or any other binding obligation on Partners of the Americas.

Further, if granted a position with Partners of the Americas, I will comply with all of Partners of the America's policies and procedures, a copy of which will be provided on or before my first week of employment.

In signing this form, I certify that I understand all the questions and statements in this application.

Acknowledged:

Signature of Applicant **Date**

Annex I

Performance Evaluation Template

EMPLOYEE PERFORMANCE EVALUATION

EMPLOYEE NAME		REVIEWER NAME	
EMPLOYEE TITLE		REVIEWER TITLE	
DATES OF REVIEW	January 1, 2019 - December 31, 2019	TODAY'S DATE	
CHARACTERISTICS			
QUALITY	RATING SCALE	COMMENTS	
Works to Full Potential (not distracted & able to complete quality work)			
Takes Initiative (doesn't wait to be asked to start doing his/her work)			
Time Management (consistently meets deadlines with quality & accuracy)			
Communication (responds promptly & accurately to requests)			
Accountability (follows policies & procedures)			
Financial Management (accurate & responsibly handling funds)			
Coworker Relations (interacting respectfully & in good behavior with staff)			
Attendance & Punctuality (is on time to work - in the field of office, and has excused absences)			
COUNTRY DIRECTOR TECHNICAL ROLE			
Designed well-written country project strategies			
Identifies local host organizations			

Onboards field staff - review Field Office Manual & POA policies		
Ensures project Scopes of Work meet the country's project strategy		
Oversees in-country travel & logistics for volunteers & staff		
Produces comprehensive & well-written content to POA for reports		
Establishes relationships with hosts, partners, & other stakeholders		
Follows POA's instructions and implements updates		
Successfully supervises field staff & keeps them accountable		
Monitors & evaluates the quality & impact of volunteer assignments		
OVERALL SCORE /80		

GOALS FOR NEXT PERIOD

COMMENTS

EMPLOYEE SIGNATURE		**REVIEWER SIGNATURE**	

DEFINITION OF RATINGS

EXCEPTIONAL (5): Consistently exceeds all relevant performance standards. Provides leadership, fosters teamwork, is highly productive, innovative, responsive and generates top quality work. Active in industry-related professional and/or community groups.

EXCEEDS EXPECTATIONS (4): Consistently meets and often exceeds all relevant performance standards. Shows initiative and versatility, works collaboratively, has strong technical and interpersonal skills, or has achieved significant improvement in these areas.

MEETS EXPECTATIONS (3): Meets all relevant performance standards. Seldom exceeds or falls short of desired results or objectives. Lacks appropriate level of skills or is inexperienced/still learning the scope of the job.

BELOW EXPECTATIONS (2): Sometimes meets the performance standards. Seldom exceeds and often falls short of desired results. Performance has declined significantly, or employee has not sustained adequate improvement, as required since the last performance review or performance improvement plan.

NEEDS IMPROVEMENT (1): Consistently falls short of performance standards.

Salary Increase Form

PARTNERS of the AMERICAS
Connect • Serve • Change Lives

2020 Salary Increase Form

Salary increases are based on performance and available funds. The supervisor may suggest a salary increase for each employee based on the scale below. If deviating from this scale, an explanation must be included. Salary increases are ultimately at the President's discretion.

- Overall score of 4.5 and above **Exemplary** (4-5% increase)
- Overall score of 3.5 and above **Solid Performance** (2-3% increase)
- Overall score of 3.0 and above **Satisfactory** (1-2%)
- Overall score of 3.0 and below* **Needs Improvement** (0-1% increase)

*Supervisor must attach list of deficiencies and necessary corrective actions (performance improvement plan).

Employee Name:

Effective Date of Change: 1/1/2020

(Retroactive to this date, if applicable)

Current Salary		
2019 Annual Salary:	$ -	
		#s needed for formula
Months Worked in 2019	0.00	$ -

Annex J

Risk Assessment Templates

Sub-recipient Monitoring Tool- First Time

FIRST TIME RISK ASSESSMENT

Subrecipient Monitoring & Evaluation Check List

Name of Project & Grant Number:
Subrecipient Name:

Fixed Obligation Grant/Contract:	Yes or No	**Overall Score**			
Cost Reimbursable Grant/Contract:	Yes or No	0			
Staff Name Completing Form:		High Risk	Medium Risk	Low Risk	
Date Completed:		121-180	61-120	0-60	

Grading Legend:

Not Applicable	Low Risk	Medium Risk	High Risk
0	**1**	**2**	**3**

Explanation of risk levels:
HIGH – The risk associated with engaging the sub-recipient could compromise the project's goals, objectives, or compliance the prime sponsor's terms and conditions.
MEDIUM – The risk associated with engaging the sub-recipient could result in Partners operating inefficiently and/or expending unplanned resources to meet the project's goals and objectives.
LOW – The risk associated with engaging the sub-recipient has no anticipated measurable effect on the achievement of the project's goals and objectives.

No.	Description	``	Review Areas/ Action Required	Answers to Questions	Rating Risk			
1	**Organization, Administration and Human Resources**							
	1.1	**Entity Details and Registration Compliance**						
		Is the organization U.S. based or foreign?						
		Is the organization legally registered in country?	Ex. Registration documents					
		Does the organization have a DUNS number	DUNS number must be obtain prior to award					
	1.2	**Business Structure**						
		What type of organization is the subrecipient? Grassroots, NGO, LLC, Corporation, Sole-Proprietorship, etc.?						
		Who is ultimately responsible for business liabilities, debts and actions?						
		How long has the subrecipient been in business? Over 10 years?						
	1.3	**Funding**						
		In the preceding fiscal year, did the subrecipient received 50% or more of its annual gross revenues from US federal contracts?	If majority of funding from USG, shows experience managing USG funding.					
	1.4	**Project Operations**						
		Is there an organizational chart? Is it updated?						
		Are staff aware of reporting structures?						
		Are there sufficient internal controls in place to protect against waste, fraud and abuse of Federal funds? Is there segregation of duties?	Ex. Responsible person for financial reporting, cash management, procurement, invoices, payroll, general accounts, property management					
		Does the organization have an Operations Manual?						
		Are the key elements of an Operations Manual present? 1) Project definition and scope 2) Project objectives 3) Mgmt. standards & procedures 4) Organizational chart 5) Financial & HR procedures 6) Staffing requirements 7) Record Retention policy 9) Procurement procedures 10) Travel Policy 11) Capitalization/depreciation 12) Risk assessment policy (if second-tier subrecipients) 13) Protection from Sexual Exploitation and Abuse (PSEA) 14) Child Protection Policy (if working with children) 15) Suspension & Debarment	Review key sections to ensure compliance with 2 CFR 200 Uniform Guidance:					
		Do the organization's policies meet or exceed the Federal retention requirements?	Review record retention policy					
	1.5	**Human Resources and Personnel**						
		Are there Personnel Files? Do they have proper backup and filing systems?	Is there a CV or Bio-data, offer letter or employee contract? Is there a job description? Is signed copy of contract ? Test: Random check of each personnel file to verify documentation. How are salary distributions made? Are they properly documented?					
		Is there a written HR Policy? Is it being followed?	Review HR policy					
		Does the subrecipient have a written conflict of interest policy for their employees and contractors? How often is it signed?	Spot check and confirm conflict of interest policies are being signed by employees					
		Is there a clear delineation of roles and responsibilities?						
		Are employees benefit plans readily available (medical, insurances, allowances, bonus policies etc.)? Are fringe benefits paid in accordance with local laws and organizational policy?	Evidence (health plan, workplace insurance, overtime register, training policy, etc.)					
		Are personnel and consultants contracts available in hard or soft copy? Or both?	If only hard copy, what mitigation efforts are taken to ensure their safety			Organization, Administration, and Human Resources Scoring		
						High Risk	Medium Risk	Low Risk
		Total score for Organization, Administration and Human Resources			0	39-57	20-38	0-19
2	**Risk Management**							
	2.1	**Anti-corruption / Sanctions Lists / Counter Terrorism**						
		Has POA conducted a screening of the organization and people working for a project? Ex. Visual Compliance Check	Conduct Visual Compliance checks					
	2.2	**Risk Management**						
		Is there a Project Filing System?	Filing list, hard and soft copy files, compliance with SharePoint filing system					
		Does the subrecipient have a procedures to identify and account for federal property and equipment purchased with grant funds?						
		Does the subrecipient have adequate safeguards for preventing loss, damage, or theft of property held (inventory control, etc.)?						
	2.3	**Safety and Security Plan**						
		Is there a Safety and Security Plan on file with up-to-date emergency contact information?				Risk Management Scoring		
						High Risk	Medium Risk	Low Risk
		Total score for Risk Management			0	11-15	6-10	0-5

3	**Finance and Procurement**				
	3.1	**Financial Operations**			
		Are there financial management procedures?	Spot check; Review key sections to ensure compliance with 2 CFR 200 Uniform Guidance and GAAP		
		Are staff aware of the financial management procedures?	Are trainings done regularly?		
		Do records show correct signatures in line with delegated authority? Are invoices or vouchers approved in advance by authorized officials?	Spot check 10 items		
		Are payment vouchers or supporting documents identified by grant number, date(s) and expense classification?	Spot check 10 items		
		Is there evidence of proper financial documentation?	Payment ,receipt, journal entry, petty chase, invoices, payroll slips, bank statements, bank reconciliations		
		Are financial records being kept in hard or soft copy? Or both?			
		Does the subrecipient have a cash forecasting process which will minimize the time elapsed between the drawing down of funds and the disbursement of those funds?			
	3.2	**Payroll**			
		Is payroll calculated each month?	By whom and how?		
		Are all applicable taxes being withheld?	Ex. Income tax, PAYE		
		Are individual timesheets or time and effort reports for each staff member available?	Spot check documentation and ensure duly signed		
		Does payroll documentation detail other benefits and percentage allocation?			
	3.3	**Audit**			
		Have Subrecipient's annual financial statements been audited by an independent audit firm? If yes, provide a copy of the statements for the last year.	Review audit report		
		Is the organizations currently subject to audit requirements set forth in section § 200.501 for spending $750,000 in USG funding?	Review audit report		
		If the subrecipient had an external audit, where there any findings? If so, have the findings been resolved?			
		Has the subrecipient currently or previously been involved in any litigation concerning performance or financial management under United States Government federal award or subaward?			
	3.4	**Procurements**			
		Are formal procurement policies and procedures in place and being followed?	Test procurement documentation		
	3.5	**Accounting System**			
		What type of financial management/accounting system does the subrecipient utilize?			
		Is there adequate reporting and tracking of funds? Are sources of non-Federal funds identified and tracked separately in the accounting system?			
		Does Subrecipient's financial system provide for the effective control over and accountability for all funds, property, and other assets (including but not limited to: (1) comparison of expenditures with budget amounts for each award; and (2) recording of each grant/contract by the budget cost categories shown in the approved budget)?			
		Is there a chart of accounts?			
		Does the system provide for prompt and timely recording and reporting of all financial transactions?			
		Does the organization keep a separate bank account for POA/USG funds?			
	3.6	**Cost Share**			
		Has the organization worked with cost share requirements before? Does Subrecipient have a system in place to determine that it has met its cost sharing goals, if applicable?			
	3.7	**Inventory Systems**			
		Does the subrecipient periodically check its detailed property and equipment records against physical inventory?			
	3.8	**Travel**			
		Does the organization have its own travel policy and is the policy being followed?	Review travel policy		
		Total score for Finance and Procurement			0
4	**Technical Capacities**				
	4.1	**Experience**			
		Has the subrecipient worked on projects related to or with POA's in the past? If so, when?			
		Has the subrecipient worked with USG funding past? If so, when?			
		Are the activities of the subrecipient aligned with the mission and the values of the organization?			
	4.2	**Leadership**			
		Is the subrecipient well known because of its leadership in relevant topics related to the goals of the subaward?			
		Are the senior staff members of the company leaders that can facilitate project implementation?			
		During the last year has been a change in leadership?			
	4.3	**Personnel and Consultants**			
		Are the technical staff of the organization qualified and have the necessary experience?			
		What is the turnover of the technical staff?			
		Does the organization have the ability to hire a short-term consultant quickly?			
	4.4	**Monitoring and Evaluation**			
		Does the organization have mechanisms (monitoring and evaluations tools) to ensure good quality of the products?			
		Is there a database or other platform to accurately enter, store, and download M&E data?			
`		***Total score for Technical Capacities***			0
		Total Score in All Categories			0

Organization and Administration Scoring		
Finance and Procurement Scoring		
High Risk	Medium Risk	Low Risk
51-75	26-50	0-25

Technical Capacities Scoring		
High Risk	Medium Risk	Low Risk
23-33	12-22	0-11

Sub-recipient Monitoring Tool- Recurring Policy

REOCCURING RISK ASSESSMENT

Subrecipient Monitoring & Evaluation Check List

Recurring Policy (Subrecipient Monitoring)

Name of Project & Grant Number:				
Subrecipient Name:				
Fixed Obligation Grant/Contract:	Yes or No	**Overall Score**		
Cost Reimbursable Grant/Contract:	Yes or No	0		
Staff Name Completing Form:		High Risk	Medium Risk	Low Risk
Date Completed:		129-192	65-128	0-64

Grading Legend:

Not Applicable	Low Risk	Medium Risk	High Risk
0	**1**	**2**	**3**

Explanation of risk levels:

HIGH – The risk associated with engaging the sub-recipient could compromise the project's goals, objectives, or compliance the prime sponsor's terms and conditions.
MEDIUM – The risk associated with engaging the sub-recipient could result in Partners operating inefficiently and/or expending unplanned resources to meet the project's goals and objectives.
LOW – The risk associated with engaging the sub-recipient has no anticipated measurable effect on the achievement of the project's goals and objectives.

No.	Description		Review Areas/ Action Required	Action Required	Rating Risk
1	Organization, Administration and Human Resources				
	1.1	**Funding**			
		In the preceding fiscal year, did the subrecipient received 50% or more of its annual gross revenues from US federal contracts?	If majority of funding from USG, shows experience managing USG funding.		
	1.2	**Project Operations**			
		Is there an organizational chart? Is it updated?			
		Are staff aware of reporting structures?			
		Are there sufficient internal controls in place to protect against waste, fraud and abuse of Federal funds? Is there segregation of duties?	Ex. Responsible person for financial reporting, cash management, procurement, invoices, payroll, general accounts, property management		
		Has the Operations Manual been updated?			
		If there were policy changes in the past year, are the key elements of an Operations Manual still present? 1) Project definition and scope 2) Project objectives 3) Mgmt. standards & procedures 4) Organizational chart 5) Financial & HR procedures 6) Staffing requirements 7) Record Retention policy 9) Procurement procedures 10) Travel Policy 11) Capitalization/depreciation 12) Risk assessment policy (if second-tier subrecipients)	Review key sections to ensure compliance with 2 CFR 200 Uniform Guidance:		
		If there are project vehicles, is there a vehicle usage log? Is it maintained and reviewed on a regular basis? Is there an office policy on vehicle usage? If there is no vehicle, is mileage reimbursement done correctly in the past year?			
	1.3	**Human Resources and Personnel**			
		Are the Personnel Files up-to-date? Do they have proper backup and filing systems?	Is there a CV or Bio-data, offer letter or employee contract? Is there a job description? Is signed copy of contract ? Test: Random check of each personnel file to verify documentation. How are salary distributions made? Are they properly documented?		
		Has the written HR Policy been updated? If so, is it being followed?	Review updated HR policy		
		Is the conflict of interest policy being followed? How often is the certification signed by staff?	Spot check and confirm conflict of interest policies are being signed by employees		
		Is there an up-to-date list of project employees and consultants?			
		Are employee salary and consultant payments in accordance with the approved budget and authorized level of effort?			
		Total score for Organization, Administration and Human Resources			0
2	Risk Management				
	2.1	**Anti-corruption / Sanctions Lists / Counter Terrorism**			
		Has POA conducted an updated screening of the organization and people working for a project? Ex. Visual Compliance Check	Conduct Visual Compliance checks		
		Has the subrecipient been conducting SAM checks prior to payments on their vendors?			
	2.2	**Risk Management**			
		Are local contract templates being checked regularly (at least every two years) to make sure they are in line with country workplace laws?	Evidence of local legal advice		
		Is the a Project Filing System being followed? Are files requested by Partners easily available?			
	2.3	**Safety and Security Plan**			
		Is the Safety and Security Plan being followed and updated regularly? Has there been any major security concerns in the past year?			
		Total score for Risk Management			0

Organization, Administration, and Human Resources Scoring		
High Risk	Medium Risk	Low Risk
25-36	13-24	0-12

Risk Management Scoring		
High Risk	Medium Risk	Low Risk
11-15	6-10	0-5

3	**Finance and Procurement**				
	3.1	**Financial Operations**			
		Are there updated financial management procedures?	Spot check; Review key sections to ensure compliance with 2 CFR 200 Uniform Guidance and GAAP		
		Are staff aware of the financial management procedures?	Are trainings done regularly?		
		Are project invoices/financial reports being submitted to Partners on time?	Spot check last 3 invoices		
		Do records show correct signatures in line with delegated authority? Are invoices or vouchers approved in advance by authorized officials?	Spot check 10 items		
		Are the expenses reasonable, allowable and allocable?	Spot check 10 items		
		Has the financial documentation been complete? Accurate? Does supporting documents identify grant number, date(s) and expense classification?	Payment ,receipt, journal entry, petty chase, invoices, payroll slips, bank statements, bank reconciliations		
		Is there a budget variance greater than 10% of the total award value in any budget category?			
		Has cash flow projections been reasonable and accurate? Has effort been made to minimize the time elapsed between the drawing down of funds and the disbursement of those funds?	Review cash flow projections against financial reports/invoices.		
		Are financial records being kept in hard or soft copy? Or both?			
	3.2	**Payroll**			
		Has payroll been calculated correctly each month?			
		Are all applicable taxes being withheld?	Ex. Income tax, PAYE		
		Are individual timesheets or time and effort reports for each staff member available?	Spot check documentation and ensure duly signed		
		Does payroll documentation detail other benefits and percentage allocation? Are funding and staffing resource estimates sufficiently detailed and documented for use in planning and tracking the grant?			
	3.3	**Audit**			
		Are annual audits being undertaken either internally or externally?	Annual audit reports		
		Are project audits stipulated per the grant? Or is the organizations currently subject to audit requirements set forth in section § 200.501 for spending $750,000 in USG funding?	Check contract/grant		
		If yes, are audits being conducted and copies sent to Partners?			
		If the subrecipient had an audit, where there any findings or questioned costs? If so, have the findings and/or questioned costs been resolved? Who is responsible for handling the findings and/or questioned costs?			
		If applicable, did the subrecipient submit a timely response to the auditors, including a plan for correcting any findings?			
		Has the subrecipient currently or previously been involved in any litigation concerning performance or financial management under United States Government federal award or subaward?			
	3.4	**Procurements**			
		Are formal procurement policies and procedures being followed? Any issues with procurement and its documentation in the past year?			
		If applicable, have all special conditions of the award been met? Ex. Prior approval for travel, consultants, second tier subawards, etc.			
	3.5	**Accounting System**			
		Has there been adequate reporting and tracking of funds? Are sources of non-Federal funds identified and tracked separately in the accounting system?			
		Does the system provide for prompt and timely recording and reporting of all financial transactions?			
	3.6	**Cost Share**			
		If required, has cost share been reported correctly and properly documented?			
		Are the items reported as cost share reasonable, allocable and allowable?			
	3.7	**Inventory System**			
		Has the subrecipient periodically check its detailed property and equipment records against physical inventory?			
		Are inventory items for the project labeled, marked and entered into a log/register?			
		Are inventory registers for the project being updated regularly and checked at least annually?	Spot check inventory or inventory registers		
	3.8	**Travel**			
		Is there authorized travel by POA?	Check approved budget and other documentation		
		If travel is authorized, has the subrecipient followed its own travel policy?	Ensure policy is compliant with 2 CFR 200.		
		Are Travel Expense Reports submitted correctly, on time, and with appropriate approvals?	Spot check		
		Is the correct M&IE rate being used? Confirm it does not exceed the government rate.			
		Are itemized receipts attached to the travel expense reports?			
		Are only allowable expenses being reimbursed?			
		If travel advances are allowed, are they being cleared according to the organization's policy?			
		If conferences are part of travel, is there proof that funds went to specific conferences cited in deliverables?	Check for participants list, hotel reservations, receipts, and other documentation		
		Total score for Finance and Procurement			0

Finance and Procurement Scoring		
High Risk	Medium Risk	Low Risk
73-108	37-72	0-36

4	**Technical Capacities**				
	4.1	**Experience**			
		In the past year, has the subrecipient provide the expected experience and technical knowledge?			
	4.2	**Leadership**			
		During the last year has been a change in leadership?			
	4.3	**Personnel and/or Consultants**			
		Are the technical staff of the organization qualified and have the necessary experience?			
		What is the turnover of the technical staff?			
	4.4	**Monitoring and Evaluation**			
		Does the organization have mechanisms (monitoring and evaluations tools) to ensure good quality of the products?			
		Has the M&E reporting been accurate and complete?			
	4.5	**Programmatic Reporting**			
		Have technical reports been submitted timely?			
		Have the reports been accurate? Have there been errors?			
		Is the project functioning as described in application? Are target dates as established by the contractual agreement for each milestone/deliverable being met?			
		Is data/information provided to support project "goals/outcomes"?			
		Are project deliverables clearly understood by project staff?			
`		***Total score for Technical Capacities***			0
		Total Score in All Categories			0

Technical Capacities Scoring		
High Risk	Medium Risk	Low Risk
23-33	12-22	0-11

Annex K

Unallowable Costs

https://www.govinfo.gov/app/details/CFR-2014-title2-vol1/CFR-2014-title2-vol1-sec200-410/summary

Annex L

Examples for calculating per diem for HQ staff, note Field Staff have different percentages, however, the calculation is the same.

Notes:

- General Services Administration (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The Department of Defense (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The State Department establishes all foreign rates which are specific to major cities.
- Meal breakdown can be calculated in the following chart (note, for travel funded by USG programs, this table MUST be used): www.gsa.gov/travel/plan-book/per-diem-rates/mie-breakdown

i) Normal example with no exceptions

Traveler A, a staff from the HQ office, leaves for a trip to New York City on Monday morning in April. The flight is scheduled to leave at 9AM. The traveler returns back to home-of-record on Thursday by noon.

The M&IE rate is $76, as per the GSA website.
The Partners' approved rate is 90% = $68.4

The per diem received will be:
Monday = $68.4* 75% = $51.80
Tuesday = $68.40
Wednesday = $68.40
Thursday = $68.4 * 75% = $51.80

Total per diem = $51.80 + $68.40 + $68.40 + $5.1.80 = $240.40

ii) Departing from home early; arriving home late

Traveler B, a staff from the HQ office, leaves for a trip to Bogota, Colombia on Monday morning in April. The flight is scheduled to leave at 8:00AM. In order to catch the flight, Traveler B must leave the home-of-record at 5:30 AM in order to be at the airport two hours prior to departure. The traveler returns back to home-of-record on Thursday at 10PM.

The M&IE rate is $105, as per the State Department website.
The Partners' approved rate is 90% = $94.50

The per diem received will be:

Monday = $94.50 (this is a travel day; however, since Traveler B is leaving the home-of-record before 6AM, as per Section 14.5.2 M&IE Meal Breakdown, full per diem is applied)
Tuesday = $94.50
Wednesday = $94.50
Thursday = $94.50 (this is a travel day; however, since Traveler B is arriving to the home-of-record after 7PM, as per Section 14.5.2 M&IE Meal Breakdown, full per diem is applied)

Total per diem = $94.50 + $94.50 + $94.50 + $94.50 = $378

iii) Some meals covered by other sources

Traveler C, a staff from HQ, attends a conference in Panama City, leaving on flight on Monday at 11AM, attending the conference on Tuesday – Thursday, and returning on Friday morning, arriving to home-of-record after 9PM. During the conference, meals are provided for breakfast and lunch.

The Panama City M&IE rate is $99, as per the State Department website.
The Partners' approved rate is 90% = $89.10
Meal breakdown is as follows, as per Section 14.5.2:
Breakfast @ the $89.10 = $13; Lunch = $22; Dinner = $36; Incidentals = $18 (numbers rounded to nearest dollar)

The per diem received will be:

Monday = $89.10 * 75% = $66.83	(Panama City is the destination city and the rate to utilize on this first travel day)
Tuesday = $36 + $18 = $54	(Dinner plus incidentals)
Wednesday = $36 + $18 = $54	(Dinner plus incidentals)
Thursday = $36 + $18 = $54	(Dinner plus incidentals)

Friday = $89.10 (this is a travel day; however, since Traveler C is arriving to the home-of-record after 7PM, as per Section 14.5.2 M&IE Meal Breakdown, full per diem is applied; also, Panama City is the city of departure; hence, this rate is utilized)

Total per diem = $66.83 + 54 + 54 + 54 + 89.10 = $317.93

Annex M

PARTNERS of the AMERICAS
Connect • Serve • Change Lives

Affidavit in lieu of Receipt

I certify the following charges are true and correct and made for the business purpose outlined below.

Purpose/Event:

Date	Description	Amount	Payment Method

Signed,

____________________________ __________
Name Date

1424 K Street NW Suite 700 Washington DC 20005 202.628.3300 www.partners.net

Annex N

Government per diem rate for particular cities (DOS) (to be checked daily for any changes)

https://aoprals.state.gov/web920/per_diem_action.asp?MenuHide=1&CountryCode=1047

Acknowledgment of Receipt and Compliance to Policies

I hereby acknowledge that I have received the Colombia Supplemental Manual for Personnel and Operations (herein referred to as “MANUAL”) for Partners Colombia. I understand that the purpose of the MANUAL is to acquaint employees with the policies and procedures of Partners Colombia, and to act as a reference for employees. I understand that the MANUAL reflects the policies and procedures in effect this date which may be changed by Partners Colombia.

I understand that I am bound by the provisions of this MANUAL and that it is my responsibility to read and adhered to the contents set forth in the MANUAL. Furthermore, I acknowledge these policies and procedures as conditions of employment with the Partners Colombia. I agree to comply with all policies contained within the MANUAL and to ask my supervisor any questions that I may have about it.

Print Name:____

Employee Signature:_______________________________________ Date:_____________